Fourth Amendment
to the
United States Constitution

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched and the persons or things to be seized.

Constitution
of the
Commonwealth of Kentucky

Sec. 10 Security from search and seizure – Conditions of issuance of warrant

The people shall be secure in their persons, houses, papers and possessions, from unreasonable search and seizure; and no warrant shall issue to search any place, or seize any person or thing, without describing them as nearly as may be, nor without probable cause supported by oath or affirmation.

Advisory Warning:

The Kentucky Search & Seizure Casebook is designed as a study and reference tool for law enforcement officers in training classes. Although care has been taken to make the case briefs included as accurate as possible, official copies of cases cited or listed herein should be consulted when possible before taking any actions that may have legal consequences.

The issues and holdings that appear in each brief are only the opinions of the compilers of this casebook. These summaries are only meant to be used for guidance in statutory and case interpretation, are not offered as legal opinions, and should not be relied upon or cited as legal authority for any actions. Always consult legal counsel when in doubt about the meaning of a statute or court decision.

Any pronoun usage within case summaries is based upon the actual court case, even if the gender of any individual is not specifically mentioned in the summary itself.

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SEARCH AND SEIZURE - OVERVIEW

I. CONSTITUTIONAL BASIS

A. U.S. Constitution--Fourth Amendment

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

B. Kentucky Constitution--Section 10

The people shall be secure in their persons, houses, papers and possessions, from unreasonable search and seizure; and no warrant shall issue to search any place, or seize any person or thing, without describing them as nearly as may be, nor without probable cause supported by oath or affirmation.

C. Interpretation

Although the wording differs slightly, the Kentucky Supreme Court interprets Section 10 of the Kentucky Constitution as having the same meaning as the Fourth Amendment to the U.S. Constitution.

NOTE: *The United States Constitution and the Kentucky Constitution do not prohibit* ***all*** *searches and seizures--only* ***unreasonable*** *ones. A search conducted under a legal search warrant is both reasonable and legal. With consent, or under certain exigent (emergency) circumstances, searches and seizures conducted without a warrant are also reasonable and legal.*

II. WHAT IS A "SEARCH"?

An officer who examines another person's premises, person, or property for the purpose of discovering contraband (such as stolen property) or other evidence for use in a criminal prosecution has conducted a "search". A search involves prying into hidden places[1] to discover something concealed.

III. WHAT IS A "SEIZURE"?

An officer who takes into custody a person (e.g., arrests that person) or property (e.g., removes a concealed deadly weapon from a suspect) seizes that person or property. The seizure may be temporary or permanent – the nature of the seizure will determine what circumstances must exist to authorize the seizure. A seizure also occurs when an officer applies physical force to the body of a person with intent to restrain, even if the person does not submit and is not subdued.[2]

IV. SEARCH SITUATIONS NOT PROTECTED BY FOURTH AMENDMENT

A. ABANDONED PROPERTY

A person may lose an expectation of privacy either:

1. by discarding the property in a place where others would have access to it[3] or
2. by disclaiming ownership of the object.[4]

Such situations would include when a person discards their trash in the area where trash is commonly picked up, or when they abandon an item of property (such as a purse) where others would have ready access to the item.

B. PLAIN VIEW

An item seized in "plain view" is not protected by the Fourth Amendment since the officer has not conducted a "search" to discover the item. The plain view doctrine is summarized as follows:

- If an officer is where he/she has a legal right to be, and
- Lawfully sees (the officer is permitted to look in that location) an item(s) immediately apparent to the officer to be contraband or evidence of a crime, and
- The officer may seize the item if the officer has a right to access the item (legally be where the item is located).[5]

1. Officer is Where He/She Has Legal Right to Be

An officer's right to be in a location is established by:

- Being in a public place from where he sees evidence located in a public or private place.
- Being invited onto private property.
- Obtaining actual consent from someone who has lawful control over private property.
- Having implied consent.
- Exigent (or emergency) circumstances exist.
- Executing legal process (arrest or search warrant).

2. Officer Lawfully Sees, and it is Immediately Apparent

When the officer sees the item, he/she must have probable cause at that time to believe (immediately) the item is contraband or evidence of a crime.[6] The officer may not move the item for further examination.[7]

Plain touch, plain smell. The plain view doctrine implies use of the sense of sight, but the other senses may also be used. The U.S. Supreme Court recognized the validity of plain "touch" (or feel) in Minnesota v. Dickerson[8] as well as "plain smell" in drug cases.[9]

2a. Evidence of a Crime

Evidence (of a crime) may be divided into four categories:

- **Instruments of a crime –** items used to commit crimes (e.g., weapons, burglar tools and other items used to commit theft).
- **Fruits of a crime –** i.e., the gain or proceeds from a crime (e.g., money, stolen property, etc.).
- **Contraband –** i.e., items prohibited by law (e.g., defaced firearm, illegal drugs, etc.).
- **Other Evidence of a crime –** i.e., anything else that tends to prove that
  a. A crime has been committed (i.e., the elements of a crime), and/or
  b. A particular person committed the offense – usually circumstantial evidence found at a crime scene (e.g., fingerprints, lint, hairs, blood, etc.) – and the evidence tends to show motive, intent, opportunity or means to commit the crime.

  It is critical, however, that the officer <u>immediately</u> recognize that the item is, in fact, evidence or contraband.

3. Right to Access the Contraband or Evidence

If the evidence is located in a place where the officer also has a right to be, the officer may immediately seize the evidence. Otherwise, the officer must use his/her knowledge of the illegality as probable cause for a search warrant. The warrant then authorize and entry and seizure.

However, if the item is readily destructible and the officer reasonably believes that if he/she does not immediately take the evidence into possession it will be destroyed, an officer may access and seize the item without a warrant under the exigent circumstances doctrine.

C. Flyovers

In general, items are considered located in plain view if seen from an aircraft (fixed or rotary-wing) flying within legal airspace.[10]

D. Open Fields

An officer may search “open fields” without a warrant, without probable cause, despite notices or other efforts showing an expectation of privacy and despite the search constituting a technical trespass.[11] An "open field" is any land **not included in the curtilage** and does not describe the actual condition of the land. The land may, in fact, be considered an open field, but may also have buildings on it, be wooded, or be otherwise used. When in an open field area, the officer may not on that account alone search a building, person, or non-abandoned car.

A person's “curtilage” is the area immediately surrounding a home, a reasonable area for yard space (whether fenced or not) and the nearby buildings used in connection with the home.[12] The reason the immediate area is considered part of the home, and therefore awarded the same expectation of privacy, is because that space is linked both physically and psychologically to the place where we expect the most privacy.[13] To determine whether something falls within the home’s curtilage, the court looks at the following factors:

- the proximity of the area claimed to be curtilage to the home,
- whether the area is included within an enclosure surrounding the home,
- the nature of the uses to which the area is put, and
- the steps taken by the resident to protect the area from observation by people passing by.[14]

E. Public Area

No one has a reasonable general expectation of privacy in a public area such as road, sidewalk, public park, etc., but may have a reasonable expectation of privacy in their person, luggage, or vehicle located in a public area.

As used here, "public," means "open to the public," and includes various commercial establishments such as bars and retail stores. Therefore, an officer can be in such an establishment in areas where prospective customers are allowed, at times when they are allowed to be there, and making no closer examination of things therein than an ordinary customer would and he will not have violated anyone's reasonable expectation of privacy.[15] A regulatory officer, such as an alcohol beverage control officer, may enter into areas where alcohol is stored that are not open to the general public under circumstances where the general jurisdiction officer may not. Some areas, such as bathrooms, may be so arranged as to support an expectation of some degree of privacy even though the general public is allowed to enter.

E. Citizen's Search

Both the Fourth Amendment to the U.S. Constitution and Section 10 of the Kentucky Constitution protect citizens from **government** action. Fruits of a **citizen's** search should not be excluded as being subject to any exclusionary rule unless the citizen was acting as an agent of an officer. Generally, the courts will allow an officer to search to the same extent already done by a citizen who has searched and then told the officer of the results, but a warrant would still be required if the search was to go beyond that area, unless there was some emergency presented.

F. Consent Searches

1. Requirements

A consent search is legal only if:

a. Consent is given voluntarily; and
b. Consent is given by a person with the authority to consent.

a. Consent Must Be Given Voluntarily

Consent is voluntary when the person gives the consent under free will. The consent must be given without force, threat, trickery, or any kind of coercion. If the officer claims to have a search warrant but does not have one, any consent given is not voluntary. If the officer first makes statements to show authority to search, any consent which the person then gives is not valid. The court will look at all the surrounding circumstances in deciding whether the consent was voluntary.[16] If a large number of officers were present, courts may find the consent was coerced. If possible, no more than two officers should be present when requesting consent. Generally, the simple fact that the officers are in uniform does not make the consent coerced.[17]

b. Person Consenting Must Have Authority to Consent

Any person with control over the area to be searched may consent if he/she has a sound mind and is old enough to understand the ramifications of consent. A person must have possession or control over the property to give consent.[18] If a home is to be searched, the owner may normally consent. However, if the home is rented out to a tenant, the tenant, not the owner, may consent.[19] If personal property such as a car or suitcase is to be searched, the owner may consent. If the person consenting is not the suspect, the person consenting must have authority over the place at least equal to the authority of the suspect. If two people such as husband and wife share the use and control of the property equally, either one may consent to the search. Further, the U.S. Supreme Court has held that any joint occupant of a residence may consent to search the residence if the other occupant is absent.

2. Exceptions

Even where two people share a home together, they may have an agreement that each person has complete control over certain areas, rooms, or items of personal property such as a toolbox. If they have this arrangement, one person may not consent to search the areas under the other person's control.

a. Hotel-Motel Situation

If the customer is still occupying his hotel or motel room, the manager or clerk may not give consent to search his room without his permission.[20] Once the customer checks out, the manager may freely consent to a search of the room. A posted checkout time is not necessarily dispositive. Not all establishments require a formal checkout at the

desk and whatever the case is there may be adequate evidence that the lodger has left the room permanently and thus abandoned any reasonable expectation of privacy in its contents. On the other hand, although the apparent checkout time has passed, the tenant may be remaining with a reasonable belief that it is still his room.[21]

b. Parent-Children Situation

The courts have held that a parent may consent to the search of a child's room or effects in the premises controlled by the parent and over which the parent may exercise control.[22] However, if the child pays rent or room and board, a lessor-lessee relationship exists and this relationship would determine the validity of the consent. An adult child, or even an older juvenile, may be held to be legally able to give consent of the parents' home, if they share authority over the area in question.

c. Spouses

If one spouse consents, but the other spouse who is also present refuses, the refusal will control and a search will not be permitted.[23] However, if only one spouse is present, and consents, it is not necessary to seek out the other spouse to gain their permission as well. (But, if the other person is absent because of police action conducted for the purposes of removing them from the house, the consent of the remaining spouse is invalid.)

3. Warnings

Under both U.S. Supreme Court and Kentucky decisions, consent by a person may still be valid even if the officers do not inform the person of his right to refuse. Note, the failure to warn is still one factor considered by the court in deciding whether the consent was voluntary.[24]

4. Limiting Consent

A person may limit consent to cover only certain parts of a house or building, item, vehicle, or their person. They may withdraw their consent at any time. Once the subject withdraws consent, no further search can be justified as a consent search.

NOTE: *Because of risks with a consent search the officer should always get a search warrant instead, if possible. If a consent search is conducted, the officer should try to get a signed, written, or recorded, consent.*

G. Body Evidence

Evidence from a person's body, especially when evanescent (easily destroyed), under appropriate circumstances, may be collected without a warrant. Evidence that is not possible to alter or destroy (such as a person's DNA) will generally require either consent, or a warrant, to obtain. In addition, evidence that requires surgery or an invasive medical procedure to recover will also require a warrant unless there is a separate medical reason to remove the item immediately.

V. BASIC CONCEPTS

Search and seizure law centers around the concept of the **reasonable expectation of privacy** an individual has in a particular area. Additionally, the expectation of privacy must be one society is willing to accept as reasonable. Without that expectation, there are no Fourth Amendment implications. In addition, without that expectation, an individual lacks standing – the right to bring a claim – even if someone else's rights are allegedly violated, unless, for example, the person is a minor or legally incompetent to bring the claim on their own.

Reasonable suspicion is the standard of facts that demonstrate the possibility that something is true. It is the standard used for a "Terry stop", a "Terry frisk", and searching a vehicle incident to arrest.

Probable cause is the standard of facts that demonstrate the possibility that something is probable. It is required for the issuance of a search warrant, an arrest warrant, a warrantless arrest, or for a vehicle search pursuant to the vehicle exception. When something is "probable", it is more likely than not. Thus, the standard of probable cause is more than reasonable suspicion, but less than the clear and convincing or beyond a reasonable doubt standards.

The Exclusionary Rule

This chapter has analyzed the basic requirements for conducting lawful searches with and without a search warrant. If a search satisfies these requirements and produces evidence relevant to criminal charges, that evidence is admissible (legally allowable) in the trial on those charges. Conversely, if officers obtain evidence by an illegal search and seizure, the court will exclude that evidence from the trial on the criminal charges. This rule of law, that evidence obtained by an illegal search and seizure is inadmissible in a criminal trial, is known as the "exclusionary rule.''

Common reasons the court excludes evidence as the result of an illegal search or seizure:

- the search was not based on probable cause,
- the search went beyond the scope of the warrant,
- the search without a warrant was unreasonable because the officer had adequate opportunity to obtain a warrant.

The Fruit of the Poisonous Tree Doctrine

The exclusionary rule prohibits both direct and indirect use of unlawfully obtained evidence. Simply stated, unlawfully obtained information cannot be the basis for investigation which develops other evidence. The new evidence is said to be tainted or the "fruit of the poisonous tree." The "fruit of the poisonous tree" doctrine may be applicable if illegally obtained evidence is the basis for discovery of:

- A willing witness who might not have been found,
- A confession or admission which might not have been made if the defendant had not been confronted with the illegally obtained evidence, or
- Any other evidence which might not have been found.

Even if an officer uncovers critical evidence which positively connects a suspect to a crime, if the evidence is obtained in violation of the defendant's Fourth Amendment rights, the evidence cannot be used unless an exception to the rule applies (such as the inevitable discovery exception,[25] the independent source exception[26], or the use of the evidence only in rebuttal[27]).

Constructive Possession
It is not necessary for an individual to be in actual possession of an item to be charged with its possession. So long as the item is where the individual may exercise control over it, they may be found in constructive possession of the item.

VI. SEARCHES UNDER A WARRANT

A. Court Preference for a Search Warrant

As a general rule, courts require the police officer to obtain a search warrant "whenever practicable,"[28] that is, so long as the officer has a reasonable opportunity to do so. In determining whether a search without a warrant is "reasonable," courts will consider as one factor whether the officer had enough time to get a warrant. Many decisions make it clear that courts **prefer** searches conducted with a warrant. Courts are often reluctant to reverse the judge issuing the warrant unless the evidence clearly shows the warrant to be invalid. Consequently, the officer should <u>always</u> obtain a search warrant unless special or emergency circumstances make it unreasonable.

B. What Is a Search Warrant?

A search warrant is a written order from an authorized judicial official directing a peace officer to search specific places or persons, seize specific property and hold the property in accordance with law.

C. What are the Requirements for a Legal Search Warrant?

To be legal, any search warrant in Kentucky must:

1. Be issued by a neutral, detached judge (meaning a judicial officer who is impartial, not personally involved),
2. Contain the words "Commonwealth of Kentucky" at the top,
3. Be based on an affidavit showing **probable cause**,
4. Be based on an affidavit sworn to before the issuing judge or other authorized person,
5. Particularly describe the place or person to be searched,
6. Particularly describe the items to be seized, and
7. Be signed and dated personally by the judge or other authorized person who issues the warrant.

D. Requirement of a Neutral, Detached Judge

Kentucky Rule of Criminal Procedure (RCr) 13.10 states that a search warrant may be issued "by a judge or other officer authorized by statute." Rule 1.06(a) defines "judge" to mean any judge, justice, or district court trial commissioner in the Kentucky court system. KRS 15.725(4) provides that in the event of the absence from a county of all district judges and all circuit judges and all trial commissioners, the circuit clerk in each county may issue criminal warrants prepared by the Commonwealth's attorney or county attorney. The Court of Appeals of Kentucky in the case of Com. v. Bertram[29] upheld the constitutionality of this statute. The term "criminal warrants" includes both arrest warrants and search warrants.

A prosecutor or a law enforcement officer may never legally issue a search warrant.[30]

E. What is Probable Cause?

To show probable cause for the judge to issue a search warrant, the officer must present **reliable facts, information or circumstances** that are sufficient for a reasonable person to believe that more likely than not:

a. A crime has been committed; **and**
b. Evidence of this crime (instruments, fruits, specific contraband, or other evidence) is on the person, place or item to be searched.

In other words, the officer must put information based upon facts in the affidavit, not conclusions. The officer must state the underlying facts and circumstances which support the belief that evidence of a crime is at the place to be searched.

F. How Can the Officer Establish Probable Cause?

The officer should use specific, articulable facts, information, or circumstances to establish probable cause, such as:

a. Personal observations,
b. Admissions or confessions of a suspect,
c. Information given to the officer by victims and witnesses,
d. Information provided by informants (either named informants, or unnamed "reliable" informants),
e. Corroborated information from anonymous informants,
f. Information from other peace officers or departments, or
g. Strong circumstantial evidence when combined with one of the above.

Two additional points are critical. **First**, the officer's mere **belief** that he/she has probable cause is not sufficient; the officer must have **evidence** that convinces the judge as to probable cause. **Second**, the officer may show probable cause by putting together the knowledge of several officers. The officer is not limited to his/her own knowledge alone.

G. Using Informants to Show Probable Cause

The credibility of an informant can be established by showing (in the search warrant affidavit), one or more of the following:

- the informant is a law enforcement officer,
- the name of the informant,
- the statement of the informant was against the informant's penal interest (i.e., contained information that could have helped convict ***the informant***)
- the informant has provided information some number of times in the past and the information was confirmed by the officer (and may have resulted in some number of arrests and convictions),
- the informant's information has been duplicated by some other independent source, or
- the officer has been able to corroborate some of the details of the information.

The officer's affidavit should also indicate how and when the informant gained the information to show the informant's basis of knowledge. Be careful not to be so specific as to give away the identity of an informant who should remain unnamed.

I. How Does the Officer Obtain the Warrant?

The officer must go to the judge and submit an affidavit (a sworn statement). A search warrant affidavit sets out the facts which establish probable cause that (1) specific items connected to criminal activity will be found (2) on the person, or in the place or item to be searched. The officer should include specific conduct, statements, and observations that show probable cause. Simply stating the officer's own opinion or suspicion, even if based on long experience, is not enough. In addition, the affidavit must state the time when the facts or conduct occurred[31] so the judge can assess whether the specified items are probably **now** on the premises.

J. Additional Requirements for the Affidavit and Warrant

1. **The officer must clearly and specifically describe in the affidavit the place or person the officer wishes to search**.

   The officer must include enough detail to enable any officer serving the warrant to locate the property. As to buildings, the officer should list the street address, then specifically describe the rooms and buildings and any portion of the "curtilage" to be searched. Errors in a warrant, such as an incorrect street address, will not necessarily make the warrant invalid **if** the total facts in the warrant make it clear what premises are to be searched. However, great care should be used in describing the place to be searched, so that any officer assisting in service of the warrant can be assured he/she is at the correct location. The test applied will be: does the warrant identify the premises accurately enough so that the officer executing it can reasonably determine the place to be searched?[32]

a. **Apartment buildings or other multiple family dwellings can present a special problem**. Unless the officer has probable cause to search the entire building, the officer should state in the affidavit the apartment number of the unit to be searched or describe its location in detail.

b. **Vehicles**.
The affidavit should describe the vehicle(s) by giving its **make, model, year, color, and license tag number**.[33] An officer planning to search a premises can request permission to search all vehicles on the premises but must establish probable cause for each vehicle.

2. **The affidavit and the warrant must particularly describe the items to be seized**.
"General" warrants to seize broad categories of goods are invalid.

3. **The officer must swear to, and sign, the affidavit in the presence of a judge or other person authorized by written order of a judge**.
See RCr 13.10 and RCr 2.02.

4. **The judge issuing the warrant must personally read the affidavit or the warrant will be invalid.**

K. Rules for Executing (Serving) the Warrant

Kentucky law generally requires the officer to execute the warrant (carry out the search) **within a reasonable time** after the judge issues it. The law does not set a certain number of days as a limit. But the warrant itself may give a time limit. Rules for the federal courts require warrants to be served within ten days after being issued unless the warrants specify otherwise. The officer may use whatever **reasonable** force is necessary to execute the warrant, including breaking into the building to be searched. In addition, in executing a search warrant, the **scope** of the officer's search must be appropriate considering the type of items for which the officer is looking.[34]

1. **Special Situation: Warrant to Search Place Where Alcoholic Beverages are being Sold or Possessed.** KRS 242.370: Where judge issues a warrant to search a place where alcoholic beverages are being sold or possessed, the officer must execute the warrant **on the day the officer receives the warrant.**

L. What Items may be Seized in a Search with a Warrant

The officer executing a search warrant may legally seize the following items if these items are reasonably within the scope of the officer's search:

1. All items ordered to be seized in the warrant,
2. All instrumentalities of crime (that is, weapons and other objects, even cars, which have been used to commit a particular crime),

3. Contraband (items illegal to possess, such as illegal drugs, an unregistered sawed-off shotgun, or stolen property), and
4. Fruits of crime (such as stolen bank money).[35]

Other issues concerning search warrants include, anticipatory (or trigger) warrants, in which the warrant indicates that it will not be served until something specific occurs, such as the controlled delivery of a package. Area and administrative warrants are used, as a rule, only by code enforcement or regulatory officers.

M. "No knock" Warrants

In Kentucky, the process for obtaining a "no-knock" warrant, judicial review of an application for a "no knock" warrant, and execution of a "no knock" warrant, if issued by a court, are governed by KRS 455.180 through KRS 455.200. This statutory process must be strictly followed.

No arrest warrant or search warrant shall be issued **authorizing entry without notice unless**:

- There are specific crimes involving a violent offender; or terrorism crime; or KRS 527 crime involving weapons of mass destruction.
- Articulating danger to officers serving the warrant or destruction of evidence.
- Must be approved by a superior officer or highest ranked official in agency.
- Reviewed by the prosecutor in the jurisdiction where the warrant will be served.
- Must advise judge if previous no-knock warrant or arrest has been sought involving the same location/individuals.
- Judge signing the warrant must use a clear and convincing standard (higher than the probable cause standard).
- Must be served between the hours of 6 am and 10 pm; only exception is an exigency exists demonstrating, also by clear and convincing evidence, of substantial and imminent danger to officers or destruction of evidence.
- Must be signed by the judge as a neutral and detached magistrate either electronically or with a clear, legibly printed name and signature otherwise; judge can be held responsible if these conditions are lacking.
- Must be served by a SWAT or special response team, clearly visible (via uniform) to be SWAT or SRT.
- For communities of less than 90,000 people, a judge can approve the need for serve by officers other than SWAT or SRT, using the clear and convincing evidence standard.
- Body cameras or audio-visual equipment required to record the entire warrant service.
- Warrant must be served in front of a uniformed officer and EMS must be present.[36]

No-knock warrants are still a viable tool available to Kentucky law enforcement officers. An officer seeking a no-knock warrant should read both KRS 455.180 and KRS 455.200 in their entirety prior to seeking a no-knock warrant.

VI. SEARCHES WITHOUT A WARRANT

Overview

Kentucky and federal law recognize that certain searches are reasonable and legal even without a warrant. All such searches must be for some limited emergency or special circumstance. **Most** of them require some emergency circumstance **where the officer has probable cause** but **not enough time to obtain a warrant**.

Exigent circumstance searches (circumstances where it would be unreasonable to require a warrant):

1. Frisk during a Terry stop;
2. Anonymous tips with corroboration;
3. Search incident to lawful arrest or citation;
4. Protective sweep search;
5. Crime scene search;
6. Community caretaker;
7. Entry of premises in hot pursuit to arrest;
8. Entry of premises to protect life or health; and
9. Entry of premises to prevent destruction of evidence.

Note that each of these searches is separate from the others, designed to meet a specific emergency or unusual situation. The officer should always consider **all of** the search possibilities. Even though the officer may lack justification in a given incident to conduct certain of these searches without a warrant, the facts could justify one of the other types of searches.

A. Exigent Circumstance Searches

1. Frisk during a Terry Stop (a Temporary Investigative Detention)

a. What is a "Terry Stop"?

A Terry[37] stop is a temporary seizure of a person by a law enforcement officer to investigate the officer's reasonable suspicion that the person is involved in criminal activity. "Involved in criminal activity" means the person is about to commit any crime, is committing any crime, or has committed a crime.

b. How much Evidence is Required to Justify a Terry Stop?

Since a Terry stop is a seizure of a person, it is required by the Fourth Amendment to the U.S. Constitution to be reasonable. To be reasonable, thus legally justifiable, a Terry stop must be based on "reasonable suspicion" that the person is involved in criminal activity. **Reasonable suspicion** is more than a mere hunch, but less than probable cause. To be reasonable, the suspicion must be "articulable"--that is, it must be solid enough that the officer can put it into words and explain it clearly to another person. The officer should have specific items of evidence that make it reasonable for him to be suspicious.

Some factors which might give an officer "reasonable suspicion" to stop are:

a. the place (such as a high-crime area),
b. the time (such as late at night),
c. suspicious conduct (carrying unusual items, or sneaky conduct or gestures),
d. recent report of crime in vicinity,
e. resemblance of suspect to description of wanted criminal,
f. tips from reliable informants,
g. officer's experience,
h. the person runs, and
i. the person has a criminal record.

Even though one of these factors by itself may not be enough, combinations of them may justify a stop.

c. What is a "Frisk"?

A frisk is a limited search of a person for the purpose of locating weapons. It is limited to a pat down of the person's outer clothing. . The officer may not squeeze, slide or otherwise manipulate objects in order to try to identify it as contraband.[38] It is allowed for the sole purpose of the protection of the officer and other persons at the scene. During a frisk, if the officer feels something that could reasonably be, or contain, a weapon, he may reach inside the clothing and seize the object. Plus, if the officer feels an object that his sense of touch immediately tells him is contraband (something that is illegal for the person to possess, such as drugs), then he may seize it.

d. When may an Officer Frisk a Suspect during a <u>Terry</u> Stop?

An officer may not frisk automatically but must have reasonable suspicion the suspect is armed and dangerous.

Factors which might support such a belief include:

a. officer's observations (e.g., he sees a bulge in a pocket),
b. a credible report that the suspect is armed,
c. nature of the crime involved (e.g., an armed robbery), and
d. suspect's conduct including actions, demeanor and words.

e. Must the Suspect Identify himself?

Generally, an officer may ask an individual for identification, but the person does not have to comply.[39] However, if the suspect is the operator of a motor vehicle that has been legally stopped by an officer, he must show the officer his operator's license, motor vehicle registration and proof-of-insurance card.

f. Must the Suspect Answer the Officer's Questions?

An individual is never required to answer an officer's questions.

g. How Long may the Suspect be Detained?

The suspect may be detained no longer than is reasonably necessary for the officer to check out the officer's suspicions. In most circumstances, a Terry stop is completed within a few minutes, but it could last longer and still be considered reasonable depending on the situation.

h. May the Officer Use Force to Accomplish a Terry Stop?

The officer may use or threaten to use a reasonable amount of force to get the suspect stopped whether the suspect is on foot or in a vehicle. The officer may use or threaten to use a reasonable amount of force to control the situation. Courts have approved the use of drawn guns and/or handcuffs on the suspect if that was a reasonable precautionary measure considering the nature of the crime and the potential for harm presented by the situation. The officer may use or threaten to use a reasonable amount of force to keep the suspect from leaving the scene before the officer has finished.

However, the use or threatened use of force during a Terry stop may become so coercive and restrictive that the situation, if challenged in court, may be considered an arrest. And, if the officer had only reasonable suspicion, the arrest would be invalid; thus any evidence obtained as a result of the stop would be inadmissible to prove the person's guilt and the officer may face liability for a false arrest.

i. Vehicle "Frisk"

If the officer has a "reasonable belief" that the suspect is dangerous and might gain control of weapons within the vehicle, the officer may frisk the passenger compartment of the vehicle for weapons. This means the officer may look in places where weapons may be hidden, including the glove compartment and console.[40] This occurs in very limited circumstances.

2. Search Incident to Lawful Arrest

Whenever an officer arrests a person, with or without a warrant, he may search him immediately after the arrest.[41]

a. When and Where?

This search usually occurs at the scene of, and immediately after, the arrest.

b. Search for What?

The officer may search for weapons and for evidence of a crime.

c. What Area?

The officer may search the entire person of the subject and the nearby area from which the subject might be able to obtain a weapon or destructible evidence. Reference to a weapon or evidence is meant to help define the **distance** of the place searched from the arrestee and not to limit the **detail** of the search.[42] Officers are not required to make an analysis as to how probable it is that weapons or evidence are in this nearby area.

d. Searches of Persons of the Opposite Sex

The officer may search an arrested person of the opposite sex. However, the officer may, if circumstances permit, merely do a general frisk and wait to have a detailed search made later by an officer of the same sex as the arrestee.

e. Booking or Stationhouse Searches

Although this search might be viewed as a separate type, courts generally classify booking or stationhouse searches as a form of search incident to arrest. Normally, courts consider this type of search reasonable because of the need to find any weapons, instruments of escape, and evidence on arrested persons. This type of search is an exception to the rule that searches incident to the arrest must be made immediately after, and close to, the point of arrest.[43]

If the arrested person is to be jailed, officers or the jailer may normally seize and conduct a complete inventory of his personal possessions, seize them and have them examined as part of a **routine, established inventory procedure**. The search should be conducted at the same time the accused is jailed. Courts may allow reasonable delays, such as to get substitute clothing for the accused, but a long delay may support a claim that the police could have obtained a search warrant.

3. Protective Sweeps

A protective sweep is a limited search, incident to arrest conducted to protect the safety of police officers or others. Officers may only do cursory visual inspections of those places in which a person might be hiding.[44]

There are two types of protective sweeps:[45]

- An officer may search **the area immediately adjoining** the place of arrest from which an attack could be immediately launched **without reasonable suspicion or probable cause.**
- An officer may search **additional areas** incident to arrest if the officer can articulate **a reasonable belief the additional area harbors persons posing a danger to those on scene.**

4. Crime Scene Searches

There is no "crime scene exception" to the search warrant requirement. When the emergency terminates, the right to continue to search without a warrant also terminates. At that point, the officers must seek consent, get a warrant, or find another exigent circumstance upon which to justify the search.

5. Entry of Premises in Hot Pursuit to Arrest

a. What Is This Search?

When law enforcement has probable cause to believe a suspect has committed a crime, if the officer begins a pursuit in public, but the suspect flees into a private area, the officer may make warrantless entry into that private area because he is in "hot pursuit."[46] However, not all crimes justify a warrantless entry based on hot pursuit. When it comes to misdemeanors, flight alone does not justify a warrantless entry into a private area. The officer must be able to articulate an exigency like to prevent imminent harms of violence, destruction of evidence, or escape from the home.[47]

b. How Far May the Officer Search?

The officer may search anywhere the suspect could be hiding, until the suspect is apprehended. Also, if the suspect is believed to have weapons, the officer may search furniture and other places in the building where the weapons could be hidden.[48]

6. Entry of Premises to Prevent Destruction of Evidence

a. Requirements

Courts will sometimes uphold entering premises without a warrant because an immediate search was necessary to prevent evidence from being destroyed. The officer must have probable cause to believe that a crime has been committed or is being committed. The evidence must be a kind which could quickly be destroyed. Finally, the situation must create a strong danger that the evidence **will** be destroyed if the officer delays getting a warrant.[49]

Officers will perhaps use this type of search most often to prevent the destruction of drugs. Further, the threat of a fire in the immediate area can justify seizure of evidence.[50] However, a search will be illegal where destruction of evidence is merely **possible**, and when other actions, such as posting a guard at the premises can prevent tampering with evidence while a search warrant is obtained.

7. Entry of Premises to Protect Life or Health

When the police officer has good reason to believe that a person's life or health is in danger, the officer may enter buildings or other areas without a warrant and search for the person. If the officer hears shots or cries for help coming from a building or room, the officer may enter and search without a warrant. If the officer finds someone injured, wounded, or unconscious, the officer may search the person for identification and medical data. If the officer has good reason to believe that bombs, guns or other deadly devices are inside a building or car and that lives are immediately in danger, the officer may enter and search without a warrant.

B. VEHICLES

1. Vehicle Stops

The standard for a vehicle stop is much the same as the standard for the stop of a person,[51] and may be based upon reasonable suspicion or probable cause.

2. Pretext Stops

An officer may make a stop for any valid traffic (or other) offense, no matter how minor, even if the actual intent is to investigate another, unrelated offense.[52]

3. Search of a Vehicle on Probable Cause ("Vehicle Exception" or Carroll Search)

This type of search is different from either the search incident to arrest or the inventory search of an impounded vehicle. It is based on **probable cause** to believe that a vehicle contains evidence of a crime. It may be made before or after an arrest, or even without an arrest. The U.S. Supreme Court has justified the probable cause warrantless search of vehicles on numerous grounds, each of which appears to be independently adequate to justify the search. These types of searches are referred to as Carroll[53] searches. This doctrine is based upon the general mobility of vehicles[54], the configuration of most vehicles (much glass which reduces the expectation of privacy therein) and the pervasive and continuing governmental control of vehicles.[55] Not to be overlooked is that even when the vehicle is immobilized by accident,[56] or by arrest of all its occupants,[57] there is still the possibility that unknown parties may remove the vehicle with the items it contains or else remove or destroy the seizable items.

a. Probable Cause

Kentucky decisions look at the totality of the circumstances to determine whether an officer had probable cause to search a vehicle. Said differently, the court will look at everything the officer knew at the time to determine whether it was more likely than not the vehicle contained contraband or evidence of a crime. Furthermore, the court has found that a canine's alert on a vehicle, the plain smell of marijuana, and the plain view of contraband or evidence in the vehicle provides the officer probable cause to search.

b. When and Where may the Officer Conduct this Search?

The officer may search a vehicle on probable cause at the scene where he stops it[58] or otherwise locates it in a public place. The U.S. Fourth Amendment allows a warrantless probable cause search of a vehicle initially found in a public place although it is moved elsewhere by the authorities before the search.

c. What Area?

The officer may conduct a search of the entire vehicle including the glove compartment, trunk, hub caps, hood area, and containers (bag, boxes, suitcases, etc.) within the vehicle, provided that the officer limit this search to those areas and containers which could physically contain any seizable item he has probable cause to believe is in the vehicle.[59]

d. Probable Cause Search of a Container in a Vehicle

If an officer has probable cause to believe a container in a vehicle contains evidence of a crime but the probable cause does not extend to the vehicle itself, the officer is allowed to stop the vehicle, seize the specific container, and search within it, all without a warrant.[60]

4. Search Incident to Arrest (from a vehicle)

If the officer arrests an occupant (driver or passenger) of a vehicle, either while the occupant is in the vehicle or shortly after the occupant is removed from the vehicle, the officer may search the person arrested. However, the officer may not routinely search any part of the vehicle incident to the arrest, unless the arrested subject has access to the vehicle, or the officer is searching for evidence related to the offense for which the person is actually being arrested.[61] Note, however, that the officer may possibly search the vehicle under a Terry-Long frisk if there is reasonable suspicion that the vehicle might contain a weapon, or under the Carroll doctrine when the officer has probable cause to believe that the vehicle contains contraband.

5. Roadblocks

Roadblocks are permitted for traffic purposes, such as for DUI. Roadblocks are not permitted solely for seat belt checks (see KRS 189.126) nor for other general crime investigative reasons.[62]

6. Miscellaneous Issues

Officers may require the driver[63] and passengers[64] to get out of a vehicle during any valid traffic stop.

7. Vehicle Impoundment, Inventory, Search for Evidence

This section involves impounded vehicles and addresses three issues:

- an officer's authority to impound a vehicle,
- an officer's authority to inventory the contents of an impounded vehicle, and
- an officer's authority to search an impounded vehicle for evidence of a crime.

a. Authority to impound a vehicle

To impound a vehicle is to seize it and hold it in custody. Impoundment of a vehicle by police is reasonable so long as the department has a written inventory policy; the policy is followed; and the officers do not search for evidence of a crime (which may be done only if there is probable cause to believe the vehicle is, or contains, evidence of a crime).[65]

1. **When to impound**
   Courts tend to hold that police should not impound a vehicle (without probable cause to search for evidence) unless it is necessary under the circumstances. As was pointed out by the Kentucky Supreme Court in Wagner v. Com., it becomes necessary to impound if the vehicle, if not removed, constitutes a danger and if the owner/operator cannot reasonably arrange for removal in a timely manner.[66] A vehicle constitutes a danger if it is parked on the traveled portion of the roadway, is otherwise parked illegally, etc.

b. Authority to inventory an impounded vehicle

To inventory a vehicle is to check its interior, list the items found there, and take steps to safeguard any items of value.

When an officer has impounded a vehicle, there are several reasons why he should inventory it:

- to protect the property in the vehicle,
- to protect the police in case there is a disagreement as to what property should be in the vehicle,
- to protect the police from dangerous items (e.g., explosives) that may be in the vehicle, etc.[67]

If an inventory goes beyond items in plain view, it is a search and is required by the Fourth Amendment to be reasonable. But an inventory search is **not** a search for evidence; it is an administrative search and **probable cause is not required**. The U.S. Supreme Court, in South Dakota v. Opperman, held that an inventory search is reasonable if it is done in accordance with standard police policy.[68] Neither a warrant nor consent of the owner/operator is required.

c. Authority to search an impounded vehicle for evidence

An impounded vehicle may be searched for evidence of a crime:

1. **With a search warrant**
   Search with a warrant is always best. Probable cause is required.
2. **Without a warrant, but with consent**
   Probable cause is not required. But the officer should be very careful that the consent is valid.

3. **Without a warrant or consent--probable cause search of a vehicle**
   The U.S. Supreme Court, in U.S. v. Ross, held that police may search a vehicle, without a search warrant or consent, if they find the vehicle in a public place and have probable cause to believe the vehicle is, or contains, evidence of a crime.[69]

The Ross holding applies to impounded vehicles. The search of a vehicle on probable cause is usually conducted at the place where the vehicle is found, but the police may consider impounding the vehicle before searching if it would be dangerous to search the vehicle at the scene or the vehicle could not be adequately searched at the scene. Also, if police, while inventorying an impounded vehicle, develop probable cause to believe the vehicle contains evidence of a crime, they may then conduct a search for the evidence.

4. Plain view doctrine

Officers dealing with impounded vehicles should have the plain view doctrine in mind. What officers see in plain view may provide them with the probable cause needed to search the vehicle for evidence, either under a Carroll search or using a search warrant.

VII. COMMUNITY CARETAKING

Officers often engage in activities that have nothing to do with investigating criminal activity, such as motorist assists or collision reports. We call these "community caretaking" functions because the police's involvement is totally divorced from detecting, investigating, or collecting evidence of criminal activity. Therefore, warrantless entry into vehicles to assist in one of these community caretaking functions is not considered a search under the Constitution.[70] However, the community-caretaking doctrine does not apply to homes. Law enforcement may only enter a person's home with a warrant, consent, or exigent circumstances. Warrantless entry into a home cannot be justified under the community-caretaking doctrine.[71]

VIII. ELECTRONIC / COMPUTER CRIME

In recent years, more and more cases relate to computer and electronic crime. In 2014, the U.S. Supreme Court ruled in Riley v. California,[72] that, in most cases, a search warrant would be required to obtain data from a cellular phone. Even more recently, in Carpenter v. U.S.,[73] the U.S. Supreme Court held that obtaining detailed historical data on the location of a cell phone over a period of time would also require a warrant.

CASE LAW

ARREST

Warrantless Arrest

Washington v. Chrisman, 455 U.S. 1 (1982)

FACTS: On January 21, 1978, Officer Daughtery (Washington State University PD) saw Overdahl "leave a student dormitory carrying a half-gallon bottle of gin." Believing him to be underage, Daughtery stopped Overdahl and asked for identification. "Overdahl said that his identification was in his dormitory room and asked if the officer would wait while he went to retrieve it." The officer told him that he would have to accompany him, "to which Overdahl replied 'OK.'" The two proceeded to the 11th floor of the dorm, where Overdahl's room was located. "Chrisman, Overdahl's roommate, was in the room when the officer and Overdahl entered." Daughtery "remained in the open doorway, leaning against the doorjamb while watching Chrisman and Overdahl." The officer noted that "Chrisman became nervous at the sight of an officer."

Less than a minute after they arrived, "the officer noticed seeds and a small pipe lying on a desk 8 to 10 feet from where he was standing." He recognized that he was looking at marijuana seeds and that the "pipe was of a type used to smoke marijuana." He entered the room and looked more closely at the items and confirmed his initial beliefs. Daughtery "informed Overdahl and Chrisman of their" Miranda rights, and each "acknowledged that he understood his rights and indicated that he was willing to waive them." Daughtery asked about other contraband in the room, and Chrisman handed him the box he'd had in his hands when Daughtery arrived. It "contained three small plastic bags filled with marihuana and $112 in cash." When a second officer arrived in response to a call from Overdahl, they told the students that a room search would be necessary. They told the two students that "they had an absolute right to insist that the officers first obtain a search warrant, but that they could voluntarily consent to the search." The "two students conferred in whispers for several minutes before announcing their consent" and they also signed written waivers. "The search yielded more marihuana and a quantity of lysergic acid diethylamide (LSD)."

Chrisman was charged with possession of both drugs, and he moved for suppression of the evidence. When suppression was denied, Chrisman was eventually convicted on both charges.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May an officer accompany an individual inside their home when they are under arrest and act on items they see in plain view?

HOLDING: Yes.

DISCUSSION: The Court began by stating that the "'plain view' exception to the Fourth Amendment warrant requirement permits a law enforcement officer to seize what clearly is incriminating evidence or contraband when it is discovered in a place where the officer has a right to be."[74]

The Court stated that Daughtery "had a right to remain literally at Overdahl's elbow at all times; nothing in the Fourth Amendment is to the contrary." The Washington Court's "premise … [was] that Officer Daughtery was not entitled to accompany Overdahl from the public corridor of the dormitory into his room, absent a showing that such 'intervention' was required by 'exigent circumstances.'" The Supreme Court, however, "disagree[d] with this novel reading of the Fourth Amendment." It went on to say that the "absence of an affirmative indication that an arrested person might have a weapon available or might attempt to escape does not diminish the arresting officer's authority to maintain custody over the arrested person" and "that authority [is not] altered by the nature of the offense for which the arrest was made."

The Court noted that "[e]very arrest must be presumed to present a risk of danger to the arresting officer" and "[t]here is no way for an officer to predict reliably how a particular subject will react to arrest or the degree of the potential danger."

The Court concluded that it was "not 'unreasonable' under the Fourth Amendment for a police officer, as a matter of routine, to monitor the movements of an arrested person, as his judgment dictates, following the arrest." As such, Daugherty's presence in the room was lawful, and thus his plain view of the contraband was also lawful. The Court stated that "[t]his is a classic instance of incriminating evidence found in plain view when a police officer, for unrelated but entirely legitimate reasons, obtains lawful access to an individual's area of privacy." In that situation, the "Fourth Amendment does not prohibit seizure of evidence of criminal conduct found in these circumstances."

Welsh v. Wisconsin, 466 U.S. 740 (1984)

FACTS: On April 24, 1978, a witness "observed a car being driven erratically." Eventually, it swerved off the road and stopped in an open field. The witness was concerned about the driver and that he would "get back on the highway." He placed his own vehicle to block in the suspect's vehicle and asked a passerby to call for the police. However, before the police arrived, the driver of the suspect vehicle got out and asked the witness for a ride home, but the witness "suggested that they wait for assistance in removing or repairing the car." Instead, the driver walked away from the scene.

When the police arrived, they talked to the witness, and he explained what had occurred. The officer checked on the ownership of the vehicle and learned that Welsh was the registered owner and lived only a short distance away. The police proceeded to the Welsh home, arriving at about 2100. Welsh's stepdaughter answered the door and admitted the officers. They found Welsh upstairs, naked, in bed, and arrested him for driving under the influence. He was taken to the station and refused to submit to breath testing, which subjected him to a greater penalty.

The Wisconsin's trial court concluded that Welsh's arrest was lawful and his refusal to submit to breath testing unreasonable.

The case was appealed.

ISSUE: May officers make a warrantless probable cause arrest, inside a home, absent exigent circumstances?

HOLDING: No.

DISCUSSION: The Court began its opinion by stating that "'physical entry of the home is the chief evil against which the wording of the Fourth Amendment is directed.'" One of the principal protections "against unnecessary intrusions into private dwellings is the warrant requirement imposed by the Fourth Amendment on agents of the government who seek to enter the house for purposes of search or arrest." The Court has held that "searches and seizures inside a home without a warrant are presumptively unreasonable" unless an exigent circumstance exists, and those are "few in number and carefully delineated."

The Court noted that its "hesitation in finding exigent circumstances, especially when warrantless arrests in the home are at issue, is particularly appropriate when the underlying offense for which there is probable cause is relatively minor, and "[b]efore agents of the government may invade the sanctity of the home, the burden is on the government to demonstrate exigent circumstances that overcome the presumption of unreasonableness that attaches to all warrantless home entries." At the time this offense occurred, Wisconsin classified driving under the influence as a noncriminal, traffic offense, for which no jail time was possible. A "warrantless home arrest cannot be upheld simply because evidence of [Welsh's] blood-alcohol level might have dissipated while the police obtained a warrant."

Arrest Warrants

Payton v. New York, 445 U.S. 573 (1979)

FACTS: On January 14, 1970, after a lengthy investigation, New York officers had probable cause to arrest Payton in a murder. Without a warrant, the officers went to Payton's apartment. Although the lights were on and music was playing, there was no answer to their knock. They broke down the door, but no one was there. However, in plain view, there was a shell casing that they seized and later used in Payton's trial.

Payton appealed the entry and seizure of the shell casing, which was important evidence in the trial, but the state courts upheld his conviction.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Absent exigent circumstances, may officers enter a residence for the purpose of making a warrantless arrest?

HOLDING: No

DISCUSSION: The warrantless arrest of a person is a seizure the Fourth Amendment requires to be reasonable. "[T]he physical entry of the home is the chief evil against which the wording of the Fourth Amendment is directed … we have long adhered to the view that the warrant procedure minimizes the danger of needless intrusions of that sort." "In terms that equally apply to seizures of property and to seizures of persons, the Fourth Amendment has drawn a firm line at the entrance to the house. Absent exigent circumstances, that threshold may not reasonably be crossed without a warrant."

Steagald v. U.S., 451 U.S. 204 (1981)

FACTS: Armed with an arrest warrant for Ricky Lyons, DEA agents developed information that Lyons could be found at Gary Steagald's house. Armed only with an arrest warrant, agents entered Steagald's house to search for Lyons who was not there. They did not have a search warrant. During the search for Lyons, officers spotted drug evidence.

Upon being informed of the initial observation of cocaine in the house, the lead agent sent an officer for a search warrant. While waiting for the warrant, they conducted a second search which revealed more incriminating evidence. When the officer returned with the warrant, a third search revealed 43 pounds of cocaine. Steagald was arrested on federal drug charges.

Prior to trial, Steagald moved to suppress all the evidence uncovered during the various searches based on the officers' failure to obtain a search warrant before entering the house. Th motion denied.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Absent exigent circumstances or consent, may a law enforcement officer legally search for the subject of an arrest warrant in the home of a third party without first obtaining a search warrant?

HOLDING: No.

DISCUSSION: The agents relied on the arrest warrant as legal authority to enter the home of a third person based on their belief that Lyons may be a guest there. Regardless of how reasonable this belief may have been, it was never subjected to the scrutiny of a detached judicial officer. The Court found that to hold otherwise would allow officers armed only with an arrest warrant to search the homes of the suspect's friends and relatives, thereby violating their reasonable expectation of privacy in their own homes.

SEIZURE

Definition of Seizure

Dunaway v. New York, 442 U.S. 200 (1979)

FACTS: Dunaway was a suspect in an attempted robbery and homicide, but the detective lacked sufficient probable cause to get a warrant. However, the lead detective had other detectives "pick up" Dunaway and "bring him in" for questioning. The detectives did so, and "although [Dunaway] was not told that he was under arrest, he would have been physically restrained if he had attempted to leave."

Dunaway was taken to headquarters, given his Miranda warnings and interrogated. Eventually he made statements implicating himself in the crime in question. He was convicted, and the New York state appellate courts upheld the conviction.[75]

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the involuntary transportation of someone to a police station a seizure?

HOLDING: Yes.

DISCUSSION: The Court held that "there [could] be little doubt that [Dunaway] was 'seized' in the Fourth Amendment sense when he was taken involuntarily to the police station." The prosecution conceded that "the police lacked probable cause to arrest [Dunaway] before his incriminating statement during interrogation." However, the government argued that the "seizure of [Dunaway] did not amount to an arrest and was therefore permissible under the Fourth Amendment because the police had a 'reasonable suspicion' that [Dunaway] possessed 'intimate knowledge about a serious and unsolved crime.'"

In this situation, the "detention of [Dunaway] was in important respects indistinguishable from a traditional arrest." Just because he "was not told he was under arrest, was not 'booked,' and would not have had an arrest record if the interrogation had proved fruitless, while not insignificant for all purposes … obviously do not make [Dunaway's] seizure even roughly analogous to the narrowly defined intrusions involved in Terry and its progeny."

Scott v. Harris, 550 U.S. 372 (2007)

FACTS: In late March 2001, a deputy sheriff in Coweta County, Georgia, "clocked [Harris's] vehicle traveling at 73 miles per hour on a road with a 55-mile-per-hour speed limit." The deputy activated his emergency equipment and tried to pull the vehicle over, but instead, it "sped away, initiating a chase down what is in most portions a two-lane road, at speeds exceeding 85 miles per hour." Deputy Scott and others joined in the chase. At one point, the responding officers tried to box in the Harris vehicle, and Harris "evaded the trap by making a sharp turn, colliding with Scott's police car" and escaped. Scott then took over as the lead vehicle[76] and six minutes, and ten miles, into the chase, Scott made an "attempt to terminate the episode by employing a

"Precision Intervention Technique ('PIT') maneuver, which cause[d] the fleeing vehicle to spin to a stop." Scott was instructed by his supervisor to "[g]o ahead and take him out." Scott then "applied his push bumper to the rear of [Harris's] vehicle" and Harris "lost control of [the] vehicle, which left the roadway, ran down an embankment, overturned, and crashed." Harris was badly injured and was rendered a quadriplegic.

Harris filed suit under 42 U.S.C. §1983, arguing that his injuries were caused by excessive use of force by Deputy Scott. Scott filed for summary judgment, but the U.S. District Court in the Northern District of Georgia denied the motion, finding that there were "material issues of fact" which prevented the Court's grant of the motion. The Eleventh Circuit Court of Appeals affirmed that decision, finding that Scott's action could constitute "deadly force" and that a reasonable jury might find that his use of force was not appropriate.

ISSUE: Is the use of a PIT maneuver, a seizure under the 4th Amendment, reasonable when the suspect would continue to drive in a such a reckless and dangerous manner that it puts other persons at risk?

HOLDING: Yes.

DISCUSSION: The Court stated, "all that matters is whether Scott's actions were reasonable." Scott defended his actions by "pointing to the paramount governmental interest in ensuring public safety, and [Harris] nowhere suggests this was not the purpose motivating Scott's behavior." To decide upon reasonableness, the Court "must consider the risk of bodily harm that Scott's actions posed to [Harris] in light of the threat to the public that Scott was trying to eliminate." The Court found it "clear from the videotape that [Harris] posed an actual and imminent threat to the lives of any pedestrians who might have been present, to other civilian motorists, and to the officers involved in the chase." The Court found it "equally clear that Scott's actions posed a high likelihood of serious physical injury or death to [Harris] – though not the near *certainty* of death posed by" a shooting such as occurred in Garner. It was Harris, "after all, who intentionally placed himself and the public in danger by unlawfully engaging in the reckless, high-speed flight that ultimately produced the choice between two evils that Scott confronted."

The Court continued:

> Multiple police cars, with blue lights flashing and sirens blaring, had been chasing [Harris] for nearly 10 miles, but he ignored their warning to stop. By contrast, those who might have been harmed had Scott not taken the action he did were entirely innocent. We have little difficulty in concluding it was reasonable for Scott to take the action that he did."

The U.S. Supreme Court found that Deputy Scott was entitled to summary.

Florida v. Bostick, 501 U.S. 429 (1991)

FACTS: Two Broward County Sheriff's Office deputies boarded a bus bound from Miami to Atlanta during a stopover in Fort Lauderdale, Florida. Both displayed badges and one carried a zipper pouch used to carry handguns. (At no time did the officers display a gun.)

The officers asked Bostick for his identification and ticket, which he produced. Both were returned. Persisting, the officers asked Bostick if they could search his luggage; he agreed. Cocaine was discovered in the second piece of luggage. (Bostick stated that he did not give consent to search the second bag, but the trial court found that he did give consent.)

The Supreme Court of Florida reasoned that Bostick was seized because a reasonable passenger would not have felt free to leave the bus and avoid questioning.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a request to search luggage (absent other factors) a seizure?

HOLDING: No.

DISCUSSION: The Supreme Court decided that the Florida court's reliance on a single issue, that the encounter took place on a bus, as too restrictive, and that it was more appropriate to look at the totality of the circumstances surrounding the encounter. The correct issue is whether the police conduct in question would have communicated to a reasonable person that the person was free to refuse the officer's request or otherwise end the meeting.

U.S. v. Place, 462 U.S. 696 (1983)

FACTS: Place was waiting in line at Miami International Airport when his behavior attracted the attention of narcotics agents. The officers approached Place and asked for identification, which he provided. The officers asked for and received consent to search two checked suitcases. However, because the plane was ready to depart, they did not search the suitcases at that time.

After he left, the officers discovered some discrepancies in addresses on his luggage tags. (Investigation revealed neither address existed.) They contacted New York DEA and New York based agents approached Place as he deplaned at La Guardia Airport. The New York DEA agents asked for and received identification. Place refused to consent to a search of his luggage.

The agents advised Place that they were going to hold the luggage and seek a federal warrant to search the luggage. The DEA agents transported the luggage to Kennedy Airport, where the suitcases were subjected to a "sniff test" by a drug canine. The dog reacted positively to one of the cases. At that point, 90 minutes had elapsed. The agents later received a search warrant and opened the suitcases, finding cocaine in one of them.

Place was convicted of a drug possession charge. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does the detention of luggage for the purposes of conducting a search constitute a seizure of the owner of the luggage?

HOLDING: Yes.

DISCUSSION: The limitations on the detention of a person apply to the detention of a person's luggage (or other containers). The agent made a seizure when he told Place he was taking the luggage to a judge to get a warrant. With reasonable suspicion, it is reasonable to *briefly* detain luggage for limited investigative purposes. One must consider the *length* of detention in determining whether the seizure is so minimally intrusive to be justified on reasonable suspicion. In assessing the length of detention, one must consider whether police diligently pursue their investigation. In this case, agents knew when the flight would arrive and had ample time to arrange for the dog to be brought to their location. This would have minimized the intrusion on Place's Fourth Amendment interest.

The Court found that holding the luggage was an unreasonable seizure.

Torres v. Madrid, 592 U.S. 306 (2021)

FACTS: On July 15, 2014, four officers from the New Mexico State Police arrived at an apartment complex in Albuquerque to execute an arrest warrant for a woman accused of both white-collar crimes and "drug trafficking, murder, and other violent crimes." Upon arrival, the officers observed Torres standing with another person near a Toyota FJ Cruiser in the complex's parking lot. Officer Williamson concluded that neither Torres nor her companion was the target of the warrant. When the officers approached the vehicle, the companion fled, and Torres got into the driver's seat of the vehicle. The officers, wearing tactical vests marked with police identification, attempted to speak with Torres. Torres failed to notice the officers until one officer attempted to open the vehicle's door.

Torres, who was experiencing methamphetamine withdrawal symptoms, believe that the officers were armed carjackers trying to steal her car. Acting upon her believe that she was being carjacked, Torres hit the gas pedal to escape. Officers Madrid and Williamson stood in the path of the vehicle, drew their service pistols, and fired 13 shots at Torres, striking her twice in the back and temporarily paralyzing her left arm. Using only her right hand, Torres drove out of the complex's parking lot and stopped in another parking lot. After asking a bystander to report an attempted carjacking, Torres stole a Kia Soul that happened to be idling nearby and drove 75 miles to Grants, New Mexico. Torres sought treatment at a hospital in Grants but was airlifted to a hospital in Albuquerque for appropriate care. Police arrested Torres and she pleaded no contest to aggravated fleeing from a law enforcement officer, assault on a peace officer, and unlawfully taking a motor vehicle.

Torres filed a lawsuit pursuant to 42 U.S.C. §1983 claiming that Officers Madrid and Williamson applied excessive force, making the shooting an unreasonable seizure under the Fourth

Amendment. The district court granted summary judgment to the officers. The Tenth Circuit affirmed on the ground that "a suspect's continued flight after being shot by police negates a Fourth Amendment excessive-force claim." Under Tenth Circuit precedent, "no seizure can occur unless there is physical touch or a show of authority," and that "such physical touch (or force) must terminate the suspect's movement" or otherwise give rise to physical control over the suspect.

ISSUE: Does a seizure occur when law enforcement applies physical force to the body of a person with intent to restrain, even if the force does not succeed in subduing the person?

HOLDING: Yes. The application of physical force to the body of a person with intent to restrain is a seizure even if the person does not submit and is not subdued.

DISCUSSION: This case concerns the seizure of a person, which can take the form of "physical force" or a "show of authority" that "in some way restrain(s) the liberty" of a person. The Fourth Amendment protects the right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures. Supreme Court precedent has interpreted the term "seizure" by consulting the common law of arrest. The arrest of a person is a seizure. The common law considered the application of physical force of the body of a person with the intent to restrain to be an arrest even if the person does not yield.

The appropriate inquiry is whether the challenged conduct by law enforcement manifests an intent to restrain. This test does not depend on either the subjective motivation of the officer or the subjective perception of the suspect. The type of force used also does not impact this test. A seizure requires the use of force with intent to restrain, as opposed to force applied by accident or for some other purpose. A seizure by force lasts only as long as the application of force unless the suspect submits.

In this case, the officers applied physical force to Torres' body by shooting her and objectively manifested an intent to restrain her from driving away. The Supreme Court held that the officers seized Torres for the instant that the bullets struck her. Determining whether a seizure exists is only the first step in the analysis. The Fourth Amendment does not forbid all seizures – just unreasonable seizures.

The Supreme Court was only asked to determine whether Torres was seized. The Supreme Court did not consider whether the seizure was reasonable, damages caused by the seizure, or whether the officers were entitled to qualified immunity. Those questions will be determined on remand.

The Supreme Court vacated the judgment and remanded for further proceedings.

Definition of Search

Bond v. U.S., 529 U.S. 334 (2000)

FACTS: Steven Dewayne Bond was traveling on a bus from California to Arkansas. The bus stopped at a Border Patrol checkpoint in Texas, where a Border Patrol agent boarded the bus to check the immigration status of the passengers. After completing the check, the agent walked forward from the back of the bus, squeezing soft luggage that the passengers had placed in the overhead compartments. He squeezed a bag belonging to Bond that was in the compartment over Bond's head and felt a solid brick-like object. Bond admitted the bag was his and gave consent to the agent to open it. The agent discovered a brick of methamphetamine and arrested Bond. Bond's motion to suppress the drugs as fruit of an illegal search was denied, and he was convicted of possession with intent to distribute methamphetamine.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the squeezing of soft-sided luggage a "search?"

HOLDING: Yes.

DISCUSSION: The U. S. Supreme Court held that the agent's manipulation of the carry-on bag violated the Fourth Amendment prohibition against unreasonable searches. The Court rejected the government's argument that by placing his bag in the passenger compartment, and thus exposing it to the public, Bond did not have a reasonable expectation of privacy that his bag would not be physically manipulated. After all, it would not be unusual for such a bag to be touched and moved by other passengers while traveling. The Court distinguished this case from California v. Ciraolo,[77] and Florida v. Riley[78] which the government had cited as justification. In Ciraolo and Riley, the Court had held that matters open to public observation are not protected. The Court distinguished those cases by noting that they had involved only visual observation, not tactile observation of an opaque bag by manipulating it. The Court noted that while carry-on bags are not part of the person, a traveler uses them to transport personal items that they wish to keep with them.

Further, the Court stated that while a traveler certainly has to expect that a carry-on bag might be handled or moved by other passengers or employees of the carrier, the traveler does not have an expectation that they will "feel the bag in an exploratory manner". Therefore, the physical manipulation of the bag was a warrantless search which violated the Fourth Amendment, and the Court reversed the conviction.

Illinois v. Caballes, 543 U.S. 405 (2005)

FACTS:[79] On November 12, 1998, Trooper Gillette (Illinois State Police) stopped Caballes on I-80, for driving 71 in a 65-mph zone. When Gillette called in the stop on the radio, Trooper Graham (Drug Interdiction Team) overheard it and told dispatch that he was going to meet Gillette to allow his dog to sniff the vehicle. (Gillette specifically did not request this, however.)

Gillette approached Caballes, told him the reason for the stop and asked for his documents, which Caballes produced. Gillette saw "an atlas on the front seat, an open ashtray, the smell of air freshener, and two suits hanging in the back seat without any other visible luggage." Gillette told Caballes to pull his car off to the shoulder and to come back to Gillette's car, because it was raining. Caballes did so, and Gillette told him he was going to write him a warning citation. Gillette called in to check on Caballes' license status and for any possible warrants. While waiting, Gillette asked him where he was going and why he was "dressed up" - Caballes was apparently wearing a suit. Caballes stated he was moving from Las Vegas to Chicago and normally dressed up because he was a salesman, but he was not currently employed. Gillette later testified that Caballes "continued to act nervous even after being told he was receiving only a warning ticket" and that he found that unusual.

Gillette learned from dispatch that Caballes has "surrendered a valid Illinois to Nevada" but the status of his Nevada license would take two more minutes. Gillette asked for a criminal history. He asked Caballes for permission to search his vehicle; Caballes refused. Gillette asked Caballes if he'd ever been arrested, which Caballes denied. Dispatch reported that Caballes had two prior arrests (but apparently had not been convicted) for distribution of marijuana. While writing the warning ticket, Gillette was interrupted by another officer on the radio asking him about something unrelated. Gillette was still writing the warning when Graham arrived with his dog and began walking around Caballes' car. In less than a minute, the dog had alerted at the trunk, and Graham informed Gillette of the alert. Gillette searched the trunk and found marijuana. Caballes was charged with cannabis trafficking. Caballes requested suppression and was denied by the trial court, where he was convicted.

Caballes appealed. The appellate state court affirmed, finding that the police "did not need reasonable articulable suspicion to justify the canine sniff and that, although the criminal history check improperly extended defendant's detention, the delay was de minimis."

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does a sniff by a police dog, that reveals nothing but the presence of contraband, during a lawful traffic stop and from a place where the dog has a right to be, constitute a warrantless search which violates the Fourth Amendment?

HOLDING: No.

DISCUSSION: The Court noted that "[o]fficial conduct that does not 'compromise any legitimate interest in privacy' is not a search subject to the Fourth Amendment."[80] Any interest a person might have in "possessing contraband cannot be deemed 'legitimate.'" The Court drew heavily upon its opinion in U.S. v. Place,[81] in which it "treated a canine sniff by a well-trained narcotics dog as 'sui generis'[82] because it 'discloses only the presence or absence of narcotics, a contraband item.'" In this situation, "the dog sniff was performed on the exterior of respondent's car while he was lawfully seized for a traffic violation."

The Court went to great lengths to distinguish this case from Kyllo v. U.S., noting that the "legitimate expectation that information about perfectly lawful activity will remain private is

categorically distinguishable from [one's] hopes or expectations concerning the non-detection of contraband in the trunk of his car." The Court vacated the judgment of the Illinois Supreme Court and remanded the case for further proceedings.

SEIZURE - SITUATIONS THAT LACK FOURTH AMENDMENT PROTECTION

Abandoned Property

California v Greenwood, 486 U.S. 35 (1988)

FACTS: Acting on information indicating that Greenwood might be engaged in narcotics trafficking, police obtained from the trash collector garbage bags left on the curb in front of Greenwood's house. Based on evidence found in the trash, police obtained a search warrant to search Greenwood's house and found quantities of cocaine and hashish. Greenwood and others were arrested and released on bail. The police again received information that Greenwood was continuing to engage in narcotics trafficking. The police again obtained Greenwood's trash from the trash collector. A second search warrant was obtained. The police found more narcotics and evidence of narcotics trafficking. Greenwood was again arrested.

Greenwood claimed that the search of the trash violated his Fourth Amendment rights. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does the Fourth Amendment prohibit a warrantless seizure and search of garbage left for collection outside the curtilage of a home?

HOLDING: No.

DISCUSSION: Greenwood had no expectation of privacy in the garbage bags left at the curb (the usual place for collection) outside his house. Abandoning the garbage to the public is sufficient to defeat the Fourth Amendment claim. Society does not accept as objectively reasonable that abandoned property left at the curb for disposal is private. It is common knowledge that "plastic garbage bags left on or at the side of a public street are readily accessible to animals, children, scavengers, snoops, and other members of the public." Moreover, Greenwood placed his refuse at the curb for the express purpose of conveying it to a third party, the trash collector, who might have himself have sorted through the trash or permitted others, such as the police, to do so.

Knock-and-Talk

Quintana v. Commonwealth, 276 S.W.3d 753 (Ky. 2008)

FACTS: The court decided two knock-and-talk cases together. Facts are provided for each case.

Quintana: Police received an anonymous tip that an individual named Eric was selling marijuana. Based on this tip, the police visited Eric Quintana's residence to speak with him. An officer knocked on the front door of the residence, which was a converted garage. When no one answered, the officer went into the backyard in search of another door. However, the officer walked thirty to forty feet across the back of Quintana's home, stopping at a window near the far end of the house. The officer alleged he could clearly smell the odor of marijuana coming from an air-conditioner unit in the window and obtained a search warrant based on this information. During the warrant execution, over ninety (90) marijuana plants were discovered, and Quintana was charged with cultivating marijuana and possession of drug paraphernalia. He entered an *Alford* plea, pending the outcome of a motion to suppress the evidence of the warrant, claiming the knock-and-talk at his residence was unlawful.

Bottom: Melissa Bottoms ("Melissa") purchased two sixteen-ounce bottles of iodine, a key ingredient in methamphetamine. Finding the purchase suspicious, the store manager called the police and provided the type of car, the license plate number, and a description of the purchase, claiming she looked "strung out."[83] Investigation revealed the car was registered to Brian ("Brian") or Melissa Bottoms and the Bottoms' address. Officers observed the reported vehicle at the Bottoms' residence. Officers then approached the front door of the residence to conduct a knock-and-talk. Brian answered and Melissa appeared with iodine stains on her hands. From their position on the front porch, the officers could smell chemicals. When asked about the iodine, Melissa provided one story, then another, and then refused to speak further with the officers. They requested consent to search the home and Brian refused. The officers left to obtain a search warrant based on the information learned during the knock-and-talk. A search warrant was obtained and executed, revealing "a methamphetamine manufacturing operation, marijuana, and drug paraphernalia."[84] Brian and Melissa moved to suppress this evidence claiming the knock-and-talk at their residence was unlawful.

ISSUE: Under what parameters may a "knock-and-talk" be conducted consistent with the Fourth Amendment?

HOLDING: The Court held that, "a knock and talk is limited to only the areas that the public can reasonably expect to access, and any part of the curtilage may be protected, depending on the circumstances of each area . . ."[85]

DISCUSSION: Where the officer knocks matters; the Court reasoned that an officer with a legitimate purpose has the same right to enter an area impliedly open for public use as any other member of the public—such as delivery persons, Girl Scouts, or pollsters.

The front door of the home is normally the most utilized entrance for members of the public; however, that is not an absolute rule. Going around to a back door may or may not be permissible, depending on the location that a member of the public would normally access that residence. For that reason, each case should be analyzed on its own merits and facts specific to the location of the knock-and-talk. Factors to be considered are the curtilage question, as well as the way the officer asks for consent or interacts with the resident. The curtilage issue must be addressed utilizing the factors from U.S. v. Dunn.[86]

In Quintana, the knock-and-talk by the police was not within the parameters of the Fourth Amendment because the officer went beyond the public entrance of the home when he entered the backyard. He stood under the air conditioner in order to smell the odor of marijuana. Per the Dunn factors, the area under the air conditioner is extremely close to the home, within the home's fenced-in area, and was at the back of the house, private from public access. This was a violation of Quintana's Fourth Amendment rights.

In Bottoms, the knock-and-talk took place at the front door of the residence. The officers conducted a thorough investigation before approaching the home. Once at the home, the officers properly requested consent to search, which was denied. They used their observations of Melissa, in addition to the facts of their investigation, and did not go beyond the area that could be accessed by the public. The knock-and-talk activity engaged in by officers was appropriate, and the facts gained from the knock-and-talk were properly used in obtaining a search warrant for the residence.

Plain View

Coolidge v. New Hampshire, 403 U.S. 443 (1971)

FACTS: On January 13, 1964, Pamela Mason, 14, left her home in Manchester, New Hampshire during the evening hours in a heavy snowstorm. Apparently, Mason had received a call from a man requesting a babysitter. Some eight days later, "her body was found by the site of a major north-south highway several miles away," the victim of a homicide. The police investigation led to Edward Coolidge, when a neighbor reported that Coolidge had been away from home on the evening of the girl's disappearance. The police asked Coolidge a number of questions, including whether he owned any guns. Coolidge admitted to having two shotguns and a rifle. Coolidge agreed to take a lie-detector test on his next day off. His actions were characterized as cooperative.

On Sunday morning, the police contacted him concerning the lie detector test and "asked him to come down to the police station for the trip to Concord" where the test was to take place. That evening, two plainclothes officers arrived at the Coolidge house, where Coolidge's wife and mother were awaiting his return. They told Coolidge's mother to leave, and told his wife that Coolidge was in "serious trouble" and would likely not return that night. The officers were apparently not the ones who had been there before. Upon request, his wife produced four guns for their inspection and gave them clothing that she "thought her husband might have been wearing on the evening" Mason disappeared. Coolidge was kept in jail overnight on an unrelated charge but released the next morning. The police continued their investigation, and they "accumulated a quantity of evidence to support the theory that it was he who had killed Pamela Mason." On February 19, the prosecution team concluded that it had sufficient "evidence to justify the arrest of Coolidge on the murder charge and a search of his house and two cars." The Manchester police chief made a formal application for the warrants.

The "complaint supporting the warrant for a search of Coolidge Pontiac automobile … stated that the affiant 'has probable cause to suspect and believe, and does suspect and believe, and herewith offers satisfactory evidence, that there are certain objects and things used in the

Commission of said offense, now kept, and concealed in or upon a certain vehicle ….'" The warrant was issued, executed and the vehicles seized. (In fact, the vehicles were searched a total of three times over a year and a half period.)

Coolidge was charged and tried for the murder. A variety of evidence was admitted, including the rifle (alleged to be the murder weapon) and vacuum sweepings from the vehicle and the clothing. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May an item clearly linked to a crime be seized if it is in plain view?

HOLDING: No (but see discussion).

DISCUSSION: Coolidge's first claim was that the warrant was invalid because it was "not issued by a 'neutral and detached magistrate.'" The "determination of probable cause was made by the chief 'government enforcement agent' of the State – the Attorney General – who was actively in charge of the investigation and later was to be chief prosecutor at the trial." The State argued that "any magistrate, confronted with the showing of probable cause made by the … police chief, would have issued the warrant in question." The Court noted that "prosecutors and policemen simply cannot be asked to maintain the requisite neutrality with regard to their own investigations." The Court found that the warrant could not stand.

To save the conviction, the State next proposed "three distinct theories to bring the facts of the case within one or another of the exceptions to the warrant requirement." First, the state suggested that the search of the vehicle was incident to a valid arrest. However, even assuming that Coolidge's arrest, inside his home was valid, the search of a vehicle outside, in the driveway, was certainly outside his control. (And in fact, the "vehicle was not touched until Coolidge had been removed from the scene.") Controlling case law at the time "make it clear beyond any question that a lawful pre-Chimel arrest of a suspect outside his house could never by itself justify a warrantless search inside the house." There was nothing that would suggest that "a different result" would be the case under the reverse. Even assuming that a search of the vehicle in the driveway was permitted, Preston v. U.S.[87] made it "plain that they could not legally seize the car, remove it, and search it at their leisure without a warrant."

Next, the State proposed that a Carroll search was appropriate. The Court, however, noted that there was "no suggestion that, on the night in question, the car was being used for any illegal purpose, and it was regularly parked in the driveway of the house." The objects believed to be in the vehicle "were neither stolen nor contraband nor dangerous." There was no way Coolidge could have "gained access to the automobile after the police arrived on his property." The Court agreed that there was probable cause but found no exigency to justify a search.[88]

Third, the state put forth that the vehicle itself was an "instrumentality of the crime" and could be seized because it was in plain view. The Court, however, noted that if "the initial intrusion that brings the police within plain view … is supported," either by a warrant or "by one of the recognized exceptions to the warrant requirement," the seizure will be appropriate. In addition, the nature of the item must be "immediately apparent." The Court noted that "plain view alone is never enough to justify the warrantless seizure of evidence." Even with "[i]ncontrovertible

testimony of the senses that an incriminating object is on premises belonging to a criminal suspect may establish the fullest possible measure of probable cause," it has still "repeatedly stated and enforced the basic rule that the police may not enter and make a warrantless seizure." In addition, plain view must be inadvertent, and "where the discovery is anticipated, where the police know in advance the location of the evidence and intend to seize it, the situation is entirely different."

In this case, the Court found that the "'plain view' exception cannot justify the police seizure of the Pontiac car in this case," as "[t]hey had ample opportunity to obtain a valid warrant; they knew the automobile's exact description and location well in advance; they intended to seize it when they came upon Coolidge's property."

The Court found the seizure of the car to be unconstitutional.

Texas v. Brown, 460 U.S. 730 (1983)

FACTS: On the evening in question, a Fort Worth, Tex., police officer stopped Brown's automobile at night at a routine driver's license checkpoint, asked him for his license, shined his flashlight into the car, and saw an opaque, green party balloon, knotted near the tip, fall from Brown's hand to the seat beside him. Brown rummaged in the glovebox for his operator's license. Knowing from experience that narcotics were often packaged in that way, the "officer shifted his position to obtain a better view" and "noticed small plastic vials, loose white powder, and an open bag of party balloons in the glove compartment." The officer also used his flashlight to illuminate the area. His search being fruitless, Brown admitted to the officer that he was not in possession of his driver's license. The officer asked Brown to get out of the car, and he did so. The officer picked up the green balloon. The officer found it "to contain a powderly substance within its tied-off portion." Brown was arrested and his vehicle searched.[89] Upon testing, the powder was confirmed to be heroin.

Brown was charged and requested suppression. The trial court denied the motion and Brown was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is evidence illuminated by a flashlight, inside the passenger compartment of a car considered to be in "plain view?"

HOLDING: Yes.

DISCUSSION: The Court noted that the Texas courts had relied heavily on its decision in Coolidge v. New Hampshire.[90] The Court explained that once an object has been observed in "plain view," "the owner's remaining interests in the object are merely those of possession and ownership." The Court's decisions have "come to reflect the rule that if, while lawfully engaged in an activity in a particular place, police officers perceive a suspicious object, they may seize it immediately."

The Court also ruled that it was "beyond dispute that [the officer's] action in shining his flashlight to illuminate the interior of Brown's car trenched upon no right secured to the latter by the

Fourth Amendment." In a much earlier case, U.S. v. Lee,[91] the Court had ruled that the use of a searchlight to illuminate an area did not constitute a search. In addition, the fact that the officer "changed his position" and "bent down" to view the contents of the glove compartment – in fact, any member of the general public could have done the same. "There is no legitimate expectation of privacy … shielding that portion of the interior of an automobile which may be viewed from outside the vehicle by inquisitive passerby or diligent police officers." As such, there was no doubt that the first prong of the "plain view" analysis was met – in that the officer was where he was lawfully allowed to be when he observed the contraband.

Next, the Court discussed whether the "incriminating nature of the items [were] 'immediately apparent' to the police officer." The Texas appellate court interpreted this to mean that the officer "must be possessed of near certainty as to the seizable nature of the items." The Court acknowledged that its use of the phrase "immediately apparent" "was very likely an unhappy choice of words, since it can be taken to imply that an unduly high degree of certainty as to the incriminatory character of evidence is necessary for an application of the 'plain view' doctrine," Instead, the Court looked to its opinion in Colorado v. Bannister,[92] and held, specifically, that the appropriate standard for the second prong of the plain view analysis is probable cause. In addition, the Court found that the Texas officer did possess sufficient probable cause as to justify his seizure of the green balloon.

Horton v. California, 496 U.S. 128 (1990)

FACTS: Horton committed an armed robbery and took jewelry and cash from his victim. In committing the robbery, Horton and his partner were armed with a machine gun and a stun gun. Investigation by officers developed probable cause to search Horton's house for the proceeds of the robbery and the weapons. The search warrant, signed by the magistrate, authorized the search for the proceeds only. During the search, officers found an Uzi, a handgun, and two stun guns. Horton claimed that the seizure of the weapons violated the Fourth Amendment since the weapons were not on the warrant. The state contended that the weapons were in plain view.

ISSUE: Are illegal weapons (or other items recognized as contraband) left in plain view subject to seizure when the warrant under which the search is being performed does not mention them?

HOLDING: Yes.

DISCUSSION: Plain view is a legal concept that allows officers to make a warrantless seizure of evidence. The Court specified three factors that must be present for the plain view doctrine to apply. The officer"

1. Must have a lawful right to be in the location where the evidence can be seen; AND
2. Must be able to lawfully see an item immediately apparent to the officer to be contraband; AND
3. Must have a lawful right of access to the object itself.

The Court held that while the inadvertent discovery of contraband is a characteristic of most plain view searches, it is not a **necessary** condition that must be present for the plain view doctrine to apply.

The Supreme Court upheld the seizure.

Minnesota v. Dickerson, 508 U.S. 366 (1993)

FACTS: On November 9, 1989 at 8:15 p.m., officers saw Dickerson leave an apartment building known to the officers as a "crack house." (One of the officers had executed several warrants on the property and the police had received many complaints of drug sales on the property.) Dickerson walked toward the marked police car. The officer's suspicion was aroused when Dickerson looked at the car, made eye contact with the officer, then abruptly turned and entered an alley on the side of the apartment building.

The officer stopped Dickerson and patted him down for weapons. The officer found no weapons but did notice a lump in a coat pocket. The officer examined the lump with his fingers and determined that the object felt like a lump of crack. The officer reached in the pocket and retrieved a lump of crack cocaine. Dickerson claimed this search violated the Fourth Amendment because it exceeded the scope of the frisk. Dickerson was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May officers seize nonthreatening contraband found on a person during the course of a Terry frisk?

HOLDING: Yes.

DISCUSSION: If a police officer lawfully pats down a suspect's outer clothing and feels an object whose contour and mass makes its identity immediately apparent, there has been no invasion of the suspect's privacy beyond that already authorized by the officer's search for weapons. However, the continued exploration of the item after concluding the item is not a weapon exceeds the scope of lawful authority.

In this case, Dickerson's conviction was ultimately reversed because the identity of the drugs was not immediately apparent from the pat down. It was only after the officer had articulated his fingers was the lump of crack recognizable. This articulation of the fingers was deemed by the court to be a search, and beyond the scope of a lawful frisk, and thus impermissible without a warrant.

Johnson v. U.S., 333 U.S. 10 (1948)

FACTS: At about 7:30 p.m. on the evening in question, Lt. Belland, Seattle PD narcotics detail, received information from a CI that "unknown persons were smoking opium at the Europe Hotel." The informer was taken to the hotel, and he went in, returning immediately to report the smell of burning opium in the hallway. Belland returned a little later with other officers. When the officers entered the hotel, they immediately recognized the smell of burning opium "which to

them was distinctive and unmistakable." They went to the room from which the odor was emanating but did not know who was occupying the room. They knocked, and when asked who was at the door, Lt. Belland identified himself by name. After a short delay, during which the officers heard "shuffling or noise" from inside, Johnson (the defendant) answered the door. When Belland told Johnson he needed to talk to her, Johnson "stepped back acquiescently and admitted us." Lt. Belland told Johnson that they had smelled opium, but Johnson denied it. Belland told Johnson she was under arrest and that they were going to search the room. The search "turned up incriminating opium and smoking apparatus, the latter being warm, apparently from recent use."

Johnson requested suppression from the trial court, which was denied, and she was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May an officer's recognition of the presence of a distinctive odor justify the issuance of a search warrant for the location where the odor was detected?

HOLDING: Yes.

DISCUSSION: Johnson argued that the presence of odor alone was not enough to constitute probable grounds for any search. The Court disagreed. "If the presence of odors is testified to before a magistrate and he finds the affiant qualified to know the odor, and it is one sufficiently distinctive to identify a forbidden substance, this Court has never held such a basis insufficient to justify issuance of a search warrant. Indeed, it might very well be found to be evidence of most persuasive character."

The Court went on to state that:

> The point of the Fourth Amendment, which is often not grasped by zealous officers, is not that it denies law enforcement the support of the usual inferences that reasonable men draw from evidence. Its protection consists in requiring that those inferences be drawn by a neutral and detached magistrate instead of being judged by the officer engaged in the often-competitive enterprise of ferreting out crime. Any assumption that evidence sufficient to support a magistrate's disinterested determination to issue a search warrant will justify the officers in making a search without a warrant would reduce the Amendment to a nullity and leave the people's homes secure only in the discretion of police officers. Crime, even in the privacy of one's own quarters, is, of course, of grave concern to society, and the law allows such crime to be reached on proper showing. The right of officers to thrust themselves into a home is also a grave concern, not only to the individual but also to a society which chooses to dwell in reasonable security and freedom from surveillance. When the right of privacy must reasonably yield to the right of search is, as a rule, to be decided by a judicial officer, not by a policeman of Government enforcement agent.

However, the Court did note that "[t]here are exceptional circumstances in which, on balancing the need for effective law enforcement against the right of privacy, it may be contended that a magistrate's warrant for search may be dispensed with." But, in this situation, the Court did not

find that to be the case. The officers gave no reason for failing to get a warrant except for inconvenience and slight delay. The Court stated that "[t]hese are never very convincing reasons and, in these circumstances, certainly are not enough to bypass the constitutional requirement."

In Johnson's case, they continued:

> No suspect was fleeing or likely to take flight. The search was of permanent premises, not a movable vehicle. No evidence or contraband was threatened with removal or destruction, except perhaps the fumes which we suppose in time will disappear. But they were not capable at any time of being reduced to possession for presentation to court. The evidence of their existence before the search was adequate and the testimony of the officers to that effect would not perish from the delay in getting a warrant.

The U.S. Supreme Court reversed Johnson's conviction.

NOTE: *While the Court determined that "plain smell" might be sufficient probable cause to obtain a warrant, this does not mean that the officer may immediately search and seize the contraband. To immediately search and seize the contraband, the officer must have consent or an exception to the Fourth Amendment's warrant requirement.*

Flyovers

California v. Ciraolo, 476 U.S. 207 (1986)

FACTS: Santa Clara police received an anonymous telephone tip that marijuana was growing in Ciraolo's backyard. The yard was surrounding by a six-foot outer fence and a 10-foot inner fence, completely enclosing the yard. The investigating officer secured a small, fixed-wing plane and flew over the yard at an altitude of 1,000 feet, within legal navigable airspace. Officers in the plane readily identified the eight-to-ten-foot-tall marijuana plants growing in the small backyard and took photos of the plants. Based on this information, police obtained a search warrant. The next day, 73 marijuana plants were seized from the property.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is there an expectation of privacy in an enclosed backyard, from a fixed-wing aircraft flying overhead?

HOLDING: No.

DISCUSSION: The Court discussed the two prongs of the Katz rationale, the subjective and the objective expectations of privacy in a particular situation. The Court determined that while Ciraolo had manifested a subjective expectation of privacy in erecting the fences, it was unreasonable to award an objective expectation of privacy in an outside area. The Court determined that the "Fourth Amendment simply does not require the police traveling in the public airways in the public airways at this altitude to obtain a warrant in order to observe what is visible to the naked eye."

The U.S. Supreme Court held that the Fourth Amendment was not violated.

Dow Chemical Co. v. U.S., 476 U.S. 227 (1986)

FACTS: Dow Chemical operated a large chemical plant with numerous buildings, with outdoor equipment and piping running between the buildings. Dow maintained elaborate fencing and security measures around the perimeter, and it was not possible to see the buildings from ground-level outside the grounds of the plant.

The EPA made a request to do an administrative inspection of the plant and was refused. The EPA employed a photographer to take photographs of the plant from the air. Upon learning of this, Dow sued the EPA for an illegal search, arguing an expectation of privacy existed in the space above the location.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Was the taking of aerial photographs of a business facility a violation of the Fourth Amendment?

HOLDING: No.

DISCUSSION: The taking of aerial photographs, from proper navigable airspace, is not a prohibited search. Open areas of a commercial property are not entitled to the protection given to the curtilage, in effect, businesses have no curtilage, where the occupants would have a reasonable and legitimate expectation of privacy. For the purposes of aerial surveillance, the commercial structure is comparable to an "open field" in which an individual is not awarded an expectation of privacy.

The Court also stated that the "mere fact that human vision is enhanced somewhat," by the means of a camera or magnifying apparatus, does not change the result.

The U.S. Supreme Court held that the search did not violate the Fourth Amendment and affirmed the judgment.

Florida v. Riley, 488 U.S. 445 (1989)

FACTS: Acting upon an anonymous tip that Riley was growing marijuana at his residence, the Pasco County Sheriff's Office started an investigation. Riley lived in a rural area, in a mobile home. A greenhouse was located behind the mobile home. Due to fences and other screening, it was impossible to see into the greenhouse. However, two panels of the roof were missing. The entire property was posted against entry. The investigating officer arranged for a helicopter ride over the property. From approximately 400 feet, he was able to look down into the greenhouse and observed what he believed to be, and what later proved to be, marijuana plants. A search warrant was obtained, and marijuana plants were found. Riley was charged and convicted with possession of marijuana.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is an officer's observation of enclosed property from the air, by helicopter, permissible without a warrant?

HOLDING: Yes.

DISCUSSION: Relying upon the related case of Ciraolo, the Supreme Court found no difference in an observation from a fixed-wing aircraft flying at a legal altitude and observation from a helicopter, also flying at a legal altitude, although that altitude was considerably lower than that allowed for fixed-wing planes.

The U.S. Supreme Court affirmed the conviction.

Open Fields

Oliver v. U.S. , 466 U.S. 170 (1984)

FACTS: Kentucky State Police narcotics agents, acting on a report that marijuana was being raised on Oliver's farm, went to the farm to investigate. They drove past Oliver's house to a locked gate with a "No Trespassing " sign, but with an open footpath around the gate on one side. The agents walked around the gate and alongside the road; they found a field of marijuana over a mile from Oliver's house. The evidence was suppressed. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does the "open fields" doctrine apply to areas outside the curtilage?

HOLDING: Yes.

DISCUSSION: The Court found that there is no reasonable expectation of privacy in open fields. Steps taken to protect privacy, such as erecting fences and "No Trespassing" signs around the property, do not establish the expectation of privacy in an open field that society recognizes as reasonable. Open fields do not provide the setting for those intimate activities that the Fourth Amendment is intended to shelter from government interference or surveillance. General property rights or property protected by laws of trespass have little or no relevance to the applicability of the Fourth Amendment.

The U.S. Supreme Court held that the evidence was admissible.

U.S. v. Dunn, 480 U.S. 294 (1987)

FACTS: DEA agents discovered that Carpenter had purchased large quantities of chemicals and equipment used to manufacture controlled substances. The DEA obtained a search warrant to place tracking devices on some of the equipment and chemical containers. The devices led them to Dunn's ranch. Aerial photographs showed the truck backed up to a barn behind the house. A perimeter fence surrounded the ranch and inside that area, several barbed wire fences

were erected. In particular, one was around the house area, which was 150 feet (50 yards) from the barn, and a wooden fence enclosed the front area of the barn. The barn itself had an open doorway surrounded by locked, waist-high gates.

The officers entered the fenced-in area and went to the front of the barn. They smelled chemicals and heard a motor running. The agents did not cross the locked gate, but using a flashlight, peered inside, and saw what they believed to be a drug lab. Twice the next day, they entered the ranch, confirming the presence of the lab, but did not enter the barn itself. They obtained a search warrant, seized chemicals, equipment and drugs from the property, and arrested Dunn.

Dunn challenged the entry of the property as a violation of the Fourth Amendment. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the entry of officers onto private property that is outside the curtilage of the residence permissible?

HOLDING: Yes.

DISCUSSION: The Court found that the barn was not within the protected "curtilage" of the property. The extent of the curtilage can be defined using four factors: 1) the proximity of the area to the home, 2) whether the area is within an enclosure (fence) that also surrounds the home, 3) the nature and use of the area and 4) the steps taken by owner to protect the area from view by passersby. In this situation, the barn was a considerable distance from the home, was not surrounded by the same fence as the home (but was inside the perimeter fence), the barn was obviously not used for residential purposes, and the barn did not have doors, but the interior was open to plain sight. The Court went on to comment that the fences were of the nature to contain livestock, not to block the view, and that the use of a flashlight to enhance sight was permissible.

The U.S. Supreme Court upheld Dunn's conviction.

Public Areas

U.S. v. Santana, 427 U.S. 38 (1976)

FACTS: On August 16, 1974, Officer Gilletti, an undercover officer with the Philadelphia police, arranged a heroin "buy" with McCafferty, from whom he had bought narcotics from before. The transaction was to occur at "Mom Santana's." Gilletti received the necessary marked cash from his department and transported McCafferty to Santana's residence. McCafferty took the money and went into the house, returning moments later with several glassine envelopes of heroin.

Gilletti, who was driving, then stopped the car, identified himself and arrested McCafferty. He told her they were returning to the Santana house and asked where the money might be found. She replied, "Mom has the money." Gilletti relayed that information to other officers and took

McCafferty to the police station. Officer Pruitt, with others, drove to the Santana residence. Upon arrival, they saw Santana standing in the threshold with a brown paper bag. They pulled to within 15 feet and got out of the van, shouting "police," and showing their credentials. Santana retreated into the house. They followed Santana and as they caught her, glazed paper packets of a white powder (later confirmed to be heroin) dropped to the floor. Another individual in the house, Alejandro, tried to grab the envelopes but was restrained. Santana was forced to empty her pockets and some of the marked money was found. She was indicted for distribution.

The trial court suppressed the heroin and the money, finding that the officers had overstepped their boundary. The United States appealed the suppression.

ISSUE: Is the threshold of a residence a public place?

HOLDING: Yes.

DISCUSSION: When Santana was standing in her threshold entryway of her house, she was in full view of the public. She was just as exposed to the public view as she would have been if she had been outside the house. The Court also held that her arrest, set in motion in a public place, could not be prevented by her retreat into the house, and that it was reasonable for the officers to follow her into the house under the "hot pursuit" doctrine of exigent circumstances.

The U.S. Supreme Court reversed the lower court's decision and remanded the case.

Consent

U.S. v. Watson, 423 U.S. 411 (1976)

FACTS: On August 17, 1972, an informant (Khoury) called a postal inspector, telling him that Watson "was in possession of a stolen credit card and had asked Khoury to cooperate in using the card to their mutual advantage." The postal inspector had worked with Khoury in previous cases, some also including Watson. They met a few days later, to exchange additional cards, and upon Khoury's signal (indicating that Watson in fact had additional cards), the officers moved in and arrested Watson. However, a search revealed that Watson had no additional cards in his possession. The inspector asked Watson if he could look inside his car, which was just outside, and Watson agreed. The postal inspector cautioned Watson that "[i]f I find anything, it is going to go against you," but Watson still agreed. Watson provided keys and the inspector searched, finding under a floor mat an envelope containing two cards with the names of other people.

Eventually, Watson was convicted and appealed. the U.S. Supreme Court agreed to hear the case.

ISSUE: May an arrested party give a valid consent?

HOLDING: Yes.

DISCUSSION: The Court quickly upheld the arrest by the postal inspector. With regards to the consent, the Court found that "[t]here was no overt act or threat of force against Watson proved or claimed." In addition, "[t]here were no promises made to him and no indication of more subtle forms of coercion that might flaw his judgment." Although he was under arrest, his consent was given on the public street, not in the "confines of the police station." "Moreover, the fact of custody alone has never been enough in itself to demonstrate a coerced confession or consent to search." That Watson claimed not to know that he could withhold consent, "though it may be a factor in the overall judgment, is not to be given controlling significance."

The U.S. Supreme Court upheld the conviction.

Florida v. Royer, 460 U.S. 491 (1983)

FACTS: Royer purchased a one-way airline ticket from Miami to New York City under an assumed name. His luggage was checked under that same assumed name. While in the waiting area, he was approached by two police detectives, who believed his actions and appearance fit a "drug courier profile." When requested, Royer produced identification, which carried his correct name, and the airline ticket, with the assumed name. When asked about the name discrepancy, he explained a friend had purchased the tickets. The detectives informed him that they suspected he was carrying narcotics and asked him to accompany them to a small room nearby. They did not return his identification or tickets to him. Without asking permission, an officer reclaimed the luggage and brought it to the room. When asked if they could search the luggage, Royer, without verbally consenting, produced a key and unlocked one of the suitcases. That case contained marijuana. Royer stated he did not know the combination of the second case, so officers pried it open and found more marijuana.

Royer was then arrested and convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is consent for the search of luggage valid when the officers have already seized the luggage and removed it to another location?

HOLDING: No.

DISCUSSION: When the officers identified themselves and asked Royer to accompany them to another location, without giving him back the ID and tickets, Royer was effectively seized and was not free to leave. As a practical matter he was under arrest, and his consent to the search of his belongings was not voluntary. The bounds of an investigative stop were exceeded.

The U.S. Supreme Court ultimately found that Royer's conviction should be reversed.

Ohio v. Robinette, 519 U.S. 33 (1996)

FACTS: Officer stopped Robinette for speeding. While stopped, the officer asked Robinette for consent to search the car. Robinette consented to the search and the officer found some marijuana and one tablet of MDMA. Robinette sought to suppress the evidence, claiming

that the officer did not, and was required to, advise Robinette of that he was free to go before asking for consent. His motion was rejected; he was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is an officer required to advise a person detained for investigatory purposes that they have the right to leave when asking for consent to search?

HOLDING: No.

DISCUSSION: The Fourth Amendment test for a valid consent to search is that the consent be voluntary. Voluntariness is a question to be determined by all of the circumstances. While it would be unrealistic to impose on consent searches the *requirement* of a warning, it would likewise be unrealistic to require officers to inform detainees they are free to go before consent may be deemed voluntary.

The Court ultimately affirmed Robinette's conviction.

NOTE: *While the Court does not require a warning, giving a warning will go towards showing that the consent was voluntary.*

Schneckloth v. Bustamonte, 412 U.S. 218 (1973)

FACTS: Bustamonte was a passenger in a vehicle driven by Gonzales, along with four other men. Officer Rand observed the vehicle with one headlight and the license plate light out and stopped it. The driver could not produce a license, and when the others were asked, only Alcala, who was also in the front seat, was able to do so. Alcala stated that the car belonged to his brother. All the occupants got out of the vehicle at the officer's request. Officer Rand asked actually helped search the vehicle, opening the trunk and glove compartment. Under the left rear seat, the officers found three wadded-up checks, which had previously been stolen from a car wash. Bustamonte was convicted of unlawfully possessing a check. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Must the police affirmatively show that an individual knew of their right to refuse consent to a search?

HOLDING: No.

DISCUSSION: The Court stated that the prosecution must show, taking into consideration the totality of the circumstances, that consent was voluntary and not the result of duress or coercion. While a showing that an individual knew of their right to refuse consent is a factor, it is not necessary to establish that a given consent was voluntary.

The U.S. Supreme Court affirmed the trial court's conviction.

U.S. v. Matlock, 415 U.S. 164 (1974)

FACTS: Matlock "was arrested in the front yard of a house in which he lived along with a Mrs. Graff (daughter of the lessees) and others." Mrs. Graff admitted the officers into the house and gave consent to search that house, including the bedroom she told the officers she shared with Matlock. In a bedroom closet, they found almost $5,000 in cash.

Matlock was charged with bank robbery and moved for suppression. The District Court ruled that "where consent by a third person is relied upon as justification for a search, the Government must show, inter alia, not only that it reasonably appeared to the officers that the person had authority to consent, but also that the person had actual authority to permit the search." The District Court further stated that the prosecution had not satisfactorily proved "that Mrs. Graff had such authority." The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Must a third party be shown to have authority to permit a search, when a search is premised on that individual's consent?

HOLDING: Yes.

DISCUSSION: The Court noted, initially, that both the parties, and the courts below, had assumed that "the voluntary consent of any joint occupant of a residence to search the premises jointly occupied is valid against the co-occupant, permitting evidence discovered in the search to be used against him at a criminal trial." The trial court had excluded, as inadmissible hearsay, "the out-of-court statements of Mrs. Graff with respect to her and [Matlock's] joint occupancy and use of the [bedroom in question]," as well as other information that they shared that room. The Court considered this decision to be in error and held that the statements were admissible under several exceptions to the hearsay rule.

The Court found that the statements were admissible, and that the "preponderance of the evidence [was] that Mrs. Graff's voluntary consent to search the east bedroom was legally sufficient to warrant admitting into evidence [the cash found in the closet]."

Illinois v. Rodriguez, 497 U.S. 177 (1990)

FACTS: Police were called to the home of Dorothy Jackson, in Chicago. There, Gail Fischer met them. Fischer was severely bruised and told officers she had been beaten by Edward Rodriguez earlier that day. She further told officers that she had left him sleeping in the apartment and agreed to go with the officers to unlock the apartment door with her key. She referred to the apartment as "our" apartment and stated that she had belongings there. It was unclear from the record whether she indicated that she currently lived there.

When they arrived at the apartment, Fischer unlocked the door and invited the officers to enter. In the living room, they spotted drug paraphernalia and containers of white powder, which later proved to be cocaine. In the bedroom, they found more of the white powder in containers in open briefcases. Rodriguez was asleep there, as well. Rodriguez argued that the entry into the

apartment was illegal because Fischer had vacated the apartment several weeks before. The trial court agreed, stating that she was not a "usual resident" but, at best, an "infrequent visitor" to the apartment at the time. The court found that her name was not on the lease; she did not contribute to the rent; she was not allowed to invite others to the apartment nor was she to be there when Rodriguez was absent; and, she had moved some of her belongings from the apartment to another location. The trial court suppressed the evidence. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a search lawful when the officers have a valid reason to believe the individual has authority over the property in question?

HOLDING: Yes.

DISCUSSION: The trial ended its consideration upon determining that Fischer did not have actual authority to allow the officers to enter the apartment. The Supreme Court, however, found that the officers' reasonable belief in the validity of Fischer's consent to be a primary issue and remanded the case to the lower courts for further determination. The Court directed that if the lower court found that the officers' belief was reasonable concerning Fischer's authority over the apartment, then the search would be valid.

Florida v. Jimeno, 500 U.S. 248 (1991)

FACTS: A Dade County police officer overheard Jimeno using a public telephone arranging what the officer believed to be drug transaction. Jimeno then drove off in his car and the officer followed. When Jimeno turned right at a red light without stopping, the officer pulled Jimeno over. After advising Jimeno that he was going to give him a traffic citation, he then told Jimeno that he believed he had narcotics in his car. The officer asked for permission to search the car, and Jimeno agreed. The passengers got out of the car and the officer began a search. He found a folded, brown paper bag on the floor. The officer opened the bag and found cocaine inside. Jimeno was arrested and charged with possession with intent to distribute, and he was eventually convicted. On appeal, Jimeno contended that his permission to search the car did not extend to the closed paper bag inside the car. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is it reasonable to consider a suspect's general consent to a search of his vehicle to include consent to search containers found in it?

HOLDING: Yes.

DISCUSSION: The expressed object defines the scope of a search. The suspect did not place any express limitations on the scope of the search. The suspect merely gave general permission to search his car. It was objectively reasonable for an officer to conclude that a general consent to search the car would include consent to search all containers inside that may contain contraband. The Court indicated that it might have reached a different result if the container in question was locked, such as a briefcase, but saw no problem with a paper bag. The suspect may place any limits he wishes on the scope of the search, but if a general consent can be reasonably

understood to extend to a particular container, there is no need for a specific authorization to search that container.

Bumper v. North Carolina, 391 U.S. 543 (1968)

FACTS: Bumper lived with his grandmother, Mrs. Leath, in rural North Carolina. Two days after a rape was reported, the county sheriff, three deputies and a state officer went to the house. The officers announced they had a search warrant and Mrs. Leath admitted them. During the search, the officers took a rifle into evidence that was later introduced at trial. During the trial, it became known that there was, in fact, no warrant. The officers stated they were relying upon Mrs. Leath's "consent" to enter and search the house. Bumper was convicted and appealed.

ISSUE: Is a search justified on "consent" when the consent was given based on a declaration that law enforcement has obtained and is executing a search warrant?

HOLDING: No.

DISCUSSION: The burden is on the prosecution to show that any consent was given freely and voluntarily. A search based on a warrant can later be suppressed if it is shown that the warrant was invalid, so the "result can be no different" when the officers claim to have a warrant when they do not. "When a law enforcement officer claims authority to search a home under a warrant, he announces in effect that the occupant has no right to resist the search. The situation is instinct with coercion – albeit colorably lawful coercion. Where there is coercion there cannot be consent."

The U.S. Supreme Court reversed the conviction.

U.S. v. Mendenhall, 446 U.S. 544 (1980)

FACTS: Mendenhall was stopped by agents of the DEA in the Detroit airport and was asked to produce her identification and airline ticket. The names on the two did not match. She was asked to accompany the agents to the DEA office in the airport and did so. Mendenhall was asked to consent to a search and did so. (She was told she did not have to consent to a search several times.)

A female officer asked Mendenhall to remove several items of clothing. Without comment, Mendenhall removed two packages from her underclothing; they appeared to contain heroin. She was subsequently arrested. Mendenhall was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a consent to search valid when there is no indication of duress or coercion?

HOLDING: Yes.

DISCUSSION: Mendenhall's consent was voluntary and valid, under the circumstances. An examination of the totality of the circumstances failed to find any evidence of coercion or duress during the process. The Court held that a person is "seized only when, by means of physical force or a show of authority, his freedom of movement is restrained." Thus, within the meaning of the Fourth Amendment, a person is "seized" if, in view of all of the circumstances surrounding the incident, "a reasonable person would have believed that he was not free to leave."

In this case, the Court held that Mendenhall was not seized. The events took place in the public concourse. The agents wore no uniforms and displayed no weapons. The agents did not summon Mendenhall to their presence, but instead approached her and identified themselves as federal agents. The agents requested but did not demand to see the respondent's identification and ticket. Such conduct without more, did not amount to an intrusion upon any constitutionally protected interest. Mendenhall was not seized simply by reason of the fact that the agents approached her, asked her if she would show them her ticket and identification, and posed to her a few questions. Nor was it enough to establish a seizure that the person asking the questions was a law enforcement official. Moreover, Mendenhall voluntarily consented to accompany the officers to the airport DEA office and voluntarily consented to the search that occurred at the DEA office.

The U.S. Supreme Court affirmed the trial court's conviction.

Georgia v. Randolph, 547 U.S. 103 (2006)

FACTS: Scott and Janet Randolph were a married couple living in Americus, Georgia. They separated in May 2001 over marital difficulties, with Janet going to Canada with her son to live with her parents. Sometime later, Janet and the boy returned. It is unclear whether it was for the purpose of seeking reconciliation or to recover additional property. If it was to seek reconciliation, it did not go well. On the morning of July 6, 2001, Janet called the police because Scott had taken their son away. When the police arrived, Janet not only advised them of their marital difficulties and Scott's taking of their son, Janet also told them Scott was a cocaine user. After Scott returned, and the boy was subsequently recovered by officers (he had been left with a friend), the officers asked Scott about the drug use. Scott denied it. Janet told the officers that there were items of drug evidence in the house. When the officers asked Scott if they could search his home, he emphatically refused permission. The officers then asked Janet, who not only gave permission to search the home, but led them upstairs to Scott's room. An officer observed and seized a drinking straw with evident cocaine residue on it. He went to his cruiser to get an evidence bag for the straw, but when he returned to the house Janet revoked her permission. A search warrant was obtained and additional drug evidence was seized. Scott was indicted for possession of cocaine.

At trial, Scott's motion to suppress the evidence as the product of a warrantless search, and that his wife's consent was negated by his unequivocal refusal was overruled. The trial court found that Janet had common authority to consent to the search.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the warrantless search and seizure of evidence lawful when the search is based on the consent of a person with common authority over the area searched with another person, and the other person is present and expressly refuses consent?

HOLDING: No.

DISCUSSION: The Court noted that in its previous cases of consent of a person with common authority, the second occupant was not physically present and objecting to the search. Common authority is not synonymous with technical property interest, but that any of the cohabitants has a right to permit inspection of common areas. Cohabitants assume the risk that one of them may permit such an inspection. Common authority for the purposes of the Fourth Amendment may be broader than the rights accorded under property law.

The Court then addressed what it described as "assumptions tenants usually make about their common authority when they share quarters." Among them would be that your roommate might invite in a guest you find obnoxious while you are out. Also, while you may share authority over common areas, they would not likely have authority to let officers search your personal things, like your dresser drawers. The Court invoked Minnesota v. Olson[93] for the proposition that overnight houseguests have a legitimate expectation of privacy in their quarters since it would be unlikely that their host would admit somebody to their space over their objection. From this, the Court presumed that an inhabitant of shared space would likewise be able to prevent the other from inviting an unwanted person over his objection. It concluded that there was "no common understanding that one cotenant generally has a right or authority to prevail over the express wishes of another, whether the issue is the color of the curtains or invitations to outsiders." Therefore, since a co-tenant has no recognized authority in law or social practice to prevail over a present and objecting co-tenant, the disputed invitation to a police officer to come in and search is worthless. The dispute effectively negatives the consent.

The Court said that so long as there was no evidence that the police have removed the potentially objecting party for the sake of pre-empting his opportunity to object, the consent of the other co-tenant would be valid.

Fernandez v. California, 571 U.S. 292 (2014)

FACTS: In October 2009, in Los Angeles, Fernandez approached Lopez and told him that he was in the territory of the Drifters gang. He pulled out a knife and Lopez ended up cut on the wrist. Lopez fled the scene and called 911 for help, but he was attacked by four men and robbed of his cell phone, wallet, and $400 cash. Two LAPD officers responded and drove down an alley frequented by the Drifters. A man "who appeared scared" walked past them and said "[t]he guy is in the apartment." The officers spotted a man run into the building indicated. A minute later, they "heard sounds of screaming and fighting coming from that building." With backup's arrival, the officers knocked on the door. Roxanne Rojas answered the door; she was "holding a baby and appeared to be crying." She had blood on her shirt and hand. Her face was reddened and had a "large bump on her nose." Rojas stated she had been in a fight. Officer Cirrito asked if anyone else was inside, and she said her son (age 4) was there. He asked her to step outside so he could do a protective sweep. Fernandez appeared, wearing only boxers. He was agitated and

said "You don't have any right to come in here. I know my rights." Suspecting Fernandez assaulted Rojas, he was removed and arrested. Lopez then identified him as one of his attackers as well. Fernandez was then taken to jail. About an hour later, Det. Clark returned and told Rojas what had happened. He received oral and written consent from Rojas to search the premises. The officers found gang paraphernalia, a butterfly knife, clothing identified by Lopez and ammunition. Rojas' son showed them a sawed-off shotgun.

Fernandez was charged with robbery, possession of a firearm by a felon, and related federal firearms charges. He moved to suppress the evidence, but the motion was denied. Fernandez pled nolo contendere (no contest) to the firearms charges. He was convicted at trial of the robbery and another related charge. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does the refusal to consent to a search extend past the point at which the objecting party is removed, if another co-inhabitant gives consent later?

HOLDING: No.

DISCUSSION: The Court agreed that a warrant is generally required for a home search, but that there are reasonable exceptions to that rule. One of those exceptions is consent. The Court noted that "it would be unreasonable – indeed, absurd – to require police officers to obtain a warrant when the sole owner or occupant of a house or apartment voluntarily consents to a search." Requiring a warrant under such circumstances "would needlessly inconvenience everyone involved – not only the officers and the magistrate but also the occupant of the premises, who would generally either be compelled or would feel a need to stay until the search was completed."

The Court then questioned what should be done "when there are two or more occupants? Must they all consent? Must they all be asked? Is consent by one occupant enough? Initially, the Court faced that issue in U.S. v. Matlock,[94] holding that "the consent of one who possesses common authority over premises or effects is valid as against the absent, nonconsenting person with whom that authority is shared." In Illinois v. Rodriguez, the earlier holding was reaffirmed and extended, when the consent was given by a person who officers reasonably believed was a resident, but in fact, was not.[95] Although consent by "one resident of jointly owned premises" is usually enough, the court had "recognized a narrow exception to this rule in Georgia v. Randolph.[96] In that case, the Court upheld that a "physically present inhabitant's express refusal of consent to a police search [of his home] is dispositive as to him, regardless of the consent of a fellow occupant." However, the Randolph Court "went to great lengths to make clear that its holding was limited to situations in which the objecting occupant is present."

In this case, Fernandez argued that the only reason he was not present was because he was arrested, and that his objection should have remained in effect. However, the Court noted that the dictum in Randolph did not mean that removing an occupant under a valid arrest would necessarily invalidate the search. Following the rule proposed by Fernandez would require officers to decide how long an objection should reasonably last. The Court concluded that it would take Randolph on its face, and that denying someone in the position of Rojas "the right to

allow the police to enter *her* home would also show disrespect for her independence," especially when she would have reason to have all dangerous items removed from the premises. The Court agreed that "the Fourth Amendment does not give [Fernandez]" the power to control Rojas in that manner.

Body Evidence

Schmerber v. California, 384 U.S. 757 (1966)

FACTS: Schmerber was arrested for driving while intoxicated. He had been injured in a wreck and taken to the hospital. A police officer directed the hospital to take a blood sample. That sample indicated the presence of alcohol. Schmerber argued that he had not agreed to have the blood drawn, and that the evidence violated his right against self-incrimination. Schmerber was convicted, and the conviction was affirmed on appeal.

Schmerber appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the introduction of physical evidence taken the body of a defendant against the defendant's will admissible?

HOLDING: Yes.

DISCUSSION: The Court found "[n]ot even a shadow of testimonial compulsion upon or enforced communication by the accused was involved either in the extraction or in the chemical analysis" of his blood. As such, the evidence was admissible.

Schmerber's conviction was affirmed.

Mitchell v. Wisconsin, 588 U.S. 840 (2019)

FACTS: Mitchell was found in a park, slurring his words and stumbling, after having been reported to be drinking and driving. The officer was unable to conduct field sobriety tests due to the level of Mitchell's drunkenness but did administer a PBT test, with a result of a .24%, three times Wisconsin's legal limit. The officer headed to the jail to administer a breath test but Mitchell became so lethargic on the drive, the officer took him to the hospital for treatment instead. By the time they arrived at the hospital, Mitchell was unconscious. The officer requested a blood test, and the results indicated Mitchell had a BAC of .22%, ninety (90) minutes after the officer's initial contact with him. Mitchell was charged with two drunk driving crimes, and moved to suppress the blood test as a violation of his 4th Amendment rights against unreasonable search and seizures. The blood tests results were admitted and Mitchell was found guilty. He appealed his conviction.

ISSUE: Does a blood draw on an unconscious defendant violate the defendant's 4th Amendment rights?

HOLDING: No.

DISCUSSION: Blood alcohol content (BAC) tests are considered searches under the 4th Amendment.[97] However, because the need for the blood test is compelling, and the officer had more important issues to take care of (here, the emergency care of the defendant), it created an exigent circumstance exception to the requirement for the officer to get the warrant.[98]

Cupp v. Murphy, 412 U.S. 291 (1973)

FACTS: When Murphy learned he was a suspect in his wife's murder, he called the Portland, Oregon, police and voluntarily came in for questioning. While there, officers noticed a "dark spot" on his finger. They asked if they could scrape under his fingernails; he refused. "Under protest and without a warrant, the police proceeded the take the samples, which turned out to contain traces of skin and blood cells, and fabric from the victim's nightgown." Ultimately, Murphy was charged with murder, and the evidence was admitted against him at trial. He was convicted and appealed. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is seizing and taking fingernail scrapings from a suspect (upon probable cause that the suspect committed a crime) permitted?

HOLDING: Yes.

DISCUSSION: The Court differentiated this case from Davis v. Mississippi, in which it concluded that fingerprints taken during an invalid seizure were inadmissible at trial.[99] In this case, the Court noted, even though Murphy was not arrested at the time, there was probable cause to believe he had committed the crime.

Further, Murphy was aware he was a suspect, and once the officer asked to scrape his fingernails, he put his hands behind his back, and then into his pockets. Under those circumstances, the police were justified "in subjecting him to the very limited search necessary to preserve the highly evanescent evidence they found under his fingernails."

Winston v. Lee, 470 U.S. 753 (1985)

FACTS: On July 18, 1982, Watkinson was closing his shop for the night. An armed man approached him, and they exchanged shots. Watkinson was injured; the other individual ran from the scene, also apparently wounded. Shortly afterward, police found Lee approximately eight blocks away. He was suffering from a gunshot wound to the chest and stated he had been the victim of an attempted robbery. When he was taken to the same hospital as Watkinson for treatment, Watkinson immediately identified him. Lee was charged with the robbery and assault of Watkinson.

The prosecution filed a motion to a state court to require Lee to undergo surgery to remove the bullet believed to be lodged under his collarbone. At a hearing, the surgeon testified that the procedure would take less than an hour, and that there was a very small chance of nerve damage

and an even smaller chance of death, considerably less than one percent. At a second hearing, and upon further investigation, the surgeon now stated that the bullet was just under the skin and would be simple to remove. The Court ordered the surgery. However, upon studying X-rays just prior to the scheduled procedure, the surgeon found that the bullet was much deeper than expected, so the risk was much higher than estimated. Upon that discovery, Lee returned to court, and the court then denied the request for the surgery. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Must an individual be forced to undergo a relatively risky surgical procedure to retrieve evidence?

HOLDING: No.

DISCUSSION: The Court sought to balance the prosecution's need for the evidence in Lee's body with Lee's right of privacy. The Court found that the prosecution had a great deal of evidence concerning Lee's guilt, and because of that, the need for the actual bullet was not great.

The U.S. Supreme Court affirmed the denial of permission to undertake the surgery.

SEIZURE- BASIC CONCEPTS

Reasonable Expectation of Privacy

Katz v. U.S. , 389 U.S. 347 (1967)

FACTS: Katz was convicted of transmitting wagering information out of state. At the trial, the Government was permitted to introduce evidence of Katz's end of telephone conversations, overheard by FBI agents who had attached an electronic listening and recording device to the outside of a public telephone booth from which he had placed his calls. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is listening to one side of a phone conversation that takes place in an enclosed phone booth a violation of the Fourth Amendment?

HOLDING: Yes.

DISCUSSION: The Fourth Amendment protects people, not simply areas, against unreasonable searches and seizures, and its reach cannot depend upon or absence of a physical intrusion into any given enclosure.

What a person knowingly exposes to the public, even in his own home, is not a subject of Fourth Amendment protection. What a person seeks to preserve as private, even in an area accessible to the public, may be constitutionally protected under the Fourth Amendment. A person in a telephone booth may rely upon the protection of the Fourth Amendment and is

entitled to assume that words he utters into the mouthpiece will not be broadcast to the world.

Searches conducted without search warrants are, per se, unreasonable under the Fourth Amendment, subject only to a few specifically established and well-delineated exceptions. Probable cause alone may not be enough to justify a warrantless search.

The U.S. Supreme Court reversed the conviction.

Smith v. Maryland, 442 U.S. 735 (1979)

FACTS: On March 5, 1976, in Baltimore (MD), a robbery occurred. Afterward, the victim "began receiving threatening and obscene phone calls from a man identifying himself as the robber." At one point, the caller told her to come to the porch and she saw a 1975 Monte Carlo (that she described to the police as being involved in the robbery) "moving slowly past her home." A few days later, police spotted a man fitting her description, driving a similar car, and were able to trace the car to Michael Smith. The next day, a pen register was installed on Smith's home telephone – but no court order was obtained. Within a day or so, a call from Smith's telephone to the victim was indicated. The police obtained a search warrant for his residence with that information. Eventually, they found a personal phone book with the victim's name and address, and he was arrested. The victim identified him in a subsequent line up.

Smith was indicted for robbery and moved to suppress the evidence from the pen register, arguing that the police should have had a warrant prior to the installation. The trial court denied the motion, and the evidence was admitted. Eventually, he was convicted.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is there an expectation of privacy in the phone numbers a person dials?

HOLDING: No.

DISCUSSION: The Court started with noting it "uniformly has held that the application of the Fourth Amendment depends on whether the person invoking its protection can claim a 'justifiable,' a 'reasonable,' or a 'legitimate expectation of privacy' that has been invaded by government action." In Katz, the court had laid out "two discrete questions." "The first is whether the individual, by his conduct, has 'exhibited an actual (subjective) expectation of privacy" and the second "is whether the individual's subjective expectation of privacy is 'one that society is prepared to recognize as 'reasonable.'" In other words, there is both a subjective and an objective element. In this situation, the Court noted that the "pen register was installed on telephone company property at the telephone company's central offices." The Court differentiated the pen register from the recording device used in Katz, in that "pen registers do not acquire the contents of communications" – but simply record the numbers dialed. (In effect, it is what telephone companies do every day, in order to do accurate billing for long-distances calls, for example.)

The Court rejected Smith's claim – stating that it doubted "that people in general entertain any actual expectation of privacy in the numbers they dial" In addition, "telephone users realize that they must 'convey' phone numbers to the telephone company, since it is through telephone company switching equipment that their calls are completed." They further understand that the telephone company keeps a record of numbers dialed. Even if Smith considered that material *subjectively* private, it was not information that the general public would *objectively* consider to be private.

The U.S. Supreme Court affirmed the conviction.

Rakas v. Illinois, 439 U.S. 128 (1978)

FACTS: In Bourbonnais, Illinois, a police officer received a call about a robbery of a clothing store and describing the getaway car. The officer spotted a vehicle matching the description. The officer followed the car, and when backup arrived, they stopped it. The occupants, the driver, Rakas, and two females, were ordered out of the car and the officers searched it. The officers found a box of rifle shells in a locked glove box and a sawed-off shotgun under the front passenger seat. At that point, Rakas and the two females were arrested.

All three moved to suppress the evidence, stating that they did not own the car but were merely passengers. (The driver was the owner of the vehicle.) They did not claim to own any of the items seized. The prosecutor challenged their standing to object to the lawfulness of the search. The trial court denied the motion, and Rakas (and the rest) were convicted of the robbery. As it was not necessary, the court did not address the search and seizure – probable cause issue.

ISSUE: May a non-owner (or possessor) of items that are contraband or evidence challenge the search and seizure of such items?

HOLDING: No.

DISCUSSION: The Court discussed the issue of standing – the capacity of an individual to be a party in a particular lawsuit. In this case, Rakas was simply a passenger; he did not own or otherwise control the vehicle. Rakas had compared the search to the one done in Jones v. U.S., where the Court stated that a person "legitimately on the premises" might challenge the validity of a search. However, the Court distinguished the two by finding that Jones had a reasonable expectation of access and privacy to a location that was not actually his home, and they were not willing to extend the protection to Rakas, a simple passenger in another's vehicle. The Court found that Rakas did not have a legitimate expectation of privacy in the particular areas that were searched within the vehicle.

Rawlings v. Kentucky, 448 U.S. 98 (1980)

FACTS: Bowling Green police officers, with an arrest warrant for Lawrence Marquess for drug trafficking, arrived at Marquess' home. At the time, Marquess' housemate and four visitors were present, including Rawlings. Officers unsuccessfully searched the home for Marquess. In the course of the search, officers smelled marijuana smoke and saw marijuana seeds in plain

sight. Two officers left to obtain a search warrant for the house, while the remaining officers detained the occupants. (They were told they would be allowed to leave if they would consent to a body search, two did so and were allowed to leave.)

Officers returned with a search warrant for the entire house. An officer read the warrant to the remaining three occupants of the house, and also read them Miranda warnings. At that time, Rawlings was seated on the couch, next to one of the females, Cox. Cox's purse was on the couch between them. Officer Rainey instructed Rawlings to stand to be searched, and another officer instructed Cox to empty her purse onto the table. A large quantity of controlled substances, including LSD and methamphetamine, fell from the purse. Cox told Rawlings to "take what was his" and he claimed ownership of all of the drugs. Rawlings was also in possession of $4,500 in cash and a knife. He was arrested. Rawlings stated at trial that he had asked Cox to "carry" the bag containing the drugs for him, and she had agreed. He claimed that the search of the purse invaded his privacy. The Kentucky courts found that Rawlings had no expectation of privacy in Cox's purse.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does an individual have an expectation of privacy in someone else's purse?

HOLDING: No.

DISCUSSION: In examining the facts of this case, the Court found that Rawlings put the drugs in Cox's purse, having only known her a couple of days. Rawlings had no access to her purse prior to that time. Rawlings had no right to exclude others from Cox's purse. Another individual had been in the purse earlier that same day, searching for a hairbrush. Rawlings admitted he did not expect privacy in the purse. For these reasons, the Court held that he did not have either a subjective or objective expectation of privacy in a purse belonging to another.

Rawlings' conviction was affirmed.

Arizona v. Hicks, 480 U.S. 321 (1987)

FACTS: On April 18, 1984, a bullet was fired through the floor of Hicks' apartment striking and injuring a man in the apartment below. Police officers arrived and finding no one at home at the Hicks' apartment, entered Hicks' apartment to search for the shooter, for other victims, and for weapons. They found and seized three weapons, including a sawed-off rifle, and in the course of their search also discovered a stocking-cap mask.

One of the officers noticed two sets of expensive stereo components, which seemed to be out of place in the squalid and otherwise ill-furnished apartment. Suspecting that they were stolen, he read and recorded their serial numbers, moving some of the components, including a Bang and Olufsen turntable that he recognized was extremely unusual and expensive, in order to do so. The officer then reported his findings by phone to his headquarters. On being advised that the turntable had been stolen in an armed robbery, he immediately seized the turntable. It was later determined that some of the other serial numbers, on the remaining equipment, matched

numbers on stereo equipment taken in the same armed robbery. A warrant was obtained to seize that equipment as well.

Defendant moved to suppress the stereo equipment, claiming the moving of the stereo was an additional but unrelated search to the original purpose of the entry. The motion to suppress was denied. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is moving an item to view a number on a hidden part of the item considered a search?

HOLDING: Yes.

DISCUSSION: The officer's moving of the equipment did constitute a "search." The officer's warrantless entry onto the premises to search for the shooter, victims, and weapons was a lawful entry into the apartment. Moving the equipment was a separate intrusion into an area of privacy unrelated to the original exigencies that justified the warrantless entry. Therefore, the search is illegal because the it was unrelated to the original objective for entering the apartment. The Court distinguished, however, merely looking at an object that is already exposed to view, which is not a "search" for Fourth Amendment purposes.

The U.S. Supreme Court affirmed the decision of the Arizona court.

Minnesota v. Olson, 495 U.S. 91 (1990)

FACTS: On July 18, 1987, just before 0600, a "lone gunman robbed an Amoco gasoline station in Minneapolis, Minnesota, and fatally shot the station manager." An officer, hearing the report, immediately suspected Joseph Ecker and drove to his residence. The officer, and his partner, "arriv[ed] at about the same time that an Oldsmobile arrived." The driver of the Oldsmobile took "evasive action" and lost control, and the two men in the car fled on foot. Ecker, who was later confirmed to have been the gunman, was captured, but the second man escaped. In the "abandoned Oldsmobile," the officers "found a sack of money and the murder weapon" and a title document and other documents with the name Rob Olson. The next morning, a woman called the station and said that "a man by the name of Rob drove the car in which the gas station killer left the scene, and that Rob was planning to leave town by bus." She called back again, a little later that same morning, with further details and an address for two other women (Louanne and Julie) that he'd told of his plans. When they arrived at the address, they learned it was a duplex, and that the upstairs unit was occupied by Louanne and Julie Bergstrom (mother and daughter). They were not home, but the officers spoke to Helen Niederhoffer (Louanne Bergstrom's mother), who lived in the lower unit, and she told the officers that Olson had been staying with the Bergstroms.

At about 1445, Niederhoffer called and told police that Olson had returned to the unit and police were sent to surround the house. The detective-in-charge called the unit and spoke to Julie and told her that Rob should come out. He overheard a male voice in the background say, "tell them I left," and she did so. Shortly afterward, and "[w]ithout seeking permission and with weapons

drawn, the police entered the upper unit and found [Olson] hiding in a closet." Shortly after his arrest, Olson made an "inculpatory statement at police headquarters."

Olson was convicted of murder, armed robbery, and assault. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does an overnight houseguest have an expectation of privacy in that house?

HOLDING: Yes.

DISCUSSION: Minnesota argued that "Olson's relationship to the premises does not satisfy the 12 factors which in its view determine whether a dwelling is a 'home.'" The Court, however, found that "proposed test" to be "needlessly complex." Instead, the Court found that "Olson's status as an overnight guest is alone enough to show that he had an expectation of privacy in the home that society is prepared to recognize as reasonable." The Court noted that "[s]taying overnight in another's home is a longstanding social custom that serves functions recognized as valuable by society" and that "[w]e will all be hosts and we will all be guests many times in our lives." The Court further stated, "[w]e are at our most vulnerable when we are asleep, because we cannot monitor our own safety or the security of our belongings." As such, the Court found that an overnight houseguest has a reasonable expectation of privacy in the home of a host.

The Court upheld the reversal of Olson's conviction.

Kyllo v. U.S., 533 U.S. 27 (2001)

FACTS: In 1991, Agent Elliott of the U. S. Department of the Interior began to suspect that Kyllo was growing marijuana in his triplex house in Florence, Oregon. Because growing marijuana indoors requires the use of high-intensity lighting, the agent elected to use a thermal imager to scan the house. Thermal imaging units detect infrared radiation, "heat", and display it as an image based upon relative warmth in an area. The scan, done from a vehicle across the street from the front and then the back of the house, indicated that the garage roof and a side wall of the house were relatively hot compared to the rest of the house and considerably warmer than the neighboring homes. The agent concluded that Kyllo was using grow lights. Based on tips, utility bills and the results of the scan, Elliott requested and received a federal search warrant of the house and found an indoor growing operation involving more than 100 marijuana plants.

Kyllo requested a suppression of the evidence and was denied. He entered a conditional guilty plea. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the use of a technological device to gain information otherwise unavailable in a constitutionally protected area an unreasonable search in violation of the 4th Amendment?

HOLDING: Yes.

DISCUSSION: The Court explored the issue of appropriate surveillance and noted that the Court had "previously reserved judgment as to how much technological enhancement of ordinary

perception from a vantage point, if any, is too much." The Court stated that the question to be dealt with "is what limits there are upon this power of technology to shrink the realm of guaranteed privacy." The Court continued, stating that "obtaining by sense-enhancing technology any information regarding the interior of the home that could not otherwise have been obtained without physical 'intrusion into a constitutionally protected area' constitutes a search – at least where (as here) the technology is not in general public use." In this case, the Court stated that it "must take account of more sophisticated systems that are already in use or in development." The Court took pains to distinguish this opinion from Dow Chemical, which "involved enhanced aerial photography of an industrial complex, which does not share the Fourth Amendment sanctity of the home."

Finally, the Court held that the line must be that when "the Government uses a device that is not in general use, to explore details of the home that would previously have been unknowable without physical intrusion, the surveillance is a 'search' and is presumptively unreasonable without a warrant."

The U.S. Supreme Court reversed the decision.

NOTE: *This case effectively overrules LaFollette v. Commonwealth, 915 S.W.2d 747 (1996), which held that a FLIR (Forward-Looking Infrared) may be used to detect heat waste emanating from a residence, and that such information may be used to support a warrant. However, this does not mean that FLIR units may not be used for other legitimate law enforcement purposes.*

Minnesota v. Carter, 525 U.S. 83 (1998)

FACTS: A police informant saw some people, through the window of an apartment, bagging white powder. An officer then observed people for several minutes in a bagging operation through the apartment window. While officers were obtaining a warrant to enter the apartment, two men, later identified as Carter and Johns, left the building and got into a car. When the car was stopped, police found cocaine and cocaine paraphernalia.

A subsequent search of the apartment uncovered cocaine residue on the kitchen table. Thompson, the apartment lessee, said she had allowed Carter and Johns to use her apartment for their bagging operation for an amount of cocaine. Carter and Johns were in the apartment for about two and one-half hours and had never been to the apartment before. Carter and Johns moved to suppress all evidence, arguing that the officer's looking through the apartment window was an unreasonable search, thus violating their Fourth Amendment rights. The Court disagreed and denied the suppression; Carter was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does a visitor for a short time (not overnight) have an expectation of privacy in another's home?

HOLDING: No.

DISCUSSION: The Supreme Court held that Carter and Johns had no legitimate expectation of privacy in the apartment as they were in the apartment one time, for a short time, and were there for a commercial purpose only. Since they had no expectation of privacy, there was no need to determine whether the officer's looking through the window was a search. The Court distinguished these cases from Minnesota v. Olson,[100] when they held that a social overnight guest in one's home would have an expectation of privacy in the premises. They said that overnight guests in a home may challenge the legality of a search, but one who is merely present with the consent of the householder could not.

The U.S. Supreme Court reversed the decision.

O'Connor v. Ortega, 480 U.S. 709 (1987)

FACTS: In July 1981, Dr. Dennis O'Connor, Director of Napa State Hospital, became concerned about problems with Dr. Magno Ortega. Dr. Ortega was responsible for the training of young physicians in the psychiatric residency. Dr. Ortega went on leave while a team made an investigation of the allegations and eventually, he was terminated.

During the investigation, the team entered Ortega's office "to secure state property." During that search, they discovered that Ortega had taken his computer home. They searched the office thoroughly and seized items that were later used in his hearing to impeach a witness. They had also seized papers relating to private patients. Ortega eventually filed suit against the hospital officials and the lower courts held that the search violated his right to privacy. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does a government employee have an expectation of privacy in their workplace?

HOLDING: No.

DISCUSSION: The Court stated that Ortega's rights were violated "only if the conduct of the Hospital officials at issue in this case 'infringed an expectation of privacy that society is prepared to consider reasonable.'" The Court outlined the areas related to work that are within an employer's control and stated those areas are the province of the employer, even though an employee may be allowed to place personal items there. This would not extend to personal items, such as handbags and briefcases, however. The Court also stated that employees may expect privacy against intrusions by the government officials but that employees never have a reasonable expectation of total privacy in their place of work.

The U.S. Supreme Court reversed the lower court's decision.

Gasaway v. Commonwealth, 671 S.W.3d 298 (Ky. 2023)

FACTS: Maurice Gasaway, a parolee under active supervision, was caught in possession of narcotics at work. After a brief internal investigation, an employee contacted a Narcotic's Task Force detective to report the incident. The next day, the detective arrived on scene and field tested the suspected narcotics which proved to be heroin. After reviewing the internal

investigation conducted by the employer, the detective determined Gasaway had possessed the heroin and arrested him.

Gasaway was searched incident to arrest and placed in the detective's cruiser. The search of Gasaway's person yielded a key fob for his truck. The detective asked Gasaway for consent to search the truck, which Gasaway denied. Gasaway's parole officers arrived during his arrest and, with the assistance of the detective, began a search of Gasaway's truck. The search revealed marijuana and methamphetamine.

Gasaway was charged with three counts of possession of a controlled substance. Gasaway moved to suppress the evidence found in his truck claiming the warrantless search was unlawful.

ISSUE: Do parolees have a diminished expectation of privacy?

HOLDING: Yes.

DISCUSSION: The U.S. Supreme Court rendered a decision in Samson v. California, 547 U.S. 843 (2006), regarding warrantless searches of parolees. In Samson, the Court held two important things. First, "the Fourth Amendment does not prohibit a police officer from conducting a suspicionless search of a parolee."[101] Explaining that because parole is akin to incarceration and the need for supervision of parolees is great, a police officer may search a parolee without any suspicion of criminal activity. However, the Court also held that—second—a state itself may institute its own safeguards to prevent abusive and harassing searches.

Years later, in Bratcher v. Commonwealth, 424 S.W. 3d 411 (Ky. 2014), the Kentucky Supreme Court applied the holding of Samson incorrectly. In Bratcher, the Kentucky Supreme Court correctly held that the Fourth Amendment did not prohibit police officers from conducting warrantless and suspicionless search of parolees. However, they incorrectly held that the Commonwealth could not institute its own safeguards to prevent abusive and harassing searches.

This case overruled Bratcher, adopting the holdings of Samson:

> "When a parolee has been charged with a crime and moves to suppress evidence obtained from a warrantless search pursuant to the Fourth Amendment, a court must determine whether the search was reasonable under the totality of the circumstances by balancing the parolee's reasonable expectation of privacy against the necessity of the search to the promote the Commonwealth's legitimate interests."[102]

So, how do we determine a parolee's reasonable expectation of privacy? The Court states, "[a] parolee's reasonable expectation of privacy should be determined by considering the nature of parole itself, the conditions of parole, the place where the search occurred, the circumstances giving rise to the search, the manner of the search, and any other relevant information."[103] In other words, we must consider the safeguards put in place by the Commonwealth.

Here, the Court first looked to Gasaway's parole agreement. His parole agreement explicitly stated he agreed to "be subject to search and seizure without a warrant if my officer has reasonable suspicion that I may have illegal drugs, alcohol or other contraband on my person or property."[104] Second, they looked at the Kentucky Department of Corrections' general procedures governing parolee searches, which expressly state, "[a]n offender shall be subject to a search of his person, residence, or other property under his control. The basis of any search shall be consent, a search warrant, or reasonable suspicion that the search will produce evidence of a violation of the offender's conditions of supervision."[105]

Considering the foregoing, the Court concluded "the search of Gasaway's truck was reasonable under the totality of the circumstances. The Commonwealth clearly has a legitimate and overwhelming interest in the supervision of parolees. Gasaway's reasonable expectation of privacy was minimal, requiring only reasonable suspicion to justify a warrantless search on these facts."[106] And here, the detective had a reasonable suspicion Gasaway's truck contained contraband.

Would the search have been justified by the vehicle exception to the warrant requirement? No. While Gasaway's truck was a readily mobile vehicle in a public place, the officers lacked probable cause to search the truck. There was no established nexus between what the officers knew at the time and the truck sufficient to establish probable cause that the vehicle contained contraband or evidence of a crime. The officers here had only a reasonable suspicion.

Would the search have been justified as a search incident to arrest? No. First, Gasaway was secured and not within reaching distance of the vehicle's contents. Second, the detective testified he was looking for "other drugs" which may be in the vehicle, rather than evidence of the crime for which Gasaway was arrested for—possession of heroin. Therefore, per the law set forth in Gant[107], the search of the truck was not justified as a search incident to arrest.

Probable Cause

Exclusionary Rule

Mapp v. Ohio, 367 U.S. 643 (1961)

FACTS: On May 23, 1957, three Cleveland police officers arrived at Mapp's residence pursuant to information that "a person [was] hiding out in the home, who was wanted for questioning in connection with a recent bombing, and that there was a large amount of policy paraphernalia being hidden in the home." Upon their arrival at the house, the officers knocked on the door and demanded entrance, but Mapp, after telephoning her attorney, refused to admit them without a search warrant. Some three hours later, the officers (now with four additional officers) again sought entrance. When Mapp did not come to the door immediately, at least one of the several doors to the house was forcibly opened. Mapp was halfway down the stairs from the upper floor to the front door when the officers, "in this highhanded manner, broke into the hall." She demanded to see the search warrant. A paper, which the officers claimed to be a warrant, was held up by one of the officers. They struggled over the document, and Mapp was restrained.

Still in handcuffs, Mapp was forcibly taken upstairs to her bedroom where the officers searched a dresser, a chest of drawers, a closet, and some suitcases. They also looked in a photo album and through personal papers. The search continued to a child's bedroom, the living room, the kitchen, and a dinette. The basement of the building and a trunk found there were searched. She was eventually charged and convicted with possession of obscene materials located in that trunk. At trial, no search warrant was produced, nor was the failure to produce one explained or accounted for. The State argued that even if the search was made without authority, or otherwise unreasonably, it is not prevented from using the unconstitutionally seized evidence at trial. Mapp was convicted. Mapp appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is evidence seized in violation of the Fourth Amendment admissible at trial?

HOLDING: No.

DISCUSSION: The Court reviewed the history of the development of the Exclusionary Rule as applied to federal courts and state courts, citing several cases. The Court concluded that to deter unlawful police conduct, evidence seized in violation of the Fourth Amendment is not admissible at trial. The Court specifically stated:

"The criminal goes free, if he must, but it is the law that sets him free. Nothing can destroy a government more quickly than its failure to observe its own laws, or worse, its disregard of the charter of its own existence."

"If the government becomes a lawbreaker, it breeds contempt for law; it invites every man to become a law unto himself; it invites anarchy."

The U.S. Supreme Court reversed the conviction.

Nix v. Williams, 467 U.S. 431 (1984)

FACTS: On December 24, 1968, Pamela Powers, age 10, was abducted from a YMCA in Des Moines, Iowa. During that same time, Williams was seen leaving the building carrying a large bundle wrapped in a blanket. A witness stated he had seen two legs protruding from the blanket. The next day, Williams' car was found, 160 miles away, in Davenport, Iowa. Later, several items of Powers' clothing and a blanket were found at a rest stop between Des Moines and Davenport. Police obtained a warrant for Williams and initiated a large-scale search of the areas on either side of the highway.

Williams surrendered to police in Davenport. Des Moines police informed his attorney that they would pick up Williams in Davenport and bring him back to Des Moines, without interrogating him. However, on the return trip, one of the detectives spoke to Williams about Powers' body being out in the snow, how it may prove impossible to find, and about how her parents deserved to give her a Christian burial. Det. Leaming told Williams he didn't expect an answer, that he simply wanted him to "think about it." As the car approached Grinnell, Williams asked the detectives if the girl's shoes had been found, and directed them to a point, but the shoes were

not there. He repeated the question, this time asking about the blanket at the rest stop, but again, they did not find the blanket, as it had already been located. Finally, as the approached Mitchellville, Williams agreed to show them where the child's body had been left. The officers involved in the search stopped at 3 p.m., when they joined Williams and the detectives at the rest stop. Later, after the body was discovered, it was found that the team was only two and one-half miles from the child's body and the area was within the area scheduled to be searched.

At his trial for first-degree murder, Williams requested but was denied suppression of the body and all related evidence as the "fruit" of an unlawful interrogation. The appellate court decided that the admission was improper. The U.S. Supreme Court accepted certiorari and affirmed that holding, however, the Court stated that although Williams' incriminating statements could not be used, the location of the body and other evidence "might well be admissible on the theory that the body would have been discovered in any event, even had incriminating statements not been elicited from Williams."

At the second trial, the prosecution entered into evidence the child's body, clothing and other evidence that had been found. The trial court agreed that the state had proved that the evidence would have been discovered "within a short time" and in "essentially the same condition as it was actually found." The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Are there exceptions to evidence suppression under the Exclusionary Rule or the Fruit of the Poisonous Tree doctrine?

HOLDING: Yes.

DISCUSSION: The Court reviewed the history of the Exclusionary Rule, which rejects evidence collected by law enforcement through improper means. However, while "derivative evidence," which is spawned by illegally collected evidence, is impermissible, the "independent source" doctrine allows evidence that is found independent of any police misconduct is admissible. As a balance, the Court concluded that the deterrent effect of the Exclusionary Rule has little basis when it would prohibit evidence that "would have been discovered by lawful means …" and that "[e]xclusion of physical evidence that would inevitably have been discovered adds nothing to either the integrity or fairness of a criminal trial."

The U.S. Supreme Court reversed the appellate decision and remanded the case.

U.S. v. Leon, 468 U.S. 897 (1984)

FACTS: After an investigation, which included an anonymous tip, officers applied for a warrant to search three houses and the automobiles of three suspects, including Leon. The warrant was issued, and the searches yielded large quantities of drugs and other evidence. During a suppression hearing, the Court found the warrants, while accurate on their face, were unsupported by probable cause. As such, the evidence was suppressed. The cases were eventually dismissed for lack of evidence.

The prosecution argued that since the officers who executed the warrant were acting in good faith, in reliance of a warrant, it was inappropriate to suppress the evidence. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is there a "good faith" exception to the Exclusionary Rule?

HOLDING: Yes.

DISCUSSION: The Exclusionary Rule is designed to deter police misconduct rather than to punish the errors of judges and magistrates. The deterrent purpose of the Exclusionary Rule necessarily assumes that the police have engaged in willful, or at the very least negligent, conduct which has deprived the defendant of some right. Evidence obtained from a search should be suppressed only if the law enforcement officer had knowledge, or should have known, that the search was unconstitutional. By refusing to admit evidence gained as a result of such conduct, the courts hope to instill a greater degree of care toward the rights of an accused.

When an officer, acting with objective good faith, has obtained a search warrant from a judge or magistrate and acted within the warrant's scope, there is no police illegality to deter. It is the magistrate's responsibility to determine whether the officer's allegations establish probable cause and, if so, to issue a warrant. In the ordinary case, an officer cannot be expected to question the magistrate's probable-cause determination or his judgment that the warrant is technically sufficient. Once the warrant is issued, there is literally nothing more the policeman can do in seeking to comply with the law. Penalizing the officer for the magistrate's error, rather than his own, cannot logically contribute to the deterrence of Fourth Amendment violations.

Because a search warrant provides the detached scrutiny of a neutral magistrate, which is a more reliable safeguard against improper searches than the hurried judgment of a law enforcement officer engaged in the often-competitive enterprise of ferreting out crime, we have expressed a strong preference for warrants and declared that in a doubtful or marginal case a search under a warrant may be sustainable where without one it would fail. Reasonable minds frequently may differ on the question whether a particular affidavit establishes probable cause, and the preference for warrants is most appropriately effectuated by giving great deference to a magistrate's determination.

Deference to the magistrate is not boundless. First, a magistrate's finding of probable cause does not preclude inquiry into the knowing or reckless falsity of the affidavit on which that determination was based. Second, the courts must insist that the magistrate perform his neutral and detached function and not serve merely as a rubber stamp for the police. A magistrate failing to manifest that neutrality and detachment acts as an adjunct law enforcement officer and cannot provide valid authorization for an otherwise unconstitutional search. Third, the warrant must be based on an affidavit that provides the magistrate with a substantial basis for determining the existence of probable cause. Sufficient information must be presented to the magistrate to allow that official to determine probable cause; his action cannot be a mere ratification of the bare conclusions of others.

The U.S. Supreme Court reversed the decision.

U.S. v. Murray, U.S. v. Carter, 487 U.S. 533 (1988)

FACTS: On April 6, 1983, at about 1:45 p.m., federal officers had Murray, Carter and others under surveillance. They observed Murray driving a truck and Carter a green camper into a "warehouse in South Boston." They left about 20 minutes later and as they left, the agents saw "within the warehouse two individuals and a tractor-trailer rig bearing a long, dark container." Murray and Carter later turned over the truck and camper to other drivers who were in turn followed and ultimately arrested, and the vehicles lawfully seized. Marijuana was found in both vehicles. Once they got this information, the officers in South Boston forced entry into the warehouse. There was no one in the warehouse, but they saw, in plain view, "numerous burlap-wrapped bales that were later found to contain marijuana." The officers took no further action but left the bales as they were and they "did not reenter [the warehouse] until they had a search warrant." They did not mention the prior entry when they applied for the warrant, nor did they use any of their observations made in the entry in the application. They received the warrant some eight hours after the entry and seized 270 bales of marijuana and lists of customers.

Murray and Carter requested suppression of the evidence found in the warehouse. The trial court denied suppression and they were convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does the "independent source" doctrine permit the introduction of evidence found during an unlawful search, if later found again during a valid warrant search?

HOLDING: Yes.

DISCUSSION: The Court noted that the "exclusionary rule prohibits introduction into evidence of tangible materials seized during an unlawful search"[108] and of testimony concerning knowledge acquired during an unlawful search."[109] In addition, "the exclusionary rule also prohibits the introduction of derivative evidence, both tangible and testimonial, that is the product of the primary evidence, or that is otherwise acquired as an indirect result of the unlawful search, up to the point at which the connection with the unlawful search becomes "so attenuated as to dissipate the taint."[110] However, as the exclusionary rule was being developed, the Court also "announced what has come to be known as the 'independent source' doctrine."[111]

The "dispute [in this case] is over the scope of this doctrine." Murray and Carter argued that "it applies only to evidence obtained for the first time during an independent lawful search." The prosecution, however, argued "that it applies also to evidence initially discovered during, or as a consequence of, an unlawful search, but later obtained independently from activities untainted by the initial illegality." The Court concluded however, that "the Government's view has better support in both precedent and policy."

In this case, the Court noted that "[k]knowledge that the marijuana was in the warehouse was assuredly acquired at the time of the unlawful entry." "But" the Court continued, "it was also acquired at the time of entry pursuant to the warrant, and if that later acquisition was not the

result of the earlier entry there is no reason why the independent source doctrine should not apply." Applying the exclusionary rule in the way argued by Murray and Carter "would put the police (and society) not in the *same* position they would have occupied if no violation occurred, but in a *worse* one." The Court found that "while the government should not profit from its illegal activity, neither should it be placed in a worse position than it would otherwise have occupied." The Court concluded by stating that "[s]o long as a later, lawful seizure is genuinely independent of an earlier, tainted one (which may well be difficult to establish where the seized goods are kept in the police's possession) there is no reason why the independent source doctrine should not apply."

So, the "ultimate question … is whether the search pursuant to the warrant was in fact a genuinely independent source of the information and tangible evidence at issue here."

The U.S. Supreme Court determined that the agents had not revealed what they learned in the warehouse to the magistrate, nor did they include in the warrant affidavit anything learned there. The Court remanded the case to the District Court (the trial court) to determine if the "agents would have sought the warrant if they had not earlier entered the warehouse."

Constructive Possession

Maryland v. Pringle, 540 U.S. 366 (2003)

FACTS: On August 7, 1999, a Baltimore County police officer stopped a vehicle for speeding. Inside the vehicle were Partlow, the owner and driver, Pringle, sitting in the front passenger seat and Smith, who was sitting in the back seat. When asked, Partlow produced his registration from the glove compartment. When he opened it, the officer spotted a "large amount of rolled-up money." The officer checked Partlow's record, via computer, and found it clean. He asked Partlow to step out of the car and gave him an oral warning. When a second officer arrived, Partlow was asked if he had "any weapons or narcotics" in the car, and he replied that he did not. He "then consented to a search of the vehicle." Officers found $763 in the glove compartment. When they pulled down the back seat armrest, which had been in the upright position between the seats initially, the found five plastic baggies of cocaine. None of the men admitted ownership of the drugs or the money, and the officer arrested all three of the men. Later that day, Pringle waived his Miranda rights and gave a confession (oral and written) that "the cocaine belonged to him" and that the other two men in the car knew nothing of the drugs. Partlow and Smith were released.

At trial, Pringle requested a suppression of his confession, claiming that it came from an illegal warrantless arrest that was not supported by probable cause. The trial court disagreed, however, and a jury convicted Pringle of possession with intent to distribute cocaine and possession of cocaine.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May an officer arrest all occupants in a vehicle for "constructive possession" of drugs hidden inside the passenger compartment of the vehicle?

HOLDING: Yes.

DISCUSSION: The Court noted that the "probable cause standard is incapable of precise definition or quantification into percentages because it deals with probabilities and depends upon the totality of the circumstances." The Court found it to be "an entirely reasonable inference … that any or all three of the occupants had knowledge of, and exercised dominion over, the cocaine." The Court went on to state that "a reasonable officer could conclude that there was probable cause to believe Pringle committed the crime of possession of cocaine, either solely or jointly."

Pringle had tried to argue that his arrest was merely "guilt by association," but the Court did not agree, stating there was a difference between the facts in Ybarra v. Illinois[112] and the instant case. In Ybarra, the defendant was a customer in a public tavern, but in this case, the defendant, Pringle, entered a small vehicle with two others and the Court found it "reasonable for the officer to infer a common enterprise among the three men."

The Court affirmed the conviction.

SEARCH WARRANTS

Search Warrant Affidavit

Whiteley v. Warden, Wyoming State Penitentiary, 401 U.S. 560 (1971)

FACTS: Carbon County (Wyoming) Sheriff Ogburn, acting on a tip, requested a warrant for Harold Whiteley for burglary and theft from a local business. The affidavit read as follows:

> *I, C.W. Ogburn, do solemnly swear that on or about the 23 day of November, A.D. 1964, in the County of Carbon and the State of Wyoming, the said Harold Whitely and Jack Daley, defendants did then and there unlawfully break and enter a locked and sealed building…"*

The description of the business followed. The information on Whiteley and Daley was transmitted to other agencies. As a result of this BOLO, a Laramie police officer located and arrested Whitely and searched his vehicle, finding a number of items from the burglary. Whiteley challenged the introduction of the evidence, the trial court denied that objection, and Mr. Whitely was convicted. The case was appealed, and the US Supreme Court agreed to hear the case.

ISSUE: Is a bare-bones conclusion sufficient to support a warrant?

HOLDING: No.

DISCUSSION: The Court stated that while the Laramie officers were entitled to act upon the strength of the information they were given, that did not excuse what was otherwise an invalid warrant and the evidence obtained should have been excluded at trial.

The U.S. Supreme Court reversed the conviction.

Aguilar v. Texas, 378 U.S. 108 (1964)

FACTS: Two Houston police officers applied to a magistrate for a warrant to search Aguilar's home for narcotics. Their affidavit, in relevant part, recited that:

"Affiants have received reliable information from a credible person and do believe that heroin, marijuana, barbiturates and other narcotics and narcotic paraphernalia are being kept at the above described premises for the purpose of sale and use contrary to the provisions of law."

The search warrant was issued, and narcotics were found. Aguilar challenged the introduction of the evidence, but the trial court allowed its admission. Eventually, he was convicted. Aguilar appealed, and the U.S. Supreme Court granted certiorari.

ISSUES: Does an affidavit that provides no support for its conclusions provide sufficient basis for a finding of probable cause and issuance of a search affidavit?

HOLDING: No.

DISCUSSION: In passing on the validity of the search warrant, the reviewing court may consider only information brought to the magistrate's attention.

The Court noted:

[I]nformed and deliberate determinations of magistrates . . . are to be preferred over hurried action of officers . . . who may happen to make arrests. The reasons for this rule go to the foundations of the Fourth Amendment. A contrary rule that evidence sufficient to support a magistrate's disinterested determination to issue a search warrant will justify the officers in making a search without a warrant would reduce the Amendment to a nullity and leave the people's homes secure only in the discretion of police officers.

. . .

The point of the Fourth Amendment is not that it denies law enforcement the support of usual inferences which reasonable men may draw from evidence but that it requires that such inferences to be drawn by neutral and detached magistrate instead of the officer engaged in the often competitive enterprise of ferreting out crime.

An affidavit for a search warrant may be based on hearsay information and need not reflect direct personal observations of the affiant, but magistrate must be informed of some of the

underlying circumstances on which informant based his conclusions and some of the underlying circumstances from which officer concluded that the informant, whose identity need not be disclosed, was "credible" or that his information was reliable. Although the reviewing court will pay substantial deference to judicial determinations of probable cause, the court must still insist that the magistrate perform his "neutral and detached" function and not serve merely as a rubber stamp.

The U.S. Supreme Court reversed the judgment.

Illinois v. Gates, 462 U.S. 213 (1983)

FACTS: Bloomingdale police received an anonymous letter that included statements that Lance and Susan Gates (husband and wife) were engaged in selling drugs. The text of the letter follows:

> *This letter is to inform you that you have a couple in your town who strictly make their living on selling drugs. They are Sue and Lance Gates, they live on Greenway, off Bloomingdale Rd. in the condominiums. Most of their buys are done in Florida. Sue his wife drives their car to Florida, where she leaves it to be loaded up with drugs, then Lance flys down and drives it back. Sue flys back after she drops the car off in Florida. May 3 she is driving down there again and Lance will be flying down in a few days to drive it back. At the time Lance drives the car back he has the trunk loaded with over $100,000.00 in drugs. Presently they have over $100,000.00 worth of drugs in their basement.*
>
> *They brag about the fact they never have to work, and make their entire living on pushers.*
>
> *I guarantee (sic) if you watch them carefully you will make a big catch. They are friends with some big drug dealers, who visit their house often.*

Upon receiving this letter, the police initiated an investigation. They learned that Lance Gates did live at a particular address in Bloomingdale. Further investigation revealed a second possible address. The police also determined that Gates had a reservation to fly to West Palm Beach, Florida, from Chicago on May 5. The police contacted Florida DEA agents, who met the plane and followed Gates to a Holiday Inn nearby. He went to a room registered to Susan Gates. The next morning, both Gates and the woman (later identified as Susan Gates) left the hotel in a Mercury station wagon, which was registered to Gates. They went northbound on an interstate highway. Driving time would be approximately 24 hours, from Palm Beach to Chicago.

A search warrant was obtained in Illinois based on this information. The judge determined that the information in the letter, corroborated by the officers' investigation, constituted sufficient probable cause. When Lance and Susan Gates arrived, the police were waiting. They searched the vehicle and found 350 pounds of marijuana. A search of the residence uncovered marijuana, weapons, and other contraband.[113]

Lance and Susan Gates requested and received suppression of the evidence on the basis that the affidavit did not support probable cause. The prosecution appealed and the U.S. Supreme Court agreed to hear the case.

ISSUE: May a warrant based on corroborated evidence divulged from an unknown informant satisfy the Fourth Amendment's probable cause requirement?

HOLDING: Yes.

DISCUSSION: Previous courts had created a two-pronged test for probable cause, from the Aguilar and Spinelli cases, requiring an affiant to reveal the "basis of the knowledge" of the anonymous tipster, how they came to know what they provided and then to establish the reliability or veracity of the informant. However, the Supreme Court held that Aguilar was too rigid a test, and that "probable cause is a fluid concept – turning on the assessment of probabilities in particular factual contexts – not readily, or even usefully, reduced to a neat set of legal rules." Instead, the Court adopted a test that considers the "totality of the circumstances." That test requires the issuing judge "simply to make a practical, common-sense decision whether, given all the circumstances set forth in the affidavit before him, including the 'veracity' and 'basis of knowledge' of persons supplying information, there is a fair probability that contraband or evidence of a crime will be found in a particular place."

The U.S. Supreme Court reversed the lower court's decision.

Knock and Announce

Wilson v. Arkansas, 514 U.S. 927 (1995)

FACTS: Arkansas State Police officers sought a warrant to search the home of Jacobs, a suspected drug dealer. They had probable cause, in that an informant had purchased drugs in the home. At that sale, the petitioner, Wilson, had waved a pistol in the informant's face and threatened to kill her if she were an informant. The affidavit set forth the essential facts and noted that Jacobs had previous convictions for arson and firebombing. The warrant was issued, and officers went to the house. On arrival at the house, the officers found the door unlocked and walked in without knocking. As they entered, they announced themselves as police and that they had a warrant. Evidence was seized, and Jacobs and Wilson were arrested. Wilson tried to have the evidence seized in the home suppressed on various grounds, including the fact that the officers had failed to "knock and announce" before entering and that therefore the search was unreasonable. The motion was denied. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is entering a dwelling to serve a warrant reasonable when officers do not knock and announce first and they have not established a risk either to themselves or of evidence destruction justifying an unannounced entry?

HOLDING: No.

DISCUSSION: The Court observed that it has long been a tradition of the common law that officers seeking to invade a dwelling with a warrant must knock and announce their presence. Since knock and announce was the rule at the time of the adoption of the Fourth Amendment the framers would have been well aware of that and would have considered it to be part of the inquiry as to whether a search was reasonable or not. Not every entry must be preceded by an announcement. To get a "no knock" warrant, officers must state sufficient facts in their supporting affidavits to permit a neutral and detached magistrate to conclude that knock and announce would create an unreasonable risk of peril for the officers or destruction of the evidence sought to be seized with the warrant. In most cases, however, entry without first knocking and announcing will be an unreasonable search and any evidence seized will be suppressed.

The U.S. Supreme Court reversed the lower court's decision.

Search Warrant Form/Search Warrant Service

"No Knock" Warrants

Richards v. Wisconsin, 520 U.S. 385 (1997)

FACTS: Officers in Madison, Wisconsin obtained a search warrant to search Richards' hotel room for drugs and other items. The officers requested a "no-knock" warrant, but the judge deleted those provisions from the warrant.

Upon arriving, an officer dressed as a maintenance man knocked on the hotel room door. Richards peered out through the crack, with the chain still on the door, then slammed it shut. (Later he stated he saw a uniformed officer behind the officer at the door.) After waiting for several seconds, the officers began kicking and ramming the door, all the while identifying themselves as police. When they broke through the door, they found Richards attempting to leave through a window, and eventually found drugs hidden in the ceiling.

Richards asked to have the evidence suppressed because the officers failed to knock and announce their presence. The state argued that he knew who was at the door, and besides, a drug warrant automatically indicates exigent circumstances since there is a high probability that the drugs might be destroyed if officers delay in entering the premises. The trial court denied suppression. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is there a blanket exception to the "knock and announce" rule of serving warrants when drugs are involved?

HOLDING: No.

DISCUSSION: While the Court upheld the entry in this particular case, the Court refused to recognize a blanket exception for drug cases to the general knock and announce requirement. To justify a "no-knock" warrant, the officers must have a reasonable suspicion, specific to the

situation, that knocking would be dangerous or futile or would allow the destruction of evidence. Just because drugs are suspected is not enough.

The U.S. Supreme Court affirmed the conviction.

NOTE: *The Kentucky General Assembly has addressed no-knock warrants in KRS 455.180 and 455.200. Please see the requirements to obtain and serve a no-knock warrant on page 13 of this manual.*

Miscellaneous Issues

Illinois v. McArthur, 531 U.S. 326 (2001)

FACTS: On April 2, 1997, Tera McArthur asked two officers to accompany her to the trailer she had shared with her husband, Charles, to keep the peace while she retrieved some belongings. The two officers, Assistant Chief Love and Officer Skidis remained outside while Tera went inside. When Tera returned, she advised Love to check the trailer because she had seen drugs, and that Charles had "slid some dope underneath the couch."

Love knocked on the door and requested permission to search the trailer. Charles refused. Love then sent Skidis (with Tera) to request a search warrant. Love also told Charles that he could not reenter the trailer unless he was accompanied. While waiting for the warrant, Charles was allowed to reenter the trailer, accompanied by Love, to retrieve cigarettes and to make a telephone call. Within two hours, Skidis had returned with the warrant. Marijuana was found in the trailer and Charles was arrested. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is it lawful to deny entrance to a resident while a search warrant is being obtained?

HOLDING: Yes.

DISCUSSION: The Court analyzed the circumstances as outlined. The Court determined that the officers made a reasonable effort to balance their needs with Charles McArthur's privacy rights. The officers had reason to believe that McArthur was aware of their suspicions and would destroy the drugs if given the opportunity. There was no delay in seeking the warrant. The restraint on Charles McArthur was "both limited and tailored reasonably to secure law enforcement needs while protecting privacy interests."

The U.S. Supreme Court reversed the Illinois decision and remanded for further proceedings.

Michigan v. Summers, 452 U.S. 692 (1981)

FACTS: Police officers, executing a warrant on a residence to search for narcotics, encountered Summers leaving the house. The officers requested Summers' assistance in entering the house and detained him during the search. Finding narcotics in the house, and learning

Summers did own the house, the police arrested and searched Summers. Heroin was found in his coat pocket. Summers requested and was granted suppression. The case was appealed, and the US Supreme Court agreed to hear the case.

ISSUE: Is the detention of an individual during the search of a residence lawful?

HOLDING: Yes.

DISCUSSION: The Court stated that a search warrant for a home implicitly grants law enforcement with the limited authority to detain the occupants of the premises while a proper search is conducted. The Court agreed, holding that "[T]he risk of harm to both the police and the occupants is minimized if the officers routinely exercise unquestioned command of the situation."

The U.S. Supreme Court reversed the decision of the Michigan courts.

Anticipatory Warrants

U.S. v. Grubbs, 547 U.S. 90 (2006)

FACTS: Grubbs ordered a videotape of child pornography on the Internet from what turned out to be an undercover postal inspector. Postal inspectors applied for a search warrant for Grubbs' home to seek the videotape. The affidavit stated that the warrant would not be executed unless and until the videotape had been received by a person at the address in question. The affidavit concluded that based on the information set forth the item will be found after delivery. A postal inspector delivered the package, with Grubbs' wife signing for it. Postal inspectors detained Grubbs when he left the house shortly thereafter, and then executed the warrant. Grubbs was given a copy of the warrant, but it did not have the affidavit explaining when the warrant would be executed attached. The videotape was found, and Grubbs was arrested after he admitted ordering it.

Grubbs sought suppression of the tape in District Court on the basis that the warrant failed to list the triggering condition. The District Court denied the motion. Grubbs entered a plea of guilty but reserved his right to appeal the denial of the motion to suppress. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is an anticipatory search warrant invalid if it fails to state the triggering condition on the warrant?

HOLDING: No.

DISCUSSION: Although it was not an issue preserved by appeal, the Court first addressed the question of whether anticipatory search warrants were categorically unconstitutional and held that they were not. The Court noted that most anticipatory warrants have a "triggering condition" that must be met before the warrant could be executed. The Court noted that when a warrant is ordinarily issued, the magistrate does so in anticipation that the item will still be there

when the warrant is executed. In addition, it noted that a wiretap warrant is issued in anticipation that incriminating communications will be intercepted, but they have not happened yet. Anticipatory warrants are issued with the expectation that the contraband will be there when the warrant is executed. They were held to be no different than ordinary warrants, in that they require the magistrate to determine (1) that it is now probable that (2) contraband, evidence of a crime, or a fugitive *will be* on the described premises (3) when the warrant is issued. It must also be probable that if the triggering condition occurs evidence of a crime will be found, and it must also be probable that the triggering condition will occur.

The U.S. Supreme Court affirmed the trial court's denial of the motion to suppress.

Area Search Warrant

Administrative Warrant
Reasonable Suspicion – Terry Stops

Terry v. Ohio, 392 U.S. 1 (1968)

FACTS: Cleveland Police Detective Martin McFadden had been a policeman for 39 years, a detective for 35 years, and had been assigned to his beat in downtown Cleveland for 30 years. At approximately 2:30 p.m. on October 31, 1963, Officer McFadden was patrolling in plain clothes. Two men, Chilton and Terry, standing on the corner of Huron Road and Euclid Avenue, attracted his attention. McFadden had never seen the men before and he was unable to say precisely what first drew his eye to them. His interest aroused, Officer McFadden watched the two men. He saw one of the men leave the other and walk past some stores. He paused and looked in a store window, then walked a short distance, turned around and walked back toward the corner, pausing once again to look in the same store window. Then the second man did the same. This same trip was repeated approximately a dozen times. At one point, a third man approached them and engaged them in conversation. This man then left. Chilton and Terry resumed their routine for another 10-12 minutes, then left to meet with the third man.

Officer McFadden testified that he suspected the men were "casing a job, a stick-up," and that he feared "they may have a gun." Officer McFadden approached the three men, identified himself and asked for their names to which the men "mumbled something." Officer McFadden grabbed Terry, spun him around and patted down the outside of his clothing. In the left breast pocket of Terry's overcoat, Officer McFadden felt a pistol, which he retrieved. Officer McFadden proceeded to pat down Chilton, felt and retrieved another revolver from his overcoat. Officer McFadden patted down the third man, Katz, but found no weapon. Chilton and Terry were charged with carrying concealed weapons. (Chilton died before his conviction could be appealed.) Both were convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUES: 1) May an officer stop an individual briefly on reasonable suspicion that they are involved in illegal activity?

2) May an individual be frisked if the officer has reasonable suspicion that they are armed and present a danger?

HOLDINGS: 1) Yes.

2) Yes.

DISCUSSION: The Constitution forbids not all searches and seizures, but unreasonable searches and seizures. There is a "seizure" whenever police officer accosts an individual and restrains his freedom to walk away, and "search" when officer makes careful exploration of outer surfaces of person's clothing to attempt to find weapon.

“In justifying the particular intrusion, an officer must be able to point to specific and articulable facts which, taken together with rational inferences from those facts, that reasonably warrants that intrusion.” Those facts must be judged against an objective standard of whether the facts available to officer at moment of seizure or search would warrant a person of reasonable caution in belief that action taken was appropriate. Intrusions must be based on more than hunches. Simple good faith on the part of the officer is not enough.

A police officer who had observed persons go through series of acts, each of them perhaps innocent, but when taken together warranted further investigation, was discharging legitimate investigative function when he decided to approach them. The officer in this case had reasonable cause to believe that defendants were contemplating a crime, and thus had cause to stop and speak to them. Because McFadden suspected them of an intent to commit armed robbery on the business, there was cause to believe they may be armed, thus the officer had cause to search them for weapons. McFadden did not exceed the reasonable scope of a proper search in patting down their outer clothing.

The sole justification for an officer's search of a person whom he has no cause to arrest is protection for officer and others nearby, and it must be confined in scope to intrusion reasonably designed to discover weapons. Although the facts of the Terry case involved a pat down of the outer clothing, the language of the court's decision did not limit a frisk to the outer clothing, such as a coat. The court said, "...it must be limited to that which is necessary for the discovery of weapons which might be used to harm the officer or others nearby." “The scope of the search must be ‘strictly tied to and justified by’ the circumstances that rendered its initiation permissible.”

The U.S. Supreme Court affirmed the decision.

Ybarra v. Illinois, 444 U.S. 85 (1979)

FACTS: Police had a search warrant for narcotics for the "Aurora Tap Tavern" in Aurora, Ill. and for the person of "Greg", the bartender. Upon entering the tavern to execute the warrant, police announced their purpose and advised those present that they were going to conduct a "cursory search for weapons." All persons present, including Ybarra, a patron, were frisked. On Ybarra’s initial frisk, an officer felt what he described as "a cigarette pack with objects in it" in Ybarra’s pocket. After frisking other patrons, the officers returned to Ybarra, frisked him again and retrieved the cigarette pack. Inside, the officers found six tinfoil packets containing heroin.

Ybarra argued that the search of his person, beyond a frisk for weapons, was unconstitutional. He was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the search of a customer in a public location (for which the officer has a search warrant) lawful, absent reasonable suspicion specific to that individual?

HOLDING: No.

DISCUSSION: It is impermissibly broad to extend the general warrant of a premises to a full search of all individuals found on the premises when the warrant does not particularly support such a search. In fact, even frisking the patrons, absent specific Terry rationale for such a search of each individual, is impermissible.

The U.S. Supreme Court reversed the decision.

Michigan v. Long, 463 U.S. 1032 (1983)

FACTS: While patrolling late at night, in a rural area, officers observed a vehicle speeding and traveling erratically. The vehicle then swerved into a ditch. Long, the only occupant, "appeared to be under the influence of something" when he met the officers at the rear of the car. Long did not respond to requests to produce a license and registration, but instead headed back for the open door of the car. The officers followed him to the car and spotted a hunting knife on the floorboard of the driver's seat. The officers stopped Long, patted him down, and found no other weapons. The officers looked inside the car and spotted a plastic baggie protruding from under the armrest; the bag appeared to contain marijuana. Long was charged and requested suppression. The trial court denied the motion to suppress. The case was appealed, and eventually the U.S. Supreme Court agreed to hear the case.

ISSUE: Are vehicles subject to a reasonable suspicion frisk for weapons?

HOLDING: Yes.

DISCUSSION: The Court held that a Terry protective frisk was not restricted to the person of the suspect. The Court concluded that roadside encounters are especially hazardous, and that danger may arise from the possibility of weapons in the area near a suspect. For that reason, the Court found that extending the area of a "frisk" to the passenger compartment of a car is reasonable when there is a reasonable belief that there may be weapons in the vehicle.

The U.S. Supreme Court affirmed the denial of the motion to suppress.

Brown v. Texas, 443 U.S. 47 (1979)

FACTS: Two officers observed Brown and another man walking away from each other in an alley, in an area known for drug trafficking. They officers stopped Brown and asked him to

identify himself and explain his actions. One officer testified that Brown was stopped because the situation "looked suspicious and we had never seen that subject in that area before."

Brown was arrested under a Texas statute that made it a crime to refuse to identify oneself and was eventually convicted. At trial, one of the officers admitted that they only reason Brown was stopped was to learn his identity, and no other charges were placed against him. Brown unsuccessfully challenged the arrest. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a stop for the sole purpose of getting an identification lawful?

HOLDING: No.

DISCUSSION: In the absence of reasonable suspicion of criminal activity, the balance between the public interest and Brown's right to personal security and privacy tilts in favor of freedom from police interference. The guarantees of the Fourth Amendment do not allow stopping and demanding identification from an individual without any specific basis for believing the individual is involved in criminal activity.

As a result, the Court held that detaining Brown and requiring him to identify himself "violated the Fourth Amendment because the officers lacked any reasonable suspicion to believe Brown was engaged or had engaged in criminal conduct." The U.S. Supreme Court reversed the conviction and invalidated the statute.

U.S. v. Hensley, 469 U.S. 221 (1985)

FACTS: On December 4, 1981, "two armed men robbed a tavern in" St. Bernard, a suburb of Cincinnati. Six days later, Officer Davis "interviewed an informant who passed along information that … Hensley had driven the getaway car during the armed robbery." Davis put out a "wanted flyer" to nearby agencies, which "warned other departments to use caution and to consider Hensley armed and dangerous." One of the agencies that received the flyer was Covington PD, and some of the officers at that agency were familiar with Hensley. They "periodically looked for him at places in Covington he was known to frequent."

On December 16, Covington Police Officer Eger spotted Hensley and asked by radio if he was the subject of an outstanding arrest warrant. Two other officers came up on the radio and stated that there "might be" an Ohio warrant. The officers, Cope and Rassache, "subsequently testified that they had heard or read the St. Bernard flyer on several occasions, that they recalled that the flyer sought a stop for investigation only, and that in their experience the issuance of such a flyer was usually followed by the issuance of an arrest warrant."

However, the "dispatcher had difficulty in confirming whether a warrant had been issued." As the dispatcher called seeking the warrant, Cope spotted Hensley and pulled him over. Cope drew his weapon, approached the car, and had Hensley and his passenger step out of the car. Officer Rassache arrived and recognized the passenger as a convicted felon, Green. Rassache also saw the "butt of a revolver protruding from underneath the passenger's seat." Green was arrested. A

further search of the car "uncovered a second handgun wrapped in a jacket in the middle of the front seat and a third handgun in a bag in the back seat." Hensley was also arrested.

After state charges were dismissed, Hensley was indicted in the federal courts for being a felon in possession of a handgun. Hensley moved to suppress the firearms "on the grounds that the Covington police had impermissibly stopped him in violation of the Fourth Amendment." The District Court, however, held the stop to be proper and Hensley was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May officers make a stop based upon a wanted flyer put out by another department?

HOLDING: Yes.

DISCUSSION: The Court noted that "[a]n objective reading of the entire flyer would lead an experienced officer to conclude that Thomas Hensley was at least wanted for questioning and investigation in St. Bernard" and would "justify a brief stop to check Hensley's identification, pose questions, and inform the suspect that the St. Bernard police wished to question him." An experienced officer would also reasonably believe that a warrant had been issued, and as such, holding him for a brief time to check on the warrant was also appropriate. The Court concluded by stating that the "length of Hensley's detention from his stop to his arrest on probable cause was brief" and the evidence discovered during the stop was admissible.

The U.S. Supreme Court affirmed the decision of the trial court.

Illinois v. Wardlow, 528 U.S. 119 (2000)

FACTS: Upon seeing a caravan of police officers entering the neighborhood, an area known for heavy drug trafficking, Wardlow fled on foot. He was carrying an opaque bag. Officers caught up with him and seized him. They executed a pat-down search of Wardlow and the bag. Feeling a hard, heavy object in the shape of a handgun inside the package, they opened it to find a .38 revolver.

Wardlow was charged with possession of the weapon and moved for suppression. The Illinois trial court denied that motion, but the appellate courts reversed that decision, holding that flight alone does not justify a Terry stop. Upon appeal, the U.S. Supreme Court accepted certiorari.

ISSUE: Is running when police are sighted sufficient to perform a Terry stop?

HOLDING: Yes.

DISCUSSION: Under Terry, a stop is justified if the officer has a "reasonable, articulable suspicion that criminal activity is afoot." In this case, Wardlow's presence in a high crime area combined with his sudden flight upon seeing police officer was sufficient to meet the standard.

The Court held that "[w]hile 'reasonable suspicion' is less demanding standard than probable cause and requires a showing considerably less than preponderance of the evidence, the Fourth Amendment requires at least a minimal level of objective justification for making the stop." This case also serves to define how "reasonable suspicion" relates to probable cause, specifically pointing out that it is less than a preponderance of evidence.

The Court made the point that unprovoked flight is not "going about one's business," that it is, in fact, "just the opposite." Allowing officers confronted with such flight to stop the fugitive and investigate further is quite consistent with the individual's right to go about his business or stay put and remain silent in the face of police questioning.

The U.S. Supreme Court reversed the decision of the Illinois courts**.**

Commonwealth v. Marshall, 319 S.W.3d 352 (Ky. 2010)

FACTS: While on patrol in a high-crime area, an officer spotted Nabryan Marshall. The officer was familiar with Marshall. He knew he usually carried a firearm, and he'd received information that he was actively selling narcotics. Further, he believed Marshall had an outstanding warrant. With this knowledge, the officer called for backup and chose to wait for their arrival before approaching Marshall.

By the time backup arrived, Marshall was out of sight. The officers searched the area. Soon they encountered a frantic witness who stated Marshall was involved in an altercation at a nearby apartment complex. When the officers arrived at the apartment, they witnessed two women climbing out of the window. The women told the officers they were escaping an altercation inside the apartment.

The officers entered the apartment and could hear the confrontation. They spotted Marshall in a back room facing away from them with his hands down the front of his pants. Another individual then cried out "it's in his crotch, it's in his crotch!" Fearing Marshall had a gun down his pants, an officer cuffed Marshall and conducted a frisk. A frisk of Marshall's groin revealed a "golf-ball sized" lump which the officer knew from his training and experience to be crack cocaine.
At that time, the officer pulled down Marshall's pants and underwear. He observed, from behind, a baggie tucked in Marshall's genitals containing narcotics. Without touching Marshall's anatomy, the officer removed the narcotics.

ISSUE 1: Did probable cause exist to search Marshall's groin beyond a Terry frisk?

HOLDING: Yes.

DISCUSSION: When the officer felt what he knew to be crack-cocaine during the lawful Terry frisk, the officer had probable cause pursuant to the plain-feel doctrine to conduct a further search. Once he established the lump to be crack cocaine, the officer had probable cause to arrest Marshall for possession of crack cocaine. Therefore, a further search was justified as incident to a lawful arrest. The Court explained, "the reasonable search of an individual should not be held unconstitutional simply because the suspect chooses to hide contraband in a

potentially embarrassing location and does so in a manner that makes the contraband immediately apparent to the plain feel of an officer's open hand."[114]

ISSUE 2: Was the strip search reasonable?

HOLDING: Yes.

DISCUSSION: To begin, the Court recognized there is no bright-line rule about how invasive a warrantless search may be. However, a valid arrest does not mean that an arrestee is subject to any and all searches an arresting officer wishes to conduct. It depends on the circumstances. Therefore, even a search supported by probable cause maybe be unconstitutional if it is conducted in an unreasonable manner. Strip-searches are inherently invasive and embarrassing, so it is of great importance that they be conducted reasonably.

To determine whether a strip search is reasonable, the court will consider four factors. The second factor is further broken down into four parts:[115]

(1) the scope of the particular intrusion,

(2) the manner in which the search is conducted:
   a. the type of search and its commonality,
   b. who performed the search,
   c. the weighted risk, pain, and trauma to the arrestee, and
   d. the skills required to conduct the search.

(3) the justification for initiating the search, and

(4) the place in which it is conducted.

Considering these factors, the Court concluded the strip search was reasonable. First, the scope of the intrusion was merely a visual inspection. Second, strip searches are a commonly performed search by law enforcement officers. And while it was embarrassing for Marshall, it was conducted within four walls, out of sight of any other persons, and no one physically touched any sensitive anatomy. Any pain, trauma, or risk was minimal. Further, there is not specialized training required to conduct a strip search. It requires only common sense and decency which was displayed here by the officers. Third, this search was supported by probable cause. Fourth, the search was conducted within four walls, and Marshall was not exposed to anyone not involved in the search.

Therefore, based on the totality of the circumstances, the strip search was reasonable.

Anonymous Tips

Alabama v. White, 496 U.S. 325 (1990)

FACTS: On April 22, 1987, Corporal Davis of the Montgomery (Alabama) Police Department received a phone call from an unknown person, who stated that Vanessa White would be leaving a particular address at a particular time in a specifically described vehicle. The caller further stated that she would be going to Dobey's Motel and would be in possession of approximately an ounce of cocaine inside a briefcase. Davis proceeded to the address given, along with another officer, and watched White leave the building and get into the vehicle. Davis then followed White to the motel. At that time, White appeared to be carrying nothing. With the help of a marked unit, Davis stopped the vehicle and asked White to step out, which she did. Davis explained that she was suspected of carrying cocaine, and requested permission to search, which she gave. Davis found a briefcase in the trunk, and White provided the combination. Davis found marijuana in the briefcase and arrested White. During booking, a small amount of cocaine was found in White's purse.

White moved to suppress the evidence based on an unlawful stop, but the motion was denied. White was convicted and appealed.

ISSUE: Can a sufficiently detailed and corroborated anonymous tip support a vehicle stop?

HOLDING: Yes.

DISCUSSION: The Court compared this situation to Illinois v. Gates, stating that the standard for a vehicle stop was lower than that required for a search warrant: reasonable suspicion versus probable cause. Following the logic in Gates, the Court stated that "Gates gave credit to the proposition that because an informant is shown to be right about some things, he is probably right about other facts that he has alleged, including the claim that the object of the tip is engaged in criminal activity." The "independent corroboration by the police of significant aspects of the informer's predictions imparted some degree of reliability to the other allegations made by the caller." The Court also took note that the tip not only included details of currently existing conditions, but also predicted the object's future actions, demonstrating "inside information – a special familiarity with [White's] affairs.

The U.S. Supreme Court affirmed the trial court's decision.

Florida v. J.L., 529 U.S. 266 (2000)

FACTS: Miami-Dade officers received an anonymous tip that a young black male was standing at a particular bus stop, wearing a plaid shirt, and that he was in possession of a gun. A few minutes later, officers found J.L., wearing a plaid shirt, along with two other young men, standing at that location. The officers observed no suspicious conduct, nor did they see anything to lead them to suspect that J.L. had a weapon. They seized and frisked J.L. and found a firearm.

Ultimately, the Florida courts found that the search was invalid and suppressed the evidence. The case was appealed.

ISSUE: Can an anonymous tip alone, with no other corroborating information, give reasonable suspicion to frisk for a gun?

HOLDING: No.

DISCUSSION: The Court held that an anonymous tip that is unsupported by specific information about a firearm is not sufficient to satisfy the requirement of Terry that an officer have reasonable suspicion before initiating a search. In this case, the officers had nothing but an anonymous tip about an individual carrying a firearm. An exception strictly because a firearm is alleged would subject individuals to the potential for harassment by officers acting solely on anonymous tips that may, or may not, be credible. The Court insists on at least an indicia of reliability and credibility in anonymous tips. The Court specifically stated that this case does not reach to areas where an individual has a diminished expectation of privacy, such as airports and schools.

The U.S. Supreme Court affirmed the Florida court's decision.

Search Incident to Arrest

Chimel v. California, 395 U.S. 752 (1969)

FACTS: On September 13, 1965, three police officers arrived at Chimel's home with a warrant authorizing his arrest for the burglary of a coin shop. The officers knocked on the door, identified themselves to Chimel's wife, and asked if they might come into the house. She agreed. They waited 10 or 15 minutes until Chimel returned home from work. When Chimel entered the house, one of the officers handed him the warrant and asked for permission to "look around." Chimel objected. Accompanied by the Chimel's wife, the officers then looked through the entire three-bedroom house, including the attic, the garage, and a small workshop. In the search of the master bedroom and sewing room, the officers directed her to open drawers and "to physically move contents of the drawers from side to side so that [they] might view any items that would have come from [the] burglary." They seized numerous items - primarily coins, but also several medals, tokens, and a few other objects. The entire search took between 45 minutes and an hour.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the warrantless search of an arrested subject's entire house justified as incident to the arrest?

HOLDING: No.

DISCUSSION: The Court noted that when an arrest is made, it is reasonable for the arresting officer to search the person arrested to remove any weapons that the latter might seek to use to

resist or effect his escape. In addition, the officer can search for and seize any evidence on the arrestee's person to prevent its concealment or destruction. The officer may search the area "within [the arrestee's] immediate control" - construing that phrase to mean the area from within which he might gain possession of a weapon or destructible evidence. There is no comparable justification for routinely searching any room other than that in which an arrest occurs - including all the desk drawers or other closed or concealed areas in that room itself.

The U.S. Supreme Court reversed the decision.

New York v. Belton, 453 U.S. 454 (1981)

FACTS: Belton was a passenger in an automobile driven by another individual. The vehicle was stopped for speeding. In the course of the officer's questioning of the occupants, he discovered that none of the occupants owned the car or was related to the owner of the car. During this time, the officer smelled burned marijuana and spotted an envelope on the floorboard. The officer suspected that the envelope contained marijuana.

The officer ordered all of the occupants out of the car and arrested all of them for possession of marijuana. After searching each individual, the officer searched the passenger compartment of the car. He found a jacket, a jacket belonging to Belton. He unzipped a pocket and found cocaine. Belton maintained that the search of the jacket was unreasonable. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the search of a jacket, left inside a vehicle passenger compartment, lawful under the search incident to arrest doctrine, when the jacket does not belong to the arrested person?

HOLDING: Yes.

DISCUSSION: Incident to arrest, it is lawful to search the person and the immediate area. When a policeman has made a lawful arrest of the occupant of an automobile, he may, as a contemporaneous incident of that arrest, search the passenger compartment of that automobile. The police may also examine the contents of any containers found within the passenger compartment, for if the passenger compartment is within reach of the arrestee, so also will containers in it be within his reach.

The U.S. Supreme Court affirmed the state court's conviction.

NOTE: *This case provides for the search of a vehicle incident to arrest and is good law. However, the Court has limited when such a search is permitted in Arizona v. Gant.*

Arizona v. Gant, 556 U.S. 332 (2009)

FACTS: On August 25, 1999, Tucson (AZ) officers received a tip that drugs were being sold from a particular address. Officers did a knock and talk, and spoke to Gant, who identified himself and stated he expected the owner to return later. The officers left and checked Gant's record and learned that he had an outstanding warrant for driving on a suspended OL, and that

his license was still suspended. Officers returned later and arrested several occupants. Gant arrived, driving, and got out of the car. The officers arrested and handcuffed Gant, first contacting him when he was 10-12 feet from his car. When additional officers arrived, Gant was secured in the back of a patrol car, handcuffed. The officers searched the car, finding a gun and cocaine in a jacket on the backseat of the car. Gant was charged with possession of the cocaine and possession of drug paraphernalia (the plastic bag). He moved for suppression, arguing that Belton[116] "did not authorize the search of his vehicle because he posed no threat to the officers after he was handcuffed in the patrol car and because he was arrested for a traffic offense for which no evidence could be found in his vehicle."

The trial court denied his motion, but ultimately, the Arizona Supreme Court "concluded that the search of Gant's car was unreasonable within the meaning of the Fourth Amendment." Arizona sought certiorari, and the U.S. Supreme Court granted review.

ISSUE: Does the Fourth Amendment require law enforcement officers to demonstrate a threat to their safety or a need to preserve evidence related to the crime of arrest in order to justify a warrantless vehicular search incident to the arrest conducted after the vehicle's recent occupants have been arrested and secured?

HOLDING: Yes.

DISCUSSION: The Court reviewed, at length, the precepts of Belton and Chimel v. California.[117] The Court acknowledged that the Belton opinion "has been widely understood to allow a vehicle search incident to the arrest of a recent occupant even if there is no possibility the arrestee could gain access to the vehicle at the time of the search" including situations where the arrested subject has left the scene. Further, the Court noted, "[i]n many cases, as when a recent occupant is arrested for a traffic violation, there will be no reasonable basis to believe the vehicle contains relevant evidence." In the case at bar, the Court stated that "[n]either the possibility of access nor the likelihood of discovering offense-related evidence authorized the search in this case." The Court specifically noted that in this case, there were five officers present, with three arrested subjects who were already secured in vehicles. The Court ruled that Belton and Thornton "permit an officer to conduct a vehicle search when an arrestee is within reaching distance of the vehicle or it is reasonable to believe the vehicle contains evidence of the offense of arrest.[118]" In addition, searches are permitted "when safety or evidentiary concerns demand."

The Court concluded, "officers may search a vehicle when genuine safety or evidentiary concerns encountered during the arrest of a vehicle's recent occupant justify a search" and "[c]onstruing Belton broadly to allow vehicle searches incident to any arrest would serve no purpose except to provide a police entitlement, and it is anathema to the Fourth Amendment to permit a warrantless search on that basis." The Court stated:

> Police may search a vehicle incident to a recent occupant's arrest only if (1) the arrestee is within reaching distance of the passenger compartment at the time of the search or (2) it is reasonable to believe the vehicle contains evidence of the offense of arrest. When these justifications are absent, a search of the arrestee's vehicle will be unreasonable

unless police obtain a warrant or show that another exception to the warrant requirement applies.

The Court affirmed the decision of the Arizona Supreme Court.

Closely Regulated Business (Warrantless Searches)

U.S. v. Biswell, 406 U.S. 311 (1972)

FACTS: Biswell owned a pawn shop in New Mexico licensed to deal in sporting weapons. One day he was visited by a city police officer and a Treasury agent who requested the business books and entry into the locked gun storage area. Biswell asked about a warrant but was told that it was not needed, as such inspections were authorized. Biswell was provided with a copy of the law. Biswell allowed the two officers to enter the storeroom, where they found two sawed-off rifles. Biswell was convicted of the charge of illegally possessing the weapons and appealed. The appellate court reversed the conviction. Eventually, the U.S. Supreme Court granted certiorari.

ISSUE: Is the search for (and seizure of) of illegal items found during a proper warrantless inspection of an area lawful?

HOLDING: Yes.

DISCUSSION: The Court found that, "in the context of a regulatory system of business premises that is carefully limited in time, place, and scope, the legality of the search depends not on consent but on the authority of a valid statute." The Court compared the close regulation of certain businesses, such as the liquor industry in Colannade Catering Corp. v. U.S., [119]to the regulation of firearms sales, and agreed that the firearms industry is subject to the same level of pervasive governmental inspection. The Court balanced the interests of the respective parties and determined that when an individual chooses to engage in such a business, and accept a license to do so, the licensee is made aware of the possibility of such inspections. The Court also stated that "if inspection is to be effective and serve as a credible deterrent, unannounced, even frequent, inspections are essential." Requiring a warrant would defeat that purpose.

Sweep Search

Maryland v. Buie, 494 U.S. 325 (1990)

FACTS: Following an armed robbery by two men, one of whom was wearing a red running suit, police obtained warrants for Buie and another man. Police went to Buie's home and Buie was arrested coming up from the basement. Police entered the basement "in case there was someone else" and seized a red running suit, lying in plain view. Buie was charged and requested suppression. The trial court denied the motion and Buie was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Are items found in plain view during a "protective sweep" able to be seized?

HOLDING: Yes.

DISCUSSION: The Fourth Amendment permits that, incident to an arrest, "the officers could, as a precautionary matter and without probable cause or reasonable suspicion, look in closets and other spaces immediately adjoining the place of arrest from which an attack could be immediately launched." The Court emphasized that the purpose of such a search is not a full search of the premises, but "may extend only to a cursory inspection of those spaces where a person may be found."

There are two types of protective sweeps:

- An officer may search **the area immediately adjoining** the place of arrest from which an attack could be immediately launched **without reasonable suspicion or probable cause.**
- An officer may search **additional areas** incident to arrest if the officer can articulate **a reasonable belief the additional area harbors persons posing a danger to those on scene.**

The Court held that since the entry into the basement was lawful, any items located in plain view that were evidence of the crime could be seized. The U.S. Supreme Court affirmed the conviction.

Crime Scene Search

Mincey v. Arizona, 437 U.S. 385 (1978)

FACTS: During a drug raid, an undercover officer was killed and Mincey (among others) was wounded. Other narcotics officers on the scene, pursuant to policy, called for medical assistance and searched for other victims in the apartment, but took no further action.

Homicide detectives arrived, secured the scene, and searched the property repeatedly over four days, seizing numerous items. Evidence discovered during this search was introduced at trial. No search warrant was obtained prior to the search. Mincey was convicted and appealed. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the warrantless search of a "murder scene" permissible?

HOLDING: No.

DISCUSSION: There is no "murder scene exception" to the general requirement for a search. There was no emergency or exigency that justified an immediate search; the officers had adequate time and reason to get a warrant. The property could easily have been secured to guard against tampering of evidence while waiting for the warrant.

The U.S. Supreme Court reversed the conviction.

Thompson v. Louisiana, 469 U.S. 17 (1984)

FACTS: On May 18, 1982, deputy sheriffs arrived at Thompson's home in response to a call by her daughter of a homicide. Upon arriving, deputies went through the house and found Thompson's husband dead of a gunshot wound, and Thompson lying unconscious in another room, apparently the victim of a drug overdose. According to the daughter, Thompson had shot her husband, taken a number of pills in a suicide attempt, then changed her mind and called the daughter for help. After having Thompson sent to the hospital for treatment, the deputies secured the scene. In a half-hour, homicide detectives arrived and conducted a search of the residence. During that search, three items were located that Thompson asked to have suppressed, a pistol found in the same room as her husband's body, a torn-up note in the trash, and another letter, an apparent suicide note, folded inside a Christmas card in an envelope in that same room.

Detectives admitted that they did not have valid consent to search the residence and that they had sufficient time to secure a warrant before commencing the search. The trial court granted Thompson's motion to suppress. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Does an invitation to come to a residence to render aid give a blanket consent for a search of the residence?

HOLDING: No.

DISCUSSION: While acknowledging factual differences between this case and Mincey, the Court stated that the situation was ultimately the same. The Court stated that such an invitation did not diminish the expectation of privacy of the residents in the house. The U.S. Supreme Court found the evidence inadmissible.

Flippo v . West Virginia, 528 U.S. 11 (1999)

FACTS: Flippo and his wife were vacationing at a cabin in a state park. One night he called 911 to report that they had been attacked. The police arrived to find Flippo waiting outside the cabin, with injuries to his head and legs. After questioning him, an officer entered the building and found the body of Flippo's wife, with fatal head wounds. The officers closed off the area, took Flippo to the hospital, and searched the exterior and environs of the cabin for footprints or signs of forced entry. When a police photographer arrived at about 5:30 a.m., the officers reentered the building and proceeded to "process the crime scene." For over 16 hours, they took photographs, collected evidence, and searched through the contents of the cabin. At the crime scene, the investigating officers found on a table, among other things, a briefcase, which they, in the ordinary course of investigating a homicide, opened, wherein they found and seized various photographs and negatives. The photographs included several taken of a man (later identified as a friend of Flippo and a member of the congregation where Flippo was the minister) who appears to be taking off his jeans. The prosecutor introduced the photographs as evidence of Flippo's

relationship with the man and argued that the wife's displeasure with this relationship was one of the reasons that motivated Flippo to kill her.

Flippo was indicted for his wife's murder and moved to suppress the photographs and negatives discovered in an envelope in the closed briefcase during the search. Flippo argued that the police had obtained no warrant, and that no exception to the warrant requirement justified the search and seizure. The trial court denied the motion to suppress, approving the search as one of a "homicide crime scene" and Flippo was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is there a crime scene exception to the warrant requirement?

HOLDING: No.

DISCUSSION: In a unanimous opinion the U. S. Supreme Court reversed the lower courts for further proceedings, stating:

> A warrantless search by the police is invalid unless it falls within one of the narrow and well-delineated exceptions to the warrant requirements. . . . none of which the trial court invoked here. It simply found that after the homicide crime scene was secured for investigation, a search of "anything and everything found within the crime scene area" was "within the law." . . .
>
> This position squarely conflicted with Mincey v. Arizona,[120] where we rejected the contention that there is a 'murder scene exception' to the Warrant Clause of the Fourth Amendment. We noted that police may make warrantless entries onto premises if they reasonably believe a person is in need of immediate aid and may make prompt warrantless searches of a homicide scene for possible other victims or a killer on the premises, . . . but we rejected any general 'murder scene exception' as "inconsistent with the Fourth and Fourteenth Amendments . . . ."

The Court expressed no opinion on whether the search might be justified as consensual or the applicability of any other exception to the warrant rule.

The U.S. Supreme Court overturned the conviction.

Community Caretaker

Cady v. Dombrowski, 413 U.S. 433 (1973)

FACTS: On September 9, 1969, Dombrowski was a member of the Chicago police force. He possessed, at that time, a 1960 Dodge vehicle. On that date, he traveled to West Bend, Wisconsin, and during the evening hours, he was seen at two small taverns in the area. Sometime the morning of the 10th, his vehicle broke down and was towed to his brother's farm, in an adjacent county. He returned to Chicago, rented another vehicle, and drove back to Wisconsin. That rented vehicle was seen on the farm in the early morning of the 11th, and later

that morning, Dombrowski purchased two towels at a nearby store. During that evening, Dombrowski was seen drinking heavily and had a wreck. He was picked up by a passing motorist and taken into Kewaskum, where two local officers picked him up to take him back to the wreck scene. They noticed he appeared to be drunk and gave conflicting information about the wreck.

At the scene, they investigated the wreck. Believing Chicago officers were required to carry their weapons at all times, they searched Dombrowski and found no weapon. While waiting for a tow-truck, they searched the passenger area and glovebox of the rented vehicle, again finding no weapon. The vehicle was towed to a private garage, where it would be left outside. Dombrowski was taken to the West Bend police station and arrested for drunken driving. Because of his injuries from the wreck, he was then taken to the hospital. The officers stated he was impaired and "incoherent at times." While at the hospital, he fell into a coma and was hospitalized, under guard. Another officer, Weiss, went back to the garage and again searched the rented vehicle, still believing there might be a weapon in the vehicle.

Inside the vehicle, Officer Weiss found a book of Chicago police regulations and a flashlight that had drops of what appeared to be blood on it. Opening the truck, he found numerous items covered in type O blood; Dombrowski had type A. These items included clothing, including police uniform trousers, a nightstick with "Dombrowski" stamped on it, a raincoat, a towel, and a car mat. The blood on the mat was still moist. These items were collected as evidence. Eventually Dombrowski informed the police that "he believed there was a body lying near the family picnic area at the north end of his brother's farm." They located the body of McKinney, and he was later found to have been struck over the head and shot, dying in the early morning hours of the 11th. McKinney had type O blood.

Dombrowski was convicted of murder. His conviction was upheld by the Wisconsin Supreme Court. He filed a habeas corpus petition (a petition to test the legality of the detention) based upon the alleged constitutional violation The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a search of a vehicle, in the interest of general public safety, unconstitutional?

HOLDING: No.

DISCUSSION: The Court reasoned that the Dombrowski's wrecked vehicle represented a nuisance, and that the search of the vehicle was done for a proper reason, the concern of the officers for the safety of the general public that might be endangered by someone finding a weapon in the car. The vehicle was to be left outside in an unguarded location. At the time of the search, the officer had no idea that a murder, or any other crime, had been committed. The Court recognized that posting a guard on the vehicle might not have been feasible for the officers in Kewaskum, Wisconsin. The Court concluded that a "caretaking" seizure of the car, and search within for a weapon believed to be inside, was a reasonable and appropriate under the circumstances.

The U.S. Supreme Court reversed the Court of Appeals decision.

Caniglia v. Strom, 593 U.S. 194 (2021)

FACTS: Amid a fight with his wife, Edward Caniglia placed a handgun on the dining-room table and asked his wife to just "shoot [him] now and get it over with."[121] Mrs. Caniglia promptly left their marital home and stayed the night at a hotel. The next day, Mrs. Caniglia became concerned when she could not reach Edward and called the police to request a welfare check. When the police arrived at the Caniglia's home, Edward was on the front porch. He largely confirmed his wife's account of the fight but denied any allegation that he was suicidal. The police were unconvinced. EMS arrived on scene, and Edward agreed to go to the hospital for a psychiatric evaluation on the condition that the officers did not confiscate his firearms. As soon as Edward departed in the ambulance, the officers entered his home and took his firearms.

Edward sued, claiming the officers violated his Fourth Amendment right to be free from unreasonable search and seizure when they entered his home and confiscated his firearms. In their defense, the officers claimed their warrantless entry into the Caniglia's home was justified by the community-caretaking exception.

ISSUE: Does the community-caretaking exception apply to searches and seizures within a home?

HOLDING: No.

DISCUSSION: The Court explained that the community-caretaking exception discussed in Cady v. Dombrowski had to do with the warrantless search of a vehicle.[122] Here, the place searched was not a vehicle, but a home. There is a significant constitutional difference between vehicles and homes. The home has the highest expectation of privacy, while a vehicle has a much-diminished expectation of privacy. Therefore, the Court explained, "[w]hat is reasonable for vehicles is different from what is reasonable for homes."[123] While a warrantless search of a vehicle may be justified under the community-caretaking exception, the warrantless search of a home will not. The only way to gain entry into a home is through a warrant, consent, or exigent circumstances. Exigent circumstances include "the need to 'render emergency assistance to an injured occupant or to protect an occupant from imminent injury[,]'"[124] which may present itself on a welfare check. However, the entry into the Caniglia's home was neither to render emergency assistance to an injured occupant nor to protect an occupant from imminent injury. Therefore, the officer's warrantless entry was unlawful.

Hot / Fresh Pursuit

Warden of Maryland Penitentiary v. Hayden, 387 U.S. 294 (1967)

FACTS: About 8 a.m. on March 17, 1962, an armed robber entered the business premises of the Diamond Cab Company in Baltimore, Maryland. The robber took $363 and ran. Two cab drivers in the vicinity, attracted by the shouts of "hold-up", followed the man to 2111 Cocoa Lane. One driver notified the company dispatcher by radio that the suspect was an African-American man about 5'8" tall, wearing a light cap and dark jacket, and that he had entered the house on Cocoa Lane. The dispatcher relayed the information to the police who were proceeding

to the scene of the robbery. In less than five minutes, the police arrived at the house. An officer knocked and announced their presence. Mrs. Hayden answered the door, and the officers told her they believed that a robber had entered the house. They asked to search the house and she offered no objection. (The court held that the issue of consent by Mrs. Hayden for the entry need not be decided because the officers were justified in entering and searching for the felon, for his weapons and for the fruits of the robbery.)

The officers spread out through the first and second floors and the cellar in search of the robber. Hayden was found in an upstairs bedroom feigning sleep. He was arrested when officers on the first floor and in the cellar reported that no other man was in the house. Meanwhile, an officer was attracted to an adjoining bathroom by the noise of running water, and discovered a shotgun and a pistol in a flush tank; another officer, who was "searching the cellar for a man or the money" found in a washing machine a jacket, and trousers of the type the fleeing man was said to have worn. A clip of ammunition for the pistol and a cap were found under the mattress of Hayden's bed and ammunition for the shotgun was found in a bureau drawer in Hayden's room. All of these items were introduced against Hayden at his trial, and he was convicted.

ISSUES: 1. Is the warrantless entry into a house, in hot pursuit of a fleeing subject, lawful?

2. If the warrantless entry into a house in hot pursuit of a fleeing subject is lawful, may items of evidence be seized while inside the residence?

HOLDINGS: 1. Yes.

2. Yes.

DISCUSSION: When police were informed that an armed robbery had taken place and that a suspect had entered a certain house less than five minutes before they reached it, officers acted reasonably when they entered the house. The officers began to search for the suspect and for weapons which he had used in robbery, or which might be used against them. The permissible scope of the search could be as broad as reasonably necessary to prevent danger that suspect at large in house might resist or escape.

The Fourth Amendment does not require police to delay in course of investigation if to do so would gravely endanger their lives or the lives of others. Speed here was essential, and only a thorough search of the house for persons and weapons could have insured that Hayden was the only man present and that the police had control of all weapons that could be used against them or to effect escape. Language of the Fourth Amendment does not support any distinction between "mere evidence" and instrumentalities, fruits of crime, or contraband.

The U.S. Supreme Court affirmed the trial court’s decision.

Lange v. California, 594 U.S. 295 (2021)

FACTS Lange drove by a California Highway Patrol Officer in Sonoma, California, while listening to loud music with his windows rolled down and was repeatedly honking his horn. The officer began to follow Lange's vehicle and ultimately decided to execute a traffic stop for a noise infraction by activating his cruiser's emergency equipment. At this point, Lange was approximately one hundred feet from his residence. Rather than stopping, Lange continued to his driveway and pulled his car into his attached garage. The officer followed Lange into the garage and began questioning him. Observing signs of intoxication, the officer subjected Lange to several field sobriety tests. Lange did not perform well on the field sobriety tests, and a later blood test revealed that his blood alcohol content was more than three times the legal limit in California.

The officer charged Lange with driving under the influence of alcohol, a misdemeanor, and a noise infraction. Lange moved to suppress all evidence obtained after the officer entered his garage, arguing that the warrantless entry violated the Fourth Amendment. In response, the State of California argued that the officer had probable cause to arrest Lange for the misdemeanor offense of failing to comply with a police signal. Further, the State of California asserted that the pursuit of a suspected misdemeanant always qualifies as an exigent circumstance authorizing a warrantless home entry. The Superior Court denied the motion to suppress, and this decision was affirmed on appeal.

The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE Does the pursuit of a fleeing misdemeanor suspect always qualify as an exigent circumstance, thereby permitting law enforcement to enter a residence without a warrant?

HOLDING No.

DISCUSSION The Fourth Amendment provides that "[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated." As that text makes clear, "the ultimate touchstone of the Fourth Amendment is 'reasonableness.'"[125] That standard "generally requires the obtaining of a judicial warrant" before a law enforcement officer can enter a home without permission.[126] But not always: The "warrant requirement is subject to certain exceptions."[127]

Exigent circumstances are one important exception. An officer may make a warrantless entry when "the exigencies of the situation" create a compelling law enforcement need.[128] The exigent circumstances exception enables law enforcement officers to handle emergency situations presenting a "compelling need for official action and no time to secure a warrant."[129] Over the years, this Court has identified several such exigencies. An officer, for example, may "enter a home without a warrant to render emergency assistance to an injured occupant[,] to protect an occupant from imminent injury," or to ensure his own safety.[130] So too, the police may make a warrantless entry to "prevent the imminent destruction of evidence" or to "prevent a suspect's escape."[131] In those circumstances, the delay required to obtain a warrant would bring about "some real immediate and serious consequences"—and so the absence of a warrant is excused.[132]

Exigent circumstances "requires a court to examine whether an emergency justified a warrantless search in each particular case."[133] Or put more curtly, the exception is "case-specific."[134] That approach reflects the nature of emergencies. Whether a "now or never situation" actually exists depends upon facts on the ground.[135] The issue is most naturally considered by "look[ing] to the totality of circumstances" confronting the officer as he decides to make a warrantless entry.[136]

The United States Supreme Court continued to recognize that a person's living space has the greatest expectation of privacy under the Fourth Amendment. The Fourth Amendment is based on the principle that the "right of a man to retreat into his own home and there be free from unreasonable government intrusion."[137] The Fourth Amendment thus "draw[s] a firm line at the entrance to the house."[138] What lies behind that line is of course not inviolable. An officer may always enter a home with a proper warrant. Exigent circumstances allow even warrantless intrusions.[139] But the contours of that or any other warrant exception permitting home entry are "jealously and carefully drawn," in keeping with the "centuries-old principle" that the "home is entitled to special protection."[140]

The Supreme Court held that misdemeanors are usually minor offenses, categorized by less violent and less dangerous crimes. When a minor offense alone is involved, law enforcement does not usually face the kind of emergency that can justify a warrantless home entry. While flight could potentially necessitate quick action by police, the Supreme Court determined that every case of misdemeanor flight does not pose immediate dangers of evidence destruction or further flight.

Accordingly, the Fourth Amendment requires an assessment of the case-by-case exigences arising from a misdemeanant's flight. That approach will in many, if not most, cases allow a warrantless home entry. When the totality of circumstances shows an emergency—such as imminent harm to others, a threat to the officer himself, destruction of evidence, or escape from the home—the police may act without waiting. And those circumstances, as described just above, include the flight itself. But the need to pursue a misdemeanant does not trigger a categorical rule allowing home entry, even absent a law enforcement emergency. Accordingly, the Supreme Court held that when nature of the crime, the nature of the flight, and surrounding facts present no such exigency, officers must respect the sanctity of the home—which means the officers must get a warrant.

The United States Supreme Court vacated the judgment of the California Court of Appeals.

SEARCH - VEHICLES

Vehicle Stops

<u>Delaware v. Prouse</u>, 440 U.S. 648 (1979)

FACTS: A New Castle County, Delaware police officer stopped Prouse's vehicle. As he approached, the officer smelled marijuana. The officer saw marijuana on the floor of the vehicle. At a hearing to suppress the evidence, the officer testified that he did not observe any traffic or

equipment violations or any suspicious activity. The officer said that he made the stop to check the license and registration, testifying that; "I saw the car in the area and wasn't answering any complaints, so I decided to pull them off." Prouse was eventually convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May law enforcement officers stop vehicles without any cause?

HOLDING: No.

DISCUSSION: Stopping an automobile and detaining the driver simply to check his driver's license and automobile registration are unreasonable actions under the Fourth Amendment. If the officer has articulable and reasonable suspicion that a motorist is unlicensed or that an automobile is not registered, or that either the vehicle or an occupant is in violation of the law, the stop would be reasonable. The Court mentioned that pulling a vehicle over is different from a traffic checkpoint. Questioning of all traffic at roadblock-type stops is permissible, as are weigh stations and checkpoints for commercial motor vehicles.

The U.S. Supreme Court reversed the conviction.

Navarrette v. California, 572 U.S. 393 (2014)

FACTS: On August 23, 2008, 911 dispatch for the California Highway Patrol (CHP) in Mendocino County, CA, received a call from the CHP dispatcher in adjacent Humboldt County. Humboldt County relayed a tip from a 911 caller, which was broadcast to CHP officers at 3:47 p.m., as follows:

> Showing southbound Highway 1 at mile marker 88, Silver Ford 150 pickup. Plate of 8-David 94925. Ran the reporting party off the roadway and was last seen approximately five [minutes] ago.

At 4 p.m., a CHP officer heading northbound toward the area passed the truck; he made a U-turn and made the stop at 4:05 p.m. A second officer arrived on scene and the two officers approached the truck; they immediately smelled marijuana. A search of the truck revealed 40 pounds of marijuana. Navarette was driving; his passenger bore the same last name. Both were arrested.

The Navarettes moved to suppress the evidence, arguing that the traffic stop violated the Fourth Amendment as the stop lacked reasonable suspicion. The California trial courts denied suppression. Both Navarettes entered conditional guilty pleas to transporting marijuana and appealed. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Might an anonymous 911 caller provide sufficient information to support a traffic stop?

HOLDING: Yes.

DISCUSSION: The Supreme Court held that this traffic stop was justified because, under the totality of the circumstances, the officer had a reasonable suspicion that Navarette was driving while intoxicated. The reasonable suspicion standard permits an officer to rely on information beyond what the officer personally observed. A stop based on an anonymous tip does not violated the Fourth Amendment as long as the officer had reason to believe the information contained in the tip was reliable. In this case, the information came from a call from a driver who had been run off the road, which means the caller claimed personal knowledge of the incident. Moreover, the call from the motorist occurred almost immediately after the incident. As the anonymous tip contained indicators of reliability and reported behavior consistent with intoxicated driving, the officer had sufficient reasonable suspicion to believe Navarette's vehicle caused the initial incident.

The Supreme Court affirmed the decision of the California Court of Appeal.

Rodriguez v. U.S., 575 U.S. 348 (2015)

FACTS: On March 27, 2012, just after midnight, Officer Struble (Valley PD, Nebraska) watched a vehicle veer slowly onto the shoulder of a state highway for a few seconds, and then "jerk back onto the road." Since Nebraska law prohibited driving on the shoulder, Struble executed a traffic stop. Along with Officer Struble was his K-9, Floyd. Rodriguez was driving the vehicle and Pollman occupied the front passenger seat.

Struble approached on the passenger side. Rodriguez identified himself and explained that he swerved to avoid a pothole. Struble gathered the documents and asked Rodriguez to accompany him back to the patrol vehicle. Rodriguez asked if he was required to do so, and "Struble answered that he was not." Rodriguez elected to stay in his own vehicle. After running a records check on Rodriguez, Struble returned and questioned Pollman, obtaining his ID. Struble asked about their travel plans. Struble returned to his car to do a records check on Pollman and requested back-up. Struble wrote a warning ticket for the violation. On his third trip to the car, by about 12:28, Struble issued the warning and returned the documents he was holding. Nevertheless, Struble later stated that he did not consider the pair "free to leave." Struble asked for consent to walk his dog around the vehicle, which Rodriguez denied. "Struble then instructed Rodriguez to turn off the ignition, exit the vehicle, and stand in front of the patrol car to wait for the second officer." When a deputy arrived a few minutes later, Struble had Floyd circle the vehicle. Floyd alerted on his second pass and, ultimately, a large bag of methamphetamine was found. "All told, seven or eight minutes had elapsed from the time Struble issued the written warning until the dog indicated the presence of drugs."

Rodriguez was indicted in federal court for the methamphetamine. Rodriguez moved for suppression, which was denied. Although the trial court agreed there was nothing to support the detention, the court concluded that the short detention was only a de minimis intrusion on Rodriguez's Fourth Amendment rights and was therefore permissible. Rodriguez entered a conditional guilty plea. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May a traffic stop be prolonged, absent at least reasonable suspicion, to allow for a drug sniff by a K-9?

HOLDING: No.

DISCUSSION: The Court agreed that a "seizure for a traffic violation justifies a police investigation of that violation," and is more akin to a Terry stop than an arrest. "Like a Terry stop, the tolerable duration of police inquiries in the traffic-stop context is determined by the seizure's "mission"—to address the traffic violation that warranted the stop."[141] "Authority for the seizure thus ends when tasks tied to the traffic infraction are—or reasonably should have been—completed." In both Caballes and Johnson, the Court emphasized that an unrelated investigation can be done, so long as it "did not lengthen the roadside detention."[142] Additional inquiries might include "checking the driver's license, determining whether there are outstanding warrants against the driver, and inspecting the automobile's registration and proof of insurance."[143] The Court noted, however, that a "dog sniff, by contrast, is a measure aimed at 'detect[ing] evidence of ordinary criminal wrongdoing.'"[144] The Court noted that the critical question is "not whether the dog sniff occurs before or after the officer issues a ticket … but whether conducting the sniff 'prolongs' … 'the stop.'"

The United States Supreme Court vacated the Eighth Circuit's decision and remanded for further proceedings.

Kansas v. Glover, 589 U.S. 376 (2020)

FACTS: While on routine patrol, Douglas County (Kansas) Deputy Sheriff Mark Mehrer observed a 1995 Chevrolet 1500 pickup truck with Kansas plate 295ATJ being operated by a male subject. Deputy Mehrer ran the license plate through the Kansas Department of Revenue's file service. The registration check indicated that the plate was assigned to a 1995 Chevrolet 1500 pickup truck, registered to Charles Glover, Jr. Deputy Mehrer was further advised that Glover's driver's license was revoked. Based solely upon this information and believing that the male operator was Glover, Deputy Mehrer executed a traffic stop. During the stop, Deputy Mehrer identified the truck's driver as Charles Glover, Jr. Glover was charged with driving as a habitual violator. Glover filed a motion to suppress all evidence seized during the stop. The district court granted Glover's motion to suppress. The Kansas Supreme Court affirmed the district court, holding that Deputy Mehrer was unable to articulate reasonable suspicion of criminal activity to justify this stop because his belief that Glover was operating the vehicle was "only a hunch." The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: For purposes of an investigative stop under the Fourth Amendment, is it reasonable for an officer to suspect that the registered owner of a vehicle is the one driving the vehicle absent any information to the contrary?

HOLDING: Yes**.**

DISCUSSION: The ultimate touchstone of the Fourth Amendment is reasonableness.[145] The Fourth Amendment permits an officer to initiate a brief investigative stop when the officer has "a

particularized and objective basis for suspecting the particular person stopped of criminal activity"[146] that is considerably less than probable cause.[147] Reasonable suspicion does not have to be perfect.[148] In articulating reasonable suspicion, officers are also permitted to make "commonsense judgments and inferences about human behavior."[149]

States have a vital interest in ensuring that only those qualified to do so are permitted to operate motor vehicles and that licensing, registration and vehicle inspection requirements are being observed.[150] Further, research has proven that drivers with revoked licenses frequently continue to drive and therefore pose safety risks to other motorists and pedestrians.

In this case, Deputy Mehrer observed a male suspect operate a 1995 Chevrolet 1500 pickup truck with Kansas plate 295ATJ. The deputy learned from running this license plate that the truck's registered owner, Glover, had a revoked license. From these facts, Deputy Mehrer drew the commonsense inference that Glover was likely the driver of the vehicle, which provided more than reasonable suspicion to initiate the stop. Combining database information and commonsense judgments in this context is fully consonant with Fourth Amendment precedent.

The United States Supreme Court did stress that all seizures must be justified at its inception, taking the totality of the circumstances into account. Accordingly, the presence of additional facts may dispel reasonable suspicion. For example, if the registered owner of the vehicle is identified as a male in his mid-sixties, but the officer observed that the driver is a female in her mid-twenties, the totality of the circumstances would not justify a stop absent some other violation of the law.

Pretext Stops

Whren v. U.S., 517 U.S. 806 (1996)

FACTS: Officers patrolling a "high drug area" in an unmarked car observed Brown, the driver of a truck, waiting at stop sign for unusually long time, then turning suddenly without signaling, and finally speeding. Officers stopped the vehicle. Upon approaching the truck, officers saw plastic bags containing crack cocaine in Whren's hands – Whren was in the passenger seat.

Whren argued that the officer's reason for approaching the car was pretextual, and that the drugs should be suppressed. Whren was eventually convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a "pretext stop," defined as a stop for a minor reason when the officer subjectively believes that other crimes are being committed, valid?

HOLDING: Yes.

DISCUSSION: The officers had probable cause to make the initial traffic stop. Whren argued that because the traffic code consists of a "multitude of applicable traffic and equipment regulations," that officers could always find a reason to stop any car, and as such, the test should be what a reasonable officer would do under the circumstances. In other words, would a reasonable officer

have made that particular stop? The Court recognized that it would be almost impossible to define "standard police practices," as they would differ dramatically from place to place, and held that if the officers could identify valid reasons for the stop, that such stops were permitted without considering the subjective intent of the officers involved.

The U.S. Supreme Court affirmed Whren's conviction.

Vehicle Exception (Carroll) Search

Carroll v. U.S., 267 U.S. 132 (1925)

FACTS: On September 29, 1921, undercover prohibition agents met with Carroll in an apartment in Grand Rapids, for the purpose of buying illegal whiskey. Carroll left to get the whiskey. He returned and said that his source was not in, but that he would deliver it the next day. He did not return, however.

On October 6, while patrolling the road leading from Detroit to Grand Rapids, the agents saw Carroll in the same Oldsmobile roadster going eastward from Grand Rapids towards Detroit. They gave pursuit but lost the car. On December 15, again while on patrol on the same road, saw Carroll in the same Oldsmobile roadster coming from Detroit to Grand Rapids. They gave chase and stopped Carroll, searched the car, and found 68 bottles of illegal whiskey behind the upholstery, the filling of which had been removed. Carroll was arrested. In addition, the road from Detroit to Grand Rapids was heavily used to introduce illegal whiskey into the country. The agents were not expecting to encounter Carroll at that particular time, but when they met Carroll there, they believed (the Court found the agents had probable cause) that he was carrying liquor, and hence the seizure and search of the vehicle. Carroll was convicted. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the search of a vehicle in a public place, upon probable cause that the vehicle contains contraband, lawful?

HOLDING: Yes.

DISCUSSION: In light of the facts, it is clear that the officers had probable cause for the search and seizure. The Court made extensive references to preceding cases and to statutes and stated that, "... recognizing a necessary difference between a search of a store, dwelling house, or other structure in respect of which a proper ... warrant may be obtained and a search of a ship, motor boat, wagon, or automobile for contraband goods, where it is not practicable to secure a warrant, because the vehicle can be quickly moved out of the locality or jurisdiction in which the warrant must be sought."

The reasoning of Carroll concerning the need to permit warrantless search "where it is not practicable to secure a warrant" suggested that a warrantless search of a car would be permissible with respect to any type of object for which a warrant to search could be obtained were there time to secure a warrant. Subsequent cases discussed the warrantless search in Carroll based on the mobility of the vehicle, noting that the opportunity to search is fleeting since

a car is readily moveable. The Court said that the "right to search and the validity of the seizure are not dependent on the right to arrest." In Carroll, the police had probable cause that the auto contained contraband yet no lawful basis for taking custody of the occupants of the vehicle so as to prevent its leaving while a search warrant was sought.

The U.S. Supreme Court affirmed the conviction.

Maryland v. Dyson, 527 U.S. 465 (1999)

FACTS: A deputy sheriff in St. Mary's County received a tip from a reliable informant that Dyson, a known drug dealer, had gone to New York in a rented car to buy drugs and would be returning that night. A description of the vehicle, including the license number, was provided. When Dyson returned in the rented car, deputies stopped the car, and the vehicle was searched without a warrant. Crack cocaine was found in a duffel bag in the trunk. Dyson sought to suppress the cocaine as it had been discovered in a warrantless search. Dyson argued among other things that there were no exigent circumstances and the police had plenty of time to get a warrant, but that they had not done so. The Maryland court ruled that there was no exigency that prevented or even made it difficult to get a search warrant prior to the search and suppressed the evidence. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is it necessary to find exigent circumstances to avoid getting a warrant for a search of a vehicle when there is probable cause that the vehicle contains contraband?

HOLDING: No.

DISCUSSION: The U.S. Supreme Court rejected Dyson's argument. The Court stated that the automobile exception has no separate exigency requirement. The automobile exception is based on the ready mobility of the vehicle and the reduced expectation of privacy resulting from its use as a readily mobile vehicle, justifying application of the vehicular exception[151]. Citing the more recent Pennsylvania v. Labron, which had a nearly identical fact pattern to this case, the Court restated the rule that "[I]f a car is readily mobile and probable cause exists to believe it contains contraband, a warrant is not needed"[152] There is no exigency requirement that must be met to justify a search of an automobile without a warrant.

The U.S. Supreme Court reversed the decision of the Maryland appellate court.

Carroll - Containers

U.S. v. Ross, 456 U.S. 798 (1982)

FACTS: Acting on a tip about a drug sale, officers stopped the car described in the tip and arrested the driver, who also matched the tip given. The officers opened the trunk, found a closed paper bag, and inside discovered plastic packages of a white powder, later found to be heroin. The officers then drove the car to headquarters and searched the car a second time. On the second search, a zippered pouch was found, containing a good deal of cash.

Ross was charged, unsuccessfully moved to suppress the evidence, and was eventually convicted. The appellate court reversed, however, holding that the trunk should not have been searched without a warrant. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUES: 1. May officers search a vehicle with probable cause to believe the vehicle contains packages of contraband?

2. May they then move the vehicle to another location and search it a second time?

HOLDING: 1. Yes.

2. Yes.

DISCUSSION: Police officers who have legitimately stopped an automobile and who have probable cause to believe that contraband is concealed somewhere within may conduct a warrantless search of the vehicle that is as thorough as a magistrate could authorize by warrant. A search of a vehicle is not unreasonable if based on objective facts that would justify the issuance of a warrant.

The U.S. Supreme Court reversed the appellate court's decision and remanded the case.

U.S. v. Johns, 469 U.S. 478 (1985)

FACTS: Pursuant to an investigation of a suspected drug smuggling operation, United States Customs officers, by ground and air surveillance, observed two pickup trucks as they traveled to a remote private landing strip and the arrival and departure of two small airplanes from that strip. The officers smelled the odor of marijuana as they approached the trucks and saw, in the back of the two trucks, packages wrapped in dark green plastic and sealed with tape, a common method of packaging marijuana. The officers were unaware of the packages until they approached the trucks.

After making several arrests, including Johns, the officers took the pickup trucks to DEA headquarters. The packages were removed from the trucks. Three days later, and without obtaining a search warrant, DEA agents opened some of the packages and took samples, the samples proved to be marijuana. Johns was charged. He requested suppression, claiming that the search of the packages that had been recovered from the vehicles and placed in storage, three days after the seizure of the vehicles, required a warrant. The Court overruled the motion to suppress. The defendant appealed and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is the warrantless search of packages several days after their seizure from a vehicle that police had probable cause to believe contained contraband a violation of the Fourth Amendment?

HOLDING: No

DISCUSSION: The record shows that the officers had probable cause that not only the packages but also the trucks themselves contained contraband. The warrantless search of the packages was not unreasonable merely because it occurred three days after the packages were seized. Because the officers had probable cause to believe that the trucks contained contraband, any expectation of privacy in the vehicles or their contents was subject to the officers' authority to conduct a warrantless search. The warrantless search was not unreasonable merely because the officers returned to the DEA headquarters and placed the packages in storage temporarily rather than immediately open them. Since the Government was entitled to seize the packages and could have searched them without a warrant originally, the warrantless search three days later after the packages were placed in the warehouse was reasonable and consistent with the Court's precedent involving searches of impounded vehicles. A vehicle lawfully in police custody may be searched on the basis of probable cause to believe it contains contraband and there is no requirement of exigent circumstances to justify such a warrantless search.

The U.S. Supreme Court reversed the decision.

California v. Acevedo, 500 U.S. 565 (1991)

FACTS: On October 28, 1987, Officer Coleman of the Santa Ana Police Department received a call from a DEA agent in Hawaii. The agent told Coleman that he had seized a package of marijuana from Federal Express, which was to have been delivered to Daza in Santa Ana. The agent then sent the package to Coleman, who was to allow Daza to claim the package at the Federal Express office. Daza claimed the package and returned to his apartment. Shortly afterward, Daza left the apartment, and was observed disposing of a box and paper in an outside trash container. St. George went to get a search warrant. A few minutes later, St. George left the apartment, carrying a knapsack. Coleman was stopped, and the knapsack was found to contain over a pound of marijuana. A little later, Acevedo arrived at the apartment. Acevedo stayed a few moments, then left with a full paper bag. The bag was approximately the size of one of the wrapped marijuana packages. Acevedo placed the bag in the trunk of his car. At that moment, the officers stopped Acevedo and searched the package, finding marijuana.

Acevedo was convicted and appealed. The California appellate court, facing confusing rulings in earlier Supreme Court cases, found for Acevedo. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a package in the trunk of a car, for which probable cause exists to believe contains contraband, subject to search without a warrant?

HOLDING: Yes.

DISCUSSION: The Court outlined the history of search as it relates to automobiles, from Carroll forward. The Court concluded "[i]f destroying the interior of an automobile is not unreasonable, we cannot conclude that looking inside a closed container is." The Court extended the interpretation of the Carroll doctrine in Ross to apply to all searches of containers found in an automobile, stating that "the police may search without a warrant if their search is supported by

probable cause." The Court however, limited the decision by stating that probable cause to search a particular package for contraband does not necessarily extend to probable cause to search the entire vehicle.

The U.S. Supreme Court reversed the California appellate court's decision.

Recreational Vehicles/Mobile Homes

California v. Carney, 471 U.S. 386 (1985)

FACTS: DEA had information that defendant was exchanging marijuana for sex in a motor home parked in a regular parking lot in downtown San Diego. DEA observed a youth enter the motor home with Carney and stay for over an hour. Agents stopped the youth when he left the motor home, and the youth stated he had received marijuana in return for allowing Carney sexual contact. The youth, at the agent's request, went back to motor home, knocked on the door, and Carney stepped out. Agents went inside and observed marijuana immediately, and a further search revealed additional marijuana. Carney was arrested and claimed in a motion to suppress that the search of the motor home without a warrant violates the Fourth Amendment because the vehicle has a dual use as a dwelling. Upon denial of the suppression motion, Carney entered the equivalent of a conditional guilty plea, which the appellate California court upheld. However, the California Supreme Court reversed the conviction, holding the search to be unreasonable. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a motor home a vehicle or a dwelling for Fourth Amendment purposes?

HOLDING: It depends.

DISCUSSION: A warrant is not required when a vehicle is being used on the highways or is capable of that use and found stationary in a place not regularly used for residential purposes. The vehicle was so situated that an objective observer would conclude that the vehicle was being used as a vehicle, not a residence.

The U.S. Supreme Court reversed the decision and held, under these circumstances, that the RV was a vehicle.

Roadblocks

Michigan Dept. of State Police v. Sitz, 496 U.S. 444 (1990)

FACTS: In early 1986, the Michigan State Police established a sobriety checkpoint. A task force, appointed by the police director, created guidelines concerning checkpoint operations, site selection and publicity. Under those guidelines, all vehicles passing through a checkpoint would be stopped and the driver checked for intoxication. If the officer detected such signs, the motorist would be pulled out of the traffic flow and further examined, and if appropriate, arrested. All other drivers would be allowed to continue.

On the first day of the first checkpoint, in Saginaw County, 126 vehicles passed through the checkpoint in 75 minutes, with the average delay being 25 seconds. Two drivers were further held for field sobriety testing, and one of the two was arrested. (A third vehicle drove through the checkpoint without stopping; it was later stopped, and the driver arrested for DUI.) The checkpoints were suspended pursuant to an injunction filed in another county.

Following a hearing, the trial court found the checkpoints violated the Fourth Amendment. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Are stops during a DUI checkpoint unlawful?

HOLDING: No.

DISCUSSION: The Michigan courts relied upon language in previous Supreme Court cases to perform a balancing test between the rights of the motorists and the needs of the State to curb drunk driving. However, while the Court agreed that the stops were seizures, it determined such stops were reasonable, given the limited intrusion on law-abiding citizens and the tremendous problem with impaired driving in the United States.

The U.S. Supreme Court reversed the decision and upheld the stop.

City of Indianapolis v. Edmond, 531 U.S. 32 (2000)

FACTS: Indianapolis police directives set guidelines for roadblocks for the specific purpose of drug interdiction. Signs were posted giving notice of a narcotics checkpoint, and persons stopped at such checkpoints were advised they were being stopped briefly at a drug checkpoint and were asked to produce a driver's license and vehicle registration. Edmond and Palmer were stopped at one of the narcotics checkpoints; neither was arrested. Both filed a class action lawsuit (with themselves as representative members of the class) claiming that such stops are unreasonable under the Fourth Amendment. An appellate court agreed and found the stop to be unreasonable. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Do roadblocks set up expressly for the purpose of narcotics interdiction violate the reasonableness of seizures under the Fourth Amendment?

HOLDING: Yes.

DISCUSSION: The Court declined to allow a roadblock that has, as its primary purpose, the uncovering of evidence of general criminal wrongdoing (in this case, narcotics interdiction). To allow such actions would remove the requirement of individualized suspicion in detaining persons. Checkpoints have previously only been recognized as limited exceptions to the general rule of no detention without that particularized reasonable suspicion necessary. Traffic roadblocks intended to catch offenders who are an "immediate, vehicle-bound threat to life and limb," such as sobriety checkpoints, remain permissible, as they bear a "close connection to roadway safety." Roadblocks have been, and still are, effective tools for determining if a person is licensed and a vehicle registered. The Court specifically held that a DUI roadblock is also

important to highway safety and thus reasonable under the Fourth Amendment. In addition, the Court also noted that this does not prevent law enforcement authorities setting up an emergency roadblock to catch a fleeing criminal or to thwart imminent danger such as a terrorist attack.

The Court also said that this decision does not prevent law enforcement officers, while conducting a lawful roadblock, from arresting a motorist for a crime unrelated to the reason for the roadblock. For example, while conducting a roadblock to check license and registration, if the officer smelled marijuana, the officer would then have appropriate cause to check the vehicle for further evidence of marijuana possession.

The Court affirmed the lower court's decision.

Illinois v. Lidster, 540 U.S. 419 (2004)

FACTS: On August 23, 1997, a bicyclist was struck and killed by a hit and run driver. About a week later, local officers set up a checkpoint near the location, hoping to get information on the incident from the "motoring public" who frequented that roadway. Traffic was routed into single lines, and officers would spend 10-15 seconds speaking to the occupants about the fatality and giving them a flyer about the incident.

Lidster drove his minivan toward the checkpoint, but as he approached, he swerved, nearly hitting an officer. The officer smelled alcohol (an alcoholic beverage) on Lidster's breath, and directed him to a side street, where another officer gave him a field sobriety test and arrested him. Lidster was convicted of DUI. Lidster challenged the stop, claiming that "the government had obtained much of the relevant evidence through use of a checkpoint that violated the Fourth Amendment." The trial court rejected his challenge, but the appellate courts held that the stop was in violation of Indianapolis v. Edmond[153] and declared the stop unconstitutional. The case was appealed.

ISSUE: May officers conduct brief, information-seeking, traffic checkpoints when investigating a particular crime?

HOLDING: Yes

DISCUSSION: The Supreme Court held that Edmond did not govern this type of situation. The Court found that this checkpoint "differ[ed] significantly" from Edmond, because the primary purpose was not to determine if the occupants of the vehicles were involved in a crime, but to ask for "help in providing information about a crime in all likelihood committed by others." The Court noted that "voluntary requests play a vital role in police investigatory work" and that while it is necessary to stop a vehicle before the officer can ask for the motorist's assistance, the need offsets the involuntary nature of the initial seizure and is no more than many other traffic delays a motorist encounters regularly. The Court found it absurd to allow the police to stop a pedestrian to ask such questions, but not allow the same with a motorist. Finally, the Court agreed that the "Fourth Amendment's normal insistence that the stop be reasonable in context will still provide an important legal limitation on police use of this kind of information-seeking

checkpoint."

The U.S. Supreme Court held that the checkpoint in this case was constitutional.

Miscellaneous Vehicle Issues

Pennsylvania v. Mimms, 434 U.S. 106 (1977)

FACTS: While on routine patrol, two Philadelphia police officers observed Mimms driving an automobile with an expired license plate. The officers stopped the vehicle for the purpose of issuing a traffic citation. One of the officers approached and asked Mimms to step out of the car and produce his owner's card and operator's license. Mimms alighted. The officer noticed a large bulge under his sports jacket. Fearing that the bulge might be a weapon, the officer frisked Mimms and discovered in his waistband a .38-caliber revolver loaded with five rounds of ammunition. Mimms was arrested and convicted of a weapons offense. The Pennsylvania Supreme Court found that the weapon was seized unlawfully. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUES: May officers order the driver of a lawfully stopped vehicle out of the vehicle?

HOLDINGS: Yes.

DISCUSSION: The Court noted that ordering Mimms out of his car exposed little more than was already exposed. The additional intrusion was not a serious intrusion on the sanctity of the person, and hardly rises even to the level of a petty indignity. The Court agreed that ordering Mimms out was reasonable and thus permissible under the Fourth Amendment. The bulge in Mimms' jacket permitted the officer to conclude that Mimms was armed and thus posed a serious and present danger to the safety of the officer. In these circumstances, any officer of reasonable caution would likely have conducted the pat down.

The U.S. Supreme Court reversed the Pennsylvania Supreme Court's decision and remanded the case.

Maryland v. Wilson, 519 U.S. 408 (1997)

FACTS: An officer attempted to stop a car for speeding. During his pursuit of the car, he noticed two passengers in the car. The passengers were looking out the back window of the car and repeatedly ducked out of sight and reappeared. With the car stopped, the driver met the officer at the rear of the car. The officer noticed that the front seat passenger, Wilson, was sweating and appeared very nervous. When the officer ordered Wilson from the car, some crack cocaine fell to the ground. Wilson moved to suppress the cocaine, claiming the officer's ordering a passenger out of a car was unreasonable.

The trial court upheld the suppression, and the Maryland appellate court held that Mimms did not apply to passengers. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: On a traffic stop, is it reasonable to order or remove a passenger from the vehicle?

HOLDING: Yes.

DISCUSSION: A vehicle that is lawfully stopped gives cause to the driver having committed an offense, but not necessarily that a passenger has committed any wrongdoing. While there is not the same basis for ordering a passenger out of the car as there is for ordering the driver out, the additional intrusion on the passenger is minimal.

The U.S. Supreme Court reversed the Maryland decision and remanded the case for further proceedings.

Byrd v. U.S., 584 U.S. 395 (2018)

FACTS: In September 2014, Pennsylvania State Police troopers made a traffic stop of Byrd, the sole occupant of a rental car. Trooper Long, who made the stop, later indicated he was suspicious of the way Byrd was driving. Byrd was visibly nervous and was found not to be an authorized driver of the rental car he was operating. Later investigation indicated that another individual had served as, in effect, a straw renter, and have given the keys to Byrd as soon as it was rented. During the investigation, the troopers discovered an out of state warrant, but that state refused to extradite. Byrd admitted there was marijuana in the car. The troopers at the scene attempted to get consent but agreed that since Byrd was not an authorized driver, he had no expectation of privacy in the vehicle. Upon a search, 49 bricks of heroin and body armor were found in the trunk.

Byrd moved to suppress the fruits of the trunk search. Trooper Long argued at the suppression hearing that the search was also justified under the vehicle exception doctrine, but the trial court ruled that Byrd lacked standing to object, as he had no expectation of privacy in the vehicle and did not reach the issue. Byrd entered a conditional guilty plea and appealed. The Court of Appeals affirmed based on Byrd being an unauthorized driver and did not address the second justification. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May an unauthorized driver in a rental vehicle still have an expectation of privacy in that vehicle?

HOLDING: Yes.

DISCUSSION: The Court acknowledged that "there is a diminished expectation of privacy in automobiles, which often permits officers to dispense with obtaining a warrant before conducting a lawful search."[154] The Court summed up the precise question as: "Does a driver of a rental car have a reasonable expectation of privacy in the car when he or she is not listed as an authorized driver on the rental agreement?" Although an owner would always have that right, "a person need not always have a recognized common-law property interest in the place searched to be able to claim a reasonable expectation of privacy in it."[155] Simple presence isn't enough,

however, to convey that right. The Court made a distinction between passengers, who may lack that right depending upon the circumstances, and sole occupant drivers.

Continuing:

> The Court sees no reason why the expectation of privacy that comes from lawful possession and control and the attendant right to exclude would differ depending on whether the car in question is rented or privately owned by someone other than the person in current possession of it, much as it did not seem to matter whether the friend of the defendant in Jones owned or leased the apartment he permitted the defendant to use in his absence. Both would have the expectation of privacy that comes with the right to exclude.

The Court agreed that in Rakas, it had agreed that the "'wrongful' presence at the scene of a search would not enable a defendant to object to the legality of the search."[156] The Government had argued that since Byrd knew he could not lawfully rent the vehicle on his own based on his criminal record, so he may have committed a crime by using another person to do so. However, the Government's argument was not made at the lower courts and, as such, could not be considered for the first time on appeal.

The Court noted, also, that the Government did argue that the troopers had probable cause to believe that the vehicle contained contraband, based on Byrd's admission of having marijuana. The Court remanded the matter with the ruling that Byrd did have a reasonable expectation of privacy and thus standing to contest the search.

Inventory

Colorado v. Bertine, 479 U.S. 367 (1987)

FACTS: Officer arrested Bertine for DUI. After Bertine was taken into custody, and before the tow truck arrived for his vehicle, another officer, pursuant to policy, inventoried the contents of the van. In that inventory, the officer opened a backpack and found drugs, paraphernalia and cash, and charged Bertine for its possession. Bertine challenged the seizure, and the trial court agreed, suppressing the evidence. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is an inventory search lawful?

HOLDING: Yes, if conducted pursuant to agency policy.

DISCUSSION: The inventory search was lawful. The doctrine behind an inventory search is the protection of an individual's property while in custody and to guard the officers from hazardous items in the vehicle or container. There was no evidence that the officers acted for any other reason than to secure the contents of the van for safekeeping.

Florida v. Wells, 495 U.S. 1 (1990)

FACTS: Following an arrest for DUI, Wells consented to a search of his vehicle, which was being impounded. Marijuana cigarette butts (roaches) were found in the car and the officers discovered a locked suitcase with marijuana in the trunk.

Wells pled no contest but retained his right to appeal the admission of the evidence from the locked suitcase. The state Supreme Court held that the evidence should have been suppressed, as the officers' agency, the Florida Highway Patrol, had no policy on the opening of such containers during an inventory. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Absent a specific agency policy on inventory, or other exigent circumstances, should an officer open closed containers during an inventory search?

HOLDING: No.

DISCUSSION: Both the state and the United States Supreme Court agree that when an agency does not have a specific policy on when and how inventories of vehicles will be conducted, random searches, particularly of closed containers, are prohibited. An inventory policy, however, that is closely followed to avoid so much latitude that the inventory search becomes "a purposeful and general means of discovering evidence of crime," is permissible. The Court agreed that opening containers to secure items of value, and to protect officers from danger, can be permitted, when these aims cannot be achieved otherwise.

School Searches

New Jersey v. T.L.O., 469 U.S. 325 (1985)

FACTS: A teacher found high school students smoking in the lavatory, a violation of school rules. Both students were taken to Assistant Vice Principal's office, where T.L.O. denied smoking. The vice principal demanded her purse and searched it, finding cigarettes and rolling papers. Further search revealed marijuana, a pipe, plastic bags, a large amount of cash, an index card recording students who owed T.L.O. money and two letters that implicated her in marijuana dealing. T.L.O. was found on delinquent. T.L.O. appealed on the grounds that the search was a violation of her Fourth Amendments rights. The New Jersey Supreme Court reversed, holding that the evidence found in her purse should have been suppressed. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May school officials search a student's purse (or other bag) upon reasonable suspicion that the purse contains contraband?

HOLDING: Yes.

DISCUSSION: The U.S. Supreme Court held that although public school officials are included in the "government officials" to whom the Fourth Amendment applies, these school officials are

not as limited as law enforcement officers. School officials need only justify a search of a student's possessions by finding "reasonable grounds" for suspecting that a search will "turn up evidence that the student has violated or is violating either the law or the rules of the school." The United States Supreme Court reversed the New Jersey Supreme Court's decision.

COMPUTER / ELECTRONIC CRIME

Riley v. California / U.S. v. Wurie, 573 U.S. 373 (2014)

FACTS: This matter involved to cases that were consolidated for appeal. In the first case, Riley was stopped in Los Angeles police for expired registration tags, it was then learned that his license was also suspended. Riley's car was impounded and searched pursuant to the agency's inventory policy. Two handguns were found, and Riley was then arrested for the concealed weapons. Riley was searched and items associated with gang activity were found. The officer seized Riley's smart phone from his pocket, "accessed information on the phone and noticed that some words (presumably in text messages or a contacts list)" also suggested involvement in gang activity.

Two hours later, a detective specializing in gangs "further examined the contents of the phone," looking for potential evidence such as photos or videos. The detective found a photo of Riley standing in front of a vehicle suspected of being involved in a recent shooting. Riley was charged in that shooting, with enhancements for committing the crimes to benefit a criminal gang. Riley moved to suppress the evidence obtained from the phone, which was denied. Riley was convicted and the California appellate courts affirmed his conviction.

In the second case, Wurie was observed by Boston police during routine surveillance making an "apparent drug sale from a car." He was arrested, taken to the station and two phones were seized. One, a "flip phone," was "repeatedly receiving calls" from a number identified on the phone's external screen as "my house." Officers opened the phone and saw, as the phone's wallpaper, a woman and a baby. The officers were able to track the number to an apartment building. There, they saw that Wurie's name was on the mailbox and through a window, saw a woman who appeared to be the one in the photo. The officers secured the apartment, obtained a search warrant and eventually found drugs, weapons and cash. Wurie, a felon, was charged with distribution of drugs and possession of the firearms. He moved for suppression and was denied. He was convicted but upon appeal, but the First Circuit Court of Appeals reversed his conviction on appeal. The case was appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: May a cell phone be routinely searched incident to arrest?

HOLDING: No.

DISCUSSION: The Supreme Court held that the warrantless search exception following an arrest exists for the purposes of protecting officer safety and preserving evidence, neither of which is at issue in the search for digital data on a cellular telephone. The cell phone's digital data cannot be used as a weapon to harm an arresting officer, and police have the ability to preserve evidence

while awaiting a warrant by disconnecting the phone from the cellular network and placing the phone in a "Faraday bag." The Court characterized cell phones as minicomputers that contain massive amounts of private information, thereby distinguishing cell phones from traditional items that can be seized from an arrestee's person, such as a wallet. Some information, such as data saved to a "cloud" is not even located "on the arrestee's person." Some warrantless searches of cell phones may be permissible in an emergency, but the government's interests must be so compelling to justify the reasonableness of the search. The Court reversed the judgment in Riley and affirmed the judgment in Wurie.

Carpenter v. U.S., 585 U.S. 296 (2018)

FACTS: In April 2011, police arrested four men in connection with a series of armed robberies. One of the men confessed to the crimes and gave the FBI his cell phone number and the numbers of the other participants. The FBI used this informant to apply for three orders from magistrate judges to obtain "transactional records" for each of the cell phone numbers. The magistrate judges issued the orders under the Stored Communications Act.[157] The Stored Communications Act provides that the government may require the disclosure of certain telecommunications records when "specific and articulable facts show[] that there are reasonable grounds to believe that the contents of a wire or electronic communication, or the records or other information sought, are relevant and material to an ongoing communication." The transactional records obtained by the government include "cell site" location information (CSLI) which may include the date and time of calls, and the approximate location where calls began and ended based on their connections to cell towers.

Based on cell-site evidence, Carpenter was charged with numerous offenses, including aiding and abetting robbery that affected interstate commerce. Carpenter moved to suppress the government's cell-site evidence on Fourth Amendment grounds, arguing that the FBI needed a warrant based on probable cause to obtain the records. The district court denied the motion to suppress. Carpenter appealed, and the U.S. Supreme Court agreed to hear the case.

ISSUE: Is a search warrant required for access to cell site location information for historical data?

HOLDING: Yes.

DISCUSSION: The United States Supreme Court held that the government's warrantless acquisition of Carpenter's cell-site records violated his Fourth Amendment right against unreasonable searches and seizures. The Fourth Amendment protects both property interests and reasonable expectations of privacy. Expectation of privacy in the age of digital data does not fit neatly into existing precedents. Tracking a person's movements and location through extensive cell-site records, however, is far more intrusive than the precedents might have anticipated.

The Supreme Court declined to extend the "third-party doctrine" – a doctrine where information disclosed to a third party carries no reasonable expectation of privacy – to cell-site location information, which implicates even greater privacy concerns than GPS tracking does. One

consideration in the development of the "third-party doctrine" was the nature of the documents sought and the level of intrusiveness of extensive cell-site data weighs against application of the doctrine to this type of information. The "third-party doctrine" applies to voluntary exposure, while a user might be abstractly aware that his cell phone provider keeps logs as this happens without any affirmative act on the user's part. Accordingly, the Supreme Court held that the government generally needs a warrant to access cell-site location information. The Court reversed the Sixth Circuit and remanded the case for further proceedings.

Commonwealth v. Reed, 647 S.W.3d 237 (Ky. 2022)

FACTS: Dovontia Reed robbed Kirby Caldwell at gunpoint. After the robbery, Reed left the scene in a Nissan Altima. Caldwell contacted the police and provided a description of Reed and the car in which he was traveling, along with Reed's cell phone number. The officers contacted dispatch, provided Reed's cell phone number and requested they obtain Reed's real-time cell-site location information (CSLI). Using the CSLI information over a period of ninety (90) minutes, officers were able to track Reed's location and conduct a Terry stop. During the Terry stop, officers arrested Reed for Robbery 1st Degree, Possession of a Handgun by a Convicted Felon, and Receiving Stolen Property. Reed moved to suppress the CSLI information obtained by the officers, arguing it was seized without a warrant.

ISSUE: Does the acquisition of a person's real-time CSLI constitute a search?

HOLDING: Yes.

DISCUSSION: The Court held that a person has a reasonable expectation of privacy in his or her cell phone, and as such, it cannot ". . . be used as a real-time tracking device through the direct and active interference of law enforcement."[158] The Court went on to state that, "[O]fficers will always be required to obtain a warrant before obtaining a suspect's real-time CSLI."[159] The Court evaluated whether any exception to the warrant requirement in this case existed and found that no exception existed. It also found that the good-faith exception did not apply to the facts in this case. The Court found for the defendant, stating the CSLI was obtained illegally, and evidence found based upon the CSLI (the Terry stop itself) was also illegally obtained.

NOTE:

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NOTES

While many of these cases involves multiple issues, only those issues of interest to Kentucky law enforcement officers are reported in these summaries. In addition, a case is only reported under one topical heading, but multiple issues may be referenced in the discussion. Readers are strongly encouraged to share and discuss the case law and statutory changes discussed herein with agency legal counsel, to determine how the issues discussed in these cases may apply to specific cases in which your agency is or may be involved.

Non-published opinions may be included in this update and will be so noted, see below for specific caveats regarding these cases. Cases that are not final at the time of printing are not included. When relevant opinions are finalized, they will be included in future updates.

All quotes not otherwise cited are from the case under discussion. Certain cases, because they appear so often and in cases not specific to their topic matter, do not have their citations included in the endnotes. Their full citations are:

Miranda v. Arizona, 384 U.S. 436 (1966)
Terry v. Ohio, 392 U.S. 1 (1968)

NOTES REGARDING UNPUBLISHED CASES

FEDERAL CASES:

Unpublished Cases carry a "Fed. Appx." Or Westlaw (WL) citation.

Sixth Circuit cases that are noted as "Unpublished" or that are published in the "Federal Appendix" carry the following caveat: **Not Recommended for Full--Text Publication**

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Pursuant to Kentucky Rules of Civil Procedure (CR) 76.28(4)(c), Opinions that are not to be published shall not be cited or used as binding precedent in any other case in any court of this state; however, unpublished Kentucky appellate decisions, rendered after January 1, 2003, may be cited for consideration by the court if there is no published opinion that would adequately address the issue before the court. Opinions cited for consideration by the court shall be set out as an unpublished decision in the filed document and a copy of the entire decision shall be tendered along with the document to the court and all parties to the action.

ENDNOTES

[1] Nichols v. Com., 408 S.W.2d 189 (Ky. App. 1966).
[2] Torres v. Madrid, 592 U.S. 306, 141 S.Ct. 989 (2021).
[3] California v. Greenwood, 486 U.S. 35 (1988); Cook v. Com., 649 S.W.2d 198 (1983).
[4] Ragland v. Com., 265 S.W. 15 (Ky. 1924) and James v. Com., 647 S.W.2d 794 (Ky. 1983)(reversed on other grounds).
[5] Horton v. California, 469 U.S. 128 (1990).
[6] Texas v. Brown, 103 S.Ct. 1535 (1983).
[7] Arizona. v. Hicks, 107 S.Ct. 1149 (1987)
[8] 113 S.Ct. 2130 (1993).
[9] Johnson v. U.S., 333 U.S. 10 (1948).
[10] California v. Ciraolo, 476 U.S. 207 (1986); Florida v. Riley, 488 U.S. 445 (1989).
[11] Hester v. U.S., 265 U.S. 57 (1924); Oliver v. U.S., 466 U.S. 170 (1984).
[12] Florida v. Jardines, 569 U.S. 1, 6 (2013).
[13] California v. Ciarolo, 476 U.S. 207, 213 (1986).
[14] U.S. v. Dunn, 480 U.S. 294 (1987).
[15] U.S. v. Santana, 427 U.S. 38 (1976).
[16] Hohnke v. Com., 451 S.W. 2d 162 (Ky., 1970).
[17] Stuckey, Gilbert B., Evidence for The Law Enforcement Officer, McGraw-Hill Book Co., p. 215 (1968).
[18] Combs v. Com., 341 S.W. 2d 774 (Ky., 1960).
[19] Chapman v. U.S., 365 U.S. 610 (1961).
[20] Stoner v. California, 376 U.S. 483 (1964).
[21] U.S. v. Owens, 882 F.2d 146 (10th Cir., 1984)).
[22] Carr v. Com., Ky., 463 S.W.2d 109 (1971).
[23] Georgia v. Randolph, 547 U.S. 103 (2006).
[24] Schneckloth v. Bustamonte, 412 U.S. 218 (1973); and Hohnke v. Com., 451 S.W. 2d 162 (Ky. 1970).
[25] Nix v. Williams, 104 S.Ct. 2501 (1984).
[26] Segura v. U.S. 104 S.Ct. 3380 (1984).
[27] Murphy v. Com., 652 S.W.2d 69 (Ky. 1983).
[28] Coolidge v. New Hampshire, 403 U.S 443 (1971); U.S. v. Blanton, 520 F.2d 907 (6th Cir. 1975).
[29] Commonwealth v. Bertram, 596 S.W.2d 379 (1980).
[30] Coolidge v. New Hampshire, 403 U.S. 443 (1971).
[31] Bruce v. Com., 418 S.W. 2d 645 (Ky., 1967).
[32] Williams v. Com., 261 S.W. 2d 416 (Ky., 1953).
[33] Baird v. Com., 273 S.W. 2d 44 (Ky. 1954).
[34] See McMahan's Adm'x v. Draffen, Ky., 47 S.W. 2d 716 (Ky. App., 1932).
[35] See Jones v. Com., 416 S.W. 2d 342 (Ky. 1967).
[36] KRS 455.180 and KRS 455.200.
[37] Terry v. Ohio, 88 S.Ct. 1868 (1968).
[38] See Minnesota v. Dickerson, supra.
[39] Brown v. Texas, 443 U.S. 47 (1979)
[40] Michigan v. Long, 103 S.Ct. 3469 (1983).
[41] Chimel v. California, 395 U.S. 752 (1969).
[42] Collins v. Com., 574 S.W.2d 296 (Ky. 1978).
[43] The U.S. Supreme Court has upheld the stationhouse search without a warrant in U.S. v. Edwards, 94 S.Ct. 1239, (1974). Also see Illinois v. Lafayette, , 103 S. Ct. 2605 (1983).
[44] Maryland v. Buie, 494 U.S. 325, 327 (1990).
[45] Kerr v. Commonwealth, 400 S.W.3d 250, 266 (Ky. 2013).
[46] See U.S. v. Santana, 427 U.S. 38 (1976), and Warden v. Hayden, 387 U.S. 294 (1967).
[47] Lange v. California, 594 U.S. 295 (2021).
[48] Warden v. Hayden, 387 U.S. 294 (1967).
[49] Cupp v. Murphy, 93 S.Ct. 2000 (1973).
[50] U.S. v. Gargotto, 510 F.2d 409 (6th Cir., 1974).
[51] Delaware v. Prouse, 440 U.S. 648 (1979).
[52] Whren v. U.S., 517 U.S. 806 (1996).
[53] Named for the case of Carroll v. U.S., 267 U.S. 132, 45 S.Ct 280 (1925).
[54] Cady v. Dombroski, 93 S.Ct. 2523 (1973) and cases cited therein; Robbins v. California , 101 S.Ct. 2841 (1981) (Justice Rehnquist's dissent).
[55] California v. Carney, 105 S. Ct. 2066 (1985).
[56] Cady v. Dombroski, supra.
[57] Pack v. Com., 610 S.W.2d 594 (1981); Michigan v. Thomas, 102 S.Ct 3079 (1982).

[58] Estep v. Com., 663 S.W.2d 213 (1983).
[59] See U.S. v. Ross, 456 U.S. 798 (1982).
[60] California v. Acevedo, 500 U.S. 565 (1991).
[61] Arizona v. Gant, 126 S.Ct. 1710 (2009)
[62] See Michigan Dept. of State Police v. Sitz, 496 U.S. 444 (1990); City of Indianapolis v. Edmond, 531 U.S. 32 (2000); Illinois v. Lidster, 540 U.S. 419 (2004).
[63] Pennsylvania v. Mimms, 434 U.S. 106 (1977).
[64] Maryland v. Wilson, 519 U.S. 408 (1997).
[65] See Colorado v. Bertine, 107 S.Ct. 738 (1987).
[66] Wagner v. Commonwealth, 581 S.W.2d 352 (1979).
[67] Colorado v. Bertine, 479 U.S. 367 (1987).
[68] South Dakota v. Opperman, 96 S.Ct. 3092 (1976).
[69] U.S. v. Ross, 102 S.Ct. 2157 (1982).
[70] Cady v. Dombrowski, 413 U.S. 433 (1973).
[71] Caniglia v. Strom, 593 U.S. 194 (2001).
[72] Riley v. California, 573 U.S. 373 (2014).
[73] Carpenter v. U.S., 585 U.S. 2206, 138 S.Ct. 2206 (2018).
[74] Coolidge v. New Hampshire, 403 U.S. 443 (1971).
[75] This case was remanded back, initially, for further discussion due to the intervening case of Brown v. Illinois, 422 U.S. 590 (1975).
[76] From the video, it appears that the officers already anticipated they would need to make contact with the vehicle to stop it, since Scott stated that he should take the lead as his vehicle was already damaged from the earlier collision.
[77] California v. Ciraolo, 476 U. S. 207 (1986).
[78] Florida v. Riley, 488 U.S. 445 (1989).
[79] The facts of this case and all quotations herein were taken from the opinion of the Illinois Supreme Court in People v. Caballes, 802 N.E.2d 202 (2003).
[80] U.S. v. Jacobsen, 466 U.S. 109 (1984).
[81] United States v. Place, 462 U.S. 696 (1983).
[82] "Of its own kind or class – the only one of its kind." Black's Law Dictionary.
[83] Quintana v. Commonwealth, 276 S.W.3d 753, 755-756.
[84] Id. at 756.
[85] Id. at 754.
[86] U.S. v. Dunn, 480 U.S. 294 (1987).
[87] Preston v. United States, 376 U.S. 364 (1964).
[88] Note that no exigency is required to justify a Carroll search.
[89] The opinion calls this an inventory search.
[90] Coolidge v. New Hampshire, 403 U.S. 443 (1971).
[91] United States v. Lee, 274 U.S. 559 (1927).
[92] Colorado v. Bannister, 449 U.S. 1 (1980).
[93] Minnesota v. Olson, 495 U.S. 91 (1990).
[94] United States v. Matlock, 415 U.S. 164 (1974).
[95] Illinois v. Rodriguez, 497 U.S. 177 (1990).
[96] Georgia v. Randolph, 547 U.S. 103 (2006).
[97] Birchfield v. North Dakota, 579 U.S. 438 (2016).
[98] Mitchell v. Wisconsin, 588 U.S. ____ (2019).
[99] Davis v. Mississippi, 394 U.S. 721 (1969).
[100] Minnesota v. Olson, 495 U.S. 91 (1990).
[101] Samson v. California, 547 U.S. 843 (2006).
[102] Gasaway v. Commonwealth, 671 S.W.3d 298, 329 (Ky. 2023)
[103] Id.
[104] Id.
[105] Id. at 330.
[106] Id. at 331.
[107] Arizona v. Gant, 556 U.S. 332 (2009)
[108] Weeks v. U.S., 232 U.S. 383 (1914).
[109] Silverman v. U.S., 365 U.S. 505 (1961).
[110] Nardone v. U.S., supra; Wong Sun v. U.S., supra.
[111] Silverthorne Lumber Co. v. U.S., supra.
[112] Ybarra v. Illinois, 444 U.S. 85 (1979).
[113] The facts of this case were summarized from People v. Gates, 423 N.E.2d 887 (Ill. 1981), the decision of the Illinois Supreme Court that was appealed to the United States Supreme Court. The United States Supreme Court did not include a recitation of the facts in

its opinion.

[114] Commonwealth v. Marshall, 319 S.W.3d 352 (Ky. 2010)

[115] Id.

[116] New York v. Belton, supra; See also Thornton v. U.S., supra.

[117] Chimel v. California, 395 U.S. 752 (1969)

[118] The term - offense of arrest - means the offense for which the individual is initially being arrested. In Gant's case, that would be the warrant for driving on a suspended OL, not the drug offenses for which he was ultimately charged.

[119] Colonnade Catering Corp. v. U.S., 397 U.S. 72 (1970).

[120] Supra.

[121] Caniglia v. Strom, 593 U.S. 194 (2021)

[122] Cady v. Dombrowski, 413 U.S. 433 (1973).

[123] Caniglia v. Strom, 593 U.S. 194 (2021).

[124] Id. at 198.

[125] Brigham City v. Stuart, 547 U.S. 398, 403, 126 S.Ct. 1943, 164 L.Ed.2d 650 (2006).

[126] Riley v. California, 573 U.S. 373, 382, 134 S.Ct. 2473, 189 L.Ed.2d 430 (2014) (internal quotation marks omitted).

[127] Brigham City, 547 U.S., at 403, 126 S.Ct. 1943.

[128] Kentucky v. King, 563 U.S. 452, 460, 131 S.Ct. 1849, 179 L.Ed.2d 865 (2011).

[129] Riley, 573 U.S., at 402, 134 S.Ct. 2473; Missouri v. McNeely, 569 U.S. 141, 149, 133 S.Ct. 1552, 185 L.Ed.2d 696 (2013).

[130] Brigham City, 547 U.S., at 403, 126 S.Ct. 1943; Riley, 573 U.S., at 388, 134 S.Ct. 2473.

[131] Brigham City, 547 U.S., at 403, 126 S.Ct. 1943; Minnesota v. Olson, 495 U.S. 91, 100, 110 S.Ct. 1684, 109 L.Ed.2d 85 (1990) (internal quotation marks omitted).

[132] Welsh v. Wisconsin, 466 U.S. 740, 751, 104 S.Ct. 2091, 80 L.Ed.2d 732 (1984)

[133] Riley, 573 U.S., at 402, 134 S.Ct. 2473.

[134] Id., at 388, 134 S.Ct. 2473.

[135] Id., at 391, 134 S.Ct. 2473 (internal quotation marks omitted); McNeely, 569 U.S., at 149, 133 S.Ct. 1552 (internal quotation marks omitted).

[136] Id., at 149, 133 S.Ct. 1552.

[137] Collins v. Virginia, 584 U. S. ——, ——, 138 S.Ct. 1663, 1670, 201 L.Ed.2d 9 (2018) (internal quotation marks omitted).

[138] Id., at 590, 100 S.Ct. 1371.

[139] See ibid.; supra, at 2017 - 2018.

[140] Georgia v. Randolph, 547 U.S. 103, 109, 115, 126 S.Ct. 1515, 164 L.Ed.2d 208 (2006).

[141] Illinois v. Caballes, 543 U.S. 405 (20050; See also U.S. v. Sharpe, 470 U. S. 675 (1985); Florida v. Royer, 460 U. S. 491 (1983).

[142] Terry v. Ohio, 392 U.S. 1 (1967); Arizona v. Johnson, 555 U. S. 323 (2009).

[143] See Delaware v. Prouse, 440 U. S. 648 (1979).

[144] Indianapolis v. Edmond, 531 U. S. 32 (2000). See also Florida v. Jardines, 569 U. S. 1 (2013).

[145] Heien v. North Carolina, 574 U.S. 54, 60, 135 S.Ct. 530, 190 L.Ed.2d 475 (2014)(quoting Riley v. California, 573 U.S. 373, 381, 134 S.Ct. 2473, 189 L.Ed.2d 430 (2014)).

[146] United States v. Cortez, 449 U.S. 411, 417-418, 101 S.Ct. 690, 66 L.Ed.2d 621 (1981); see also Terry v. Ohio, 392 U.S. 1, 21-22, 88 S.Ct. 1868, 20 L.Ed.2d 889 (1968).

[147] Prado Navarette v. California, 572 U.S. 393, 397, 134 S.Ct. 1683, 188 L.Ed.2d 680 (2014) (quotation altered); United States v. Sokolow, 490 U.S. 1, 7, 109 S.Ct. 1581, 104 L.Ed.2d 1 (1989).

[148] Heien, 574 U.S. at 60.

[149] Illinois v. Wardlow, 528 U.S. 119, 125, 120 S.Ct. 673, 145 L.Ed.2d 570 (2000).

[150] Delaware v. Prouse, 440 U.S. 648, 658, 99 S.Ct. 1391, 59 L.Ed.2d 660 (1979).

[151] California v. Carney, supra.

[152] Supra.

[153] City of Indianapolis v. Edmond, 531 U.S. 32 (2000).

[154] California v. Acevedo, 500 U. S. 565 (1991).

[155] See Jones v. U.S., 362 U. S. 257 (1960) Mancusi v. DeForte, 392 U. S. 364 (1968); Minnesota v. Olson, 495 U. S. 91 (1990).

[156] Rakas v. Illinois, 439 U.S. 128 (1978).

[157] 18 U.S.C. § 2703(d).

[158] Commonwealth v. Reed, 647 S.W.3d 237 (2022).

[159] Id.